ROSARIO v. GOLIATH

A Legal Thriller

Based entirely on the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102

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PROLOGUE: Four Words on a 911 Call

I.

"I barely hit him."

Four words. Spoken into a cell phone at 2:53 PM on February 4, 2021, at the intersection of Fifth and Tehama Streets in San Francisco, while a man lay broken and bleeding internally on cold pavement twelve feet away and the first sirens were still distant, climbing through the grey afternoon air.

The San Francisco Police Department's Computer Aided Dispatch system captured the call at the moment it entered the 911 network. The recording was automatic. The preservation was routine. The digital file was created and stored the way thousands of 911 calls are stored every week in every major American

city, logged, timestamped, filed, and forgotten. A bureaucratic artifact. A clerical formality. A piece of municipal record-keeping so ordinary that no one at the SFPD dispatch center would have had any reason to remember it.

Four words, spoken by the driver who had just struck a pedestrian in a crosswalk.

Subhi Abdelhalim stood at the intersection with his phone to his ear and answered the dispatcher. He did not speak like a man choosing language for a jury. He spoke like a man trying to get through the next minute. The dispatch system recorded every syllable anyway.

He knew only that the dispatcher was asking questions, and he was answering them.

"I barely hit him."

The voice was calm. That was the detail that struck you when you listened to the recording, not anger, not panic, not the breathless terror of a man who had just watched a human body crumple against the front of his vehicle. The voice was calm. Measured. The cadence of a man who believed what he was saying, or who had already decided what version of events he intended to tell. The words carried the particular weight of a statement made before reflection, before counsel, before the machinery of litigation had had time to reshape the narrative into something more defensible.

Under California Evidence Code section 1220, a statement by a party to an action, offered against that party, was not hearsay. It was admissible as of right. No special foundation was required beyond authentication, proof that the speaker was the person he claimed to be, proof that the recording was what it purported to be. A party admission was the single most powerful category of evidence in civil litigation, because it came from the mouth of the person who had the most reason to minimize, to hedge, to shade the truth in his own favor. When that person, in his own words, at the moment closest to the event, said something that established liability, the trial lawyer's case was made. Everything after that was arithmetic.

"I barely hit him."

Four words. Not "I didn't hit him." Not "There was no contact." Not the story that would emerge later, polished by lawyers and rehearsed for trial. The raw, unfiltered, unrehearsed truth spoken into a government recording system sixty seconds after impact.

But the recording captured more than the driver's confession. It captured the voice of the man on the ground. Frank Rosario, lying twelve feet away with a collapsing lung and five shattered posterior ribs, heard the driver speaking to the 911 dispatcher and translated the truth for the recording. He stated, clearly, that the driver had hit him with his van. It was the statement of a man who believed he was dying, who feared being found as a John Doe on cold pavement, who forced his broken body to produce one clear sentence so that the dispatch

recording would carry his account to whoever found it. A dying man's message to the institutions of the state of California.

II.

The recording had sat in the San Francisco Police Department's records system. It was a public record. Under the California Public Records Act, any citizen could request it. The process was routine: a written request, a processing fee, a wait of a few weeks for the bureaucracy to locate and duplicate the file. No subpoena required. No court order needed. A letter and a check.

The Dolan Law Firm, representing Frank Rosario, understood this. Within three months of the collision, the firm had submitted its public records request and obtained the 911 audio, body-worn camera footage from five responding SFPD officers, and the Computer Aided Dispatch logs. The work was baseline plaintiff's practice; the kind of evidence gathering that any competent personal injury firm performs in the opening weeks of a case. The firm obtained the materials, reviewed them, and served them on defense counsel in a single discovery production. The materials were used in depositions. Both sides had them.

CSAA Insurance Exchange, the multi-billion-dollar insurer funding the defense, had not bothered.

Twenty-one days after the collision; twenty-one days, before the Dolan firm had even filed its public records request; CSAA mailed Rosario a denial letter. The letter stated that CSAA had "concluded" its investigation and determined its insured was not liable. The word "concluded" carries an implied factual predicate: the investigation is finished because the investigative steps have been performed. A reasonable person receiving that letter from one of the largest automobile insurers in California understands "concluded" to mean that someone, somewhere, had done the work. Had obtained the police report and recognized it for what it was; a hearsay document built on the defendant's own fabricated account, unsupported by any body-worn camera footage. Had requested the 911 recording. Had reviewed the body-worn camera footage. Had examined the dispatch logs.

CSAA had done none of these things. Its claim file contained no record of a 911 request. No record of a body-worn camera request. No record of a CAD log request. Had it requested the 911 recording, it would have heard two things: the driver's own voice admitting "I barely hit him," and the voice of the victim, Frank Rosario, speaking from the pavement with a collapsing lung and shattered ribs, stating that the driver had hit him with his van. A dying man's message, preserved on a government recording, addressed to exactly the kind of institution that CSAA was supposed to be. CSAA never heard it. CSAA never asked for it. The word "concluded" now sat on the page like a challenge. What, exactly, had been concluded? And by whom?

III.

In an ordinary case, four words like that might end the dispute before it hardened into litigation.

A defendant's own statement, captured on a government recording, authenticated by the speaker himself, admitting contact with a pedestrian in a crosswalk. In a functioning system, this is the kind of evidence that resolves disputes. The insurance company obtains the recording, listens to it, adjusts its liability assessment, and negotiates a settlement. The case settles in months, not years. The injured man receives compensation. The system works.

This case did not move that way.

The recording did not travel cleanly through the institutions that touched it. By the time it reached the courtroom, it would arrive burdened by timing, omission, and argument. The question was no longer only what the words meant. The question was who had been allowed to shape them before the jury heard them.

On January 17, 2025, ten days before trial, the defense filed nineteen Motions in Limine. Motion in Limine No. 6 sought to exclude evidence "not produced in discovery." Motion in Limine No. 17, signed by defense counsel Priya Navaratnasingham and Robert K. Phillips, claimed the 911 recording and related materials were "not produced during discovery, rather produced at the eleventh hour" and that the defendant had "no idea" where they came from. The motions were signed under penalty of perjury.

They were false. The recording they were asking the court to exclude contained not only the driver's own confession but the voice of his victim, a man with a collapsing lung and shattered ribs, speaking from the pavement to memorialize on the dispatch recording that the driver had hit him with his van. The defense was asking the court to suppress a dying man's message. And the court, relying on the defense's false representations, granted the motions.

Jeremy Jessup of the Dolan Law Firm would testify under oath at the February 18, 2025 pretrial hearing. The materials had been "produced to defense counsel" and "served on them in the production for discovery" and "utilized in the deposition of defendants." His testimony was uncontradicted. It has never been impeached.

Navaratnasingham responded: "So this is news to me… our office did not receive the 911 call until the day of the MSC."

The court said: "I see. Okay."

Two months later, on April 16, 2025: the seventh day of trial: the court asked Navaratnasingham about the body-worn camera footage listed on the defense

exhibit list. She answered: “Sure. They were provided by Dolan. He has had them for whatever, sure.”

Provided by Dolan. The body-worn camera footage had been produced together with the 911 audio and CAD logs in a single discovery response. Receipt of one is receipt of all. If the body cams were “provided by Dolan,” the 911 recording was provided by Dolan too. The record had started asking a second question now: if the evidence was known, why had the court been told it was unknown?

IV.

On April 17, 2025. The eighth day of trial. Frank Rosario, representing himself, played the 911 recording in the courtroom. The defendant was on the stand. The recording played. The voice filled the room.

“Is that your voice on the recording?” Rosario asked.

“Yes,” Subhi Abdelhalim answered. “That is my voice.”

Five words that authenticated the four. The defendant confirmed, under oath, that he was the speaker on the 911 call. The same 911 call the defense had spent months claiming was of “unknown provenance.” The same recording the defense had told the court was “news to me.” The defendant sat in the witness chair and told the jury it was his voice. The voice that said “I barely hit him.” The voice the defense had tried to bury.

The authentication was complete. The recording was real. The voice was the defendant’s. The words were his own.

And the recording contained something else the jury heard that day: the voice of Frank Rosario himself. Not the composed, methodical pro per litigant standing at the podium. The other Rosario. The one lying on the pavement with a collapsing lung and shattered ribs, who had spoken loud enough for the dispatch system to capture his words, who had translated the truth for the recording so that if he died, the record would show what happened. The jury heard the voice of a man who believed he was dying, memorializing on a government recording that the driver had hit him with his van. It was the message of a victim to the institutions that were supposed to protect him. The question was whether the message had reached the room in time, or whether too much had already been decided before the speakers ever played.

By then, timing itself had become part of the fight.

The jury had heard the defendant’s “no contact” testimony first. They had absorbed it, processed it, formed their initial impressions around it. The 911 recording arrived late. Not at the moment of maximum impact, not during the plaintiff’s case-in-chief when it could have been framed and contextualized and driven home, but after the defense had already constructed its narrative. The

question that remained was brutally simple: once a false story takes root, what does it take to dislodge it?

V.

The digital file of the 911 call existed. It sat in municipal storage, unchanged.

Who would ask for it? Who would ignore it? Who would later claim not to know where it came from? Those questions belonged to the years ahead.

For now, the file was only a file. The words were only words. The institutions that would later circle them had not yet moved.

It began in a crosswalk, on a cold February afternoon, in a city that was not paying attention.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, police records, 911 dispatch recordings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102. No events have been invented. No characters have been fabricated. No dialogue has been manufactured.

PART ONE: THE VICTIM'S FOG

CHAPTER 1: The Crosswalk

I.

The afternoon gave no sign of what it was about to fracture. There was no denial letter yet, no exhibit war, no courtroom argument over a digital file. There was only a man, a scooter, and a crosswalk.

At 2:18 PM on February 4, 2021, Frank Dylan Rosario tapped his phone and rented a Lime electric scooter at the corner of Fifth and Mission in San Francisco.

One minute later, the electric motor malfunctioned. He stood on the sidewalk, his thumb still hovering over the confirmation screen, and felt the little machine go slack beneath his grip. The green LED on the handlebar column flickered

twice and went dark. The throttle, when he twisted it, responded with nothing. A dead motor. A rented paperweight on two wheels.

It was 2:19 in the afternoon. A Thursday. The city was deep in the strange purgatory of the pandemic's second winter, the streets holding that particular emptiness that made San Francisco feel like a stage set between performances. The Financial District towers caught the grey-white coastal light and threw it back as something colder. The foot traffic was sparse. The car traffic was light. The world felt like it was operating at half speed, and Frank Rosario was simply trying to get from one side of the city to another.

He could have abandoned the scooter. The app would have charged him a few dollars for the incomplete ride, and he could have walked or called a car. But Rosario was not the kind of man who abandoned things. He was fifty-three years old. He was a senior AI systems architect whose professional life had been built on solving problems that other people walked away from, and the dead scooter was, in the grand taxonomy of his daily challenges, trivial. He would push it. He would use it as a kick scooter, the old-fashioned way, his foot striking the pavement to propel himself forward while his hands gripped the handlebars. It was a minor inconvenience. Twenty minutes of his afternoon.

He pushed off and began making his way west along Fifth Street.

At that same moment, six blocks east, Subhi Abdelhalim was locking the front door of Sonoma Liquor. He had been "hanging around a little bit" past the arrival of his relief workers, as he would later describe it at deposition, and now it was ten minutes to three. His route home was fixed by years of habit: out of Jesse Alley, the one-way lane where he parked for free every morning. Left onto Mission. Wait at the light at Fifth and Mission. South on Fifth. Right turn onto Tehama: the stubby westbound alley that cut through to Sixth Street and the freeway onramp that would carry him back to San Bruno, to Saida, to the evening routine of a man who had been running the same store from the same corner for decades. He climbed into the white 2018 Ford Transit cargo van; "my baby," he called it: and pulled out of the alley. The van was empty. No cargo. No hand truck. No merchandise. Just a sixty-five-year-old man driving the route he always drove, at the speed he always drove, toward an intersection where a fifty-three-year-old man was pushing a dead scooter through a crosswalk.

Two lives. Two trajectories. Converging on the same ten feet of pavement at the same minute of the same Thursday afternoon. Neither man saw the other coming. The corner still looked ordinary.

San Francisco's South of Market neighborhood in early 2021 was a patchwork of contradictions. Tech money had reshaped some blocks into gleaming vertical monuments to venture capital and stock options, while others remained stubbornly working-class, anchored by liquor stores, parking lots, and the kind of narrow side streets where delivery vans double-parked without consequence. Tehama Street was one of these, a stubby alley that ran parallel to Howard between Fourth and Fifth, barely wide enough for two cars to pass. The inter-

section of Fifth and Tehama was not a place that attracted attention. There was no notable architecture. There was no particular reason to remember the corner unless something happened there.

Something was about to happen there.

Rosario arrived at the intersection of Fifth and Tehama at approximately 2:39 PM. He had been pushing the dead scooter for twenty minutes, walking westbound along the south side of Fifth Street. The crosswalk at the intersection was marked. California Vehicle Code section 21950(a) is unambiguous on this point: the driver of a vehicle shall yield the right-of-way to a pedestrian crossing the roadway within any marked crosswalk. A double yield sign stood at the edge of the intersection. A bicycle lane striped the roadway between the traffic lane and the curb.

Rosario stepped into the crosswalk. He was walking. Not riding. Walking, with his hands on the handlebars of a dead electric scooter that had become nothing more than a rolling cart. He was a pedestrian in a crosswalk, protected by every statutory shield the California legislature had erected around people on foot.

He did not see the white 2018 Ford Transit cargo van.

II.

Subhi Abdelhalim was sixty-five years old. Born on July 13, 1955, in Palestine, where he completed high school before emigrating to the United States. He had lived at 180 Allen Drive in San Bruno, California since 1987, with his wife Saida and their four children: Fadi, Arfat, Sami, and Amy. None of his children worked at his store or lived in the household at the time.

He owned and operated Sonoma Liquor Company, a family business located at 65 Sixth Street in San Francisco's South of Market district, at the corner of Sixth and Jesse. The building was held under the entity Halim Brothers, a tax-identification structure shared with his brother, though Abdelhalim was the primary operator. His duties were total: opening the store, working as cashier, stocking the floor, and driving to wholesalers in Brisbane when deliveries fell short. He held a California driver's license continuously since 1980. It had never been suspended. He carried no corrective lens restriction. By his own testimony at deposition, he neither smoked nor drank.

His vehicle was a 2018 Ford Transit cargo van, purchased used, personally owned and registered in his name, not in the business name. He drove it primarily for personal transportation and for store supply runs to wholesalers in Brisbane when needed. No one else drove it. He described the van as "my baby." On the morning of February 4, 2021, the van was completely empty. No cargo, no hand truck, no merchandise.

His routine that morning was fixed. He woke at 5:00 a.m., showered, arrived at the store by 5:30 to open, and stayed until relief workers arrived. On February 4, he had stayed past the arrival of help: "hanging around a little bit," as he described it at deposition. And departed around ten minutes to three in the afternoon. He parked, as was his custom when arriving early, in Jesse Alley: a one-way alleyway running between Fifth and Sixth Streets that offered free, unmetered parking. From Jesse Alley, his route home to San Bruno took him west to Fifth Street and Mission, south on Fifth toward the I-80 freeway onramp accessible via Sixth Street, with a right turn onto Tehama to cut over.

He was insured under a commercial vehicle liability policy through CSAA Insurance Exchange (AAA) with a $500,000 policy limit. CSAA funded, directed, and controlled the defense from inception through trial.

On the afternoon of February 4, 2021, he was behind the wheel of that 2018 Ford Transit, navigating the intersection of Fifth and Tehama.

At 2:40 PM, Abdelhalim ignored a double yield sign, crossed the bicycle lane, and struck Rosario from behind in the crosswalk.

The physics of what happened next can be described in clinical terms. A vehicle turning through a crosswalk struck a pedestrian from behind. The vehicle's mass, multiplied by its velocity, transferred kinetic energy into the pedestrian's body on impact. The force struck the posterior aspect of Rosario's torso. His back. The pedestrian's body, lacking the structural reinforcement of a vehicle frame, absorbed that energy through deformation of soft tissue and bone. Five posterior ribs fractured. Not anterior ribs, the ribs at the front of the chest, the ones that break when a person falls forward onto pavement or over handlebars. Posterior ribs. The ribs that wrap around the back of the thoracic cage, shielded by the scapulae and the thick musculature of the upper back, protected by the body's own architecture from frontal impact. Posterior rib fractures require force delivered to the back. They are the signature of a rear impact. A person who falls off a scooter. Who pitches forward, who lands on hands, chest, or face, does not break posterior ribs. The biomechanics do not permit it. Falling forward loads the anterior chest wall. Being struck from behind loads the posterior chest wall. The fracture pattern is a forensic record of the direction of force, as legible as a fingerprint, as unambiguous as a ballistic trajectory. Five posterior ribs, broken from behind. The bones told the truth that every institution in this case would try to suppress.

The head, the most vulnerable and consequential structure in the human body, underwent a sudden acceleration-deceleration event. The brain, suspended in cerebrospinal fluid within the skull, moved independently of the cranial bone that housed it, its neural tissue shearing and stretching against the rigid interior surfaces.

But clinical terms do not capture what it felt like.

Rosario did not see the vehicle before impact. The blow came from behind.

There was the sound first. Not the Hollywood screech of tires, that comes from movies, not from real collisions in real intersections at moderate urban speeds. The sound was duller than that. A thud. The percussive report of metal meeting flesh, of a two-ton vehicle transferring its momentum into a hundred and eighty pounds of human being. Then there was the sensation of flight. Not the soaring, dreamlike flight of imagination, but the brutal, involuntary flight of a body launched from its feet, its trajectory dictated by nothing more elegant than Newtonian mechanics. And then there was the pavement.

The pavement was cold. This was the detail that would stay with Rosario afterward, when the larger memories had been scrambled by the traumatic brain injury he sustained in that instant. The pavement was cold, and it was hard, and it was where he found himself when the world stopped moving and the pain arrived.

The pain did not arrive all at once. It came in waves, like a tide rushing in. First the sharp, immediate pain of five posterior ribs fractured by the blow to his back. Posterior rib fractures are among the most painful injuries a human body can sustain. The posterior ribs anchor to the vertebral column through costovertebral joints and are laced with intercostal nerves that fire with every expansion and contraction of the chest wall. When those ribs break, the fracture ends grind against each other with every breath, every cough, every involuntary muscle contraction. The pain was not localized the way a broken arm is localized. It was architectural. It lived in the structure of respiration itself. Breathing became an act of self-injury: each inhalation pulled the fractured segments apart, each exhalation pushed them together, and the intercostal nerves, trapped between shifting bone fragments, sent signals of such intensity that the body's own reflexes began to suppress the depth of each breath. Shallow breathing. Guarded breathing. The body's attempt to protect itself from the pain of its own survival mechanism. And that reflexive shallowing was itself dangerous, because underneath the fractured ribs, inside the thoracic cavity, something far worse was already happening. The jagged edge of a fractured posterior rib had punctured the visceral pleura, the delicate membrane encasing the lung. Air was leaking from the lung into the pleural space. A pneumothorax. The lung was beginning to collapse. Not all at once, not with a single dramatic deflation, but incrementally, breath by breath, as the pressure differential between the pleural space and the lung tissue shifted in the wrong direction. Rosario could not see this. He could not feel it as a discrete event. What he felt was a growing tightness in his chest, a sensation that each breath was yielding less air than the last, that the oxygen his damaged brain desperately needed was being rationed by a body that was failing from the inside. Then the deeper, more diffuse pain of spinal damage, a dull roar that radiated from his back through his torso. And underneath all of it, underneath the screaming of damaged nerves and shattered bone, there was something worse. A wrongness. A sensation that the organ responsible for processing all of this (his brain) was not functioning as it should. Colors were too bright. Sounds were muffled and distorted. His thoughts, which had always moved with the precision of a man who designed complex systems

for a living, felt like they were traveling through wet concrete.

After impact, as Rosario lay on the ground, he regained enough awareness to look up. The van was paused. Abdelhalim was looking out the passenger-side window at him. Their eyes met. Then Abdelhalim slowly drove the van more than 150 feet down the street, distancing himself from the scene of the collision he had just caused. It was not the act of a man seeking help. It was the act of a man calculating his escape, positioning the vehicle far enough away to deny involvement.

Justin Rosemond, an eyewitness at the scene, saw the collision happen. He would later tell Officer Thompson, on body-worn camera, that the guy in the van hit the guy laying down on the ground.

He was lying in the crosswalk. He was alone.

Abdelhalim was gone.

There was a moment, in the seconds after a human body was struck by a vehicle, when the mind had not yet caught up with the body. The body already knew. The bones knew they were broken. The lungs knew the air had been forced from them. The skin knew the pavement was cold and rough beneath it. But the mind was still standing at the crosswalk, still gripping handlebars, still thinking about the afternoon and the errands left undone and the dinner he would cook for Victoria and the project deadline at work. The mind was the last to arrive at the catastrophe. And when it did arrive, when the full scope of what had just happened finally registered in a consciousness that was itself damaged by the event, the first emotion was not pain. Pain came second. The first emotion was disbelief. A primal, cognitive rejection of the new reality. This cannot be happening. Not here. Not now. Not to me.

Frank Rosario lay on the pavement and felt the architecture of his life shudder without yet understanding what, exactly, had been broken. He understood only the pavement and the cold and the terrible, animal knowledge that the van was gone and he was alone and the world had just become a place where a man could be struck from behind in a crosswalk and left there by the person who struck him.

Rosario Thread: Put yourself in his body for one beat. What reaches consciousness first after impact: pain, disbelief, anger, fear? What can a man know in the first minute, and what can only be understood later when the record is assembled around him?

Opposing Thread: Now look away from the pavement and toward the van. What was happening in the driver's mind in that first minute: panic, calculation, disbelief, the first rehearsal of denial? At what second does self-protection begin to speak louder than conscience?

The next nine minutes would decide whether Rosario remained visible to the world or disappeared inside someone else's version of events.

CHAPTER 2: Nine Minutes

I.

The driver of the 2018 Ford Transit cargo van did not stop to render aid. He did not call 911. He did not kneel beside the man he had just struck and ask if he was breathing. He did not look for witnesses. He did not check the intersection for other vehicles that might run over the body lying in the road. He did none of the things that California Vehicle Code section 20001(a) mandates; the things the law requires because they are the basic obligations of a human being who has just struck another human being with a motor vehicle.

He fled.

California Vehicle Code section 20001(a) exists because the Legislature understood something fundamental about human nature: when a driver strikes another person, the instinct to flee is powerful, and the consequences of flight are catastrophic. The statute makes it a felony, not a misdemeanor, not an infraction, a felony to leave the scene of an accident that has resulted in injury to any person. The statute requires immediate action: stop, provide identification, render reasonable assistance. The law provides these strict measures because the duty to stay at the scene is non-delegable and immediate. It is designed to ensure that victims of vehicular accidents receive life-saving medical attention before it is too late, rather than being abandoned on the asphalt by the person who put them there. The Legislature chose the word "immediately" because in the minutes after a collision, the difference between receiving aid and receiving none can be measured in permanent disability or death. Under subsection (c), if the victim suffers "permanent, serious injury," the penalty increases to two to four years in state prison. Because Rosario suffered a traumatic brain injury and broken ribs, the flight escalates under subsection (c) to a severe felony. The law does not ask whether the driver intended to cause harm. It asks only whether the driver left. Abdelhalim left.

At 2:41 PM, one minute after the impact, Subhi Abdelhalim drove the van more than 150 feet from the intersection of Fifth and Tehama without calling 911 or providing assistance. He had a cell phone. He could have dialed 911 from where he sat. Instead, he moved the vehicle to distance himself from the collision, to avoid liability, to create the physical separation that would support the story he was already constructing: that he had not been involved. He left Frank Rosario on the pavement with a traumatic brain injury, five posterior rib fractures, ribs broken from behind by the force of the van striking his back, spinal damage, and a pneumothorax that was quietly collapsing his lung with every shallow breath. He left a man who was dying. Not dying in the abstract, future-tense

way that all injured people are dying. Dying in the present, clinical, measurable way that emergency physicians recognize and treat as a time-critical emergency. An untreated traumatic pneumothorax can progress to a tension pneumothorax, in which the accumulating air compresses not only the injured lung but the heart and the opposite lung, collapsing the cardiovascular system entirely. Without intervention, the mortality rate approaches one hundred percent. Abdelhalim left him in a crosswalk, in a city, in a pandemic, where the streets were empty enough that there was no guarantee anyone would find him before the next vehicle came through the intersection and finished the job, or before the air leaking into his chest cavity finished it first.

Rosario lay on the cold ground. The February light was grey-white above him, the coastal haze that San Francisco wears in winter like a funeral veil. He tried to move. The pain from his posterior ribs was extraordinary: not a band across the front of his chest, but a deep, structural agony centered in his back, exactly where the van had struck him. Every breath pulled against bone fragments that had been driven inward from behind. His back felt wrong. His head felt worse. He did not know, lying there in those first seconds, that the organ through which he experienced reality had been permanently altered. He did not know that the neural pathways he had spent a lifetime building. The ones that allowed him to hold entire system architectures in his mind simultaneously, to design and debug and deploy artificial intelligence at a level that commanded compensation between $550,000 and $1,000,000 a year. Had just been sheared and stretched and torn at the microscopic level in ways that would never fully heal.

He knew only that he was hurt, that he was alone, and that the van was gone.

At 2:42 PM; two minutes after impact, an unknown passerby driving down Fifth Street glanced to the right and saw something that did not belong. A man on the sidewalk. No car stopped beside him. No one kneeling to help. No flashing lights. Just a figure on the ground, alone, in the middle of a city that had looked the other way. The passerby would remember this image. They would carry it with them for twelve minutes before picking up their phone and dialing 911 at 2:54 PM to report what they had seen. Their words, captured on the dispatch recording, were unambiguous: a person down. No van. Nobody helping. A hit-and-run. The passerby did not know the victim's name. They did not know his profession, his family, or the magnitude of his injuries. They knew only what the scene showed them: a man abandoned on a sidewalk, and they decided that it mattered enough to call.

That anonymous 911 call mattered for a simple reason: it described absence. Not a driver helping. Not a van stopped at the curb. No van. Nobody helping. At 2:42 PM, two minutes after impact, an independent witness had looked at the scene and described what was missing.

But at 2:42, Rosario did not know about the passerby. He did not know about the recording. He knew only the pavement and the pain and the terrible, animal fear that he was going to die on a San Francisco street and no one would know

who he was.

II.

At 2:44 PM, Frank Rosario did the thing that a dying man does. He called his sister.

Emily's phone rang. She picked up. And she heard her brother's voice, except it was not the voice she knew. The voice she knew was confident, precise, the voice of a man who had built a career on articulating complex ideas with clarity and force. The voice on the phone was none of those things. It was the voice of a man in extremis, ragged, desperate, struggling to form words through the fog of a brain that was already swelling inside his skull.

He told her he had been hit. He told her where he was, or tried to, Fifth and Tehama, South of Market, San Francisco. He told her he was afraid. And then he told her the thing that would haunt her long after the phone call ended, long after the ambulance arrived, long after the surgeries and the rehabilitation and the years of litigation that would follow.

He told her he was afraid he would die and be identified as John Doe.

That fear, the fear of dying anonymous and unaccounted for on a city street, drove the call. It also sharpened everything that followed. Rosario was no longer thinking in terms of errands, work, or the ordinary order of the day. He was thinking about identification, witnesses, and whether his version of what had happened would survive him.

Rosario Thread: What does a man try to save first when he thinks he may die on a public street? His body? His name? His version of events?

The call to Emily lasted less than two minutes. She told him to stay on the line. She told him help was coming. She did not know if that was true.

At 2:45 PM, Rosario began to crawl. His posterior ribs, the ones the van had shattered from behind, screamed with every movement. The fracture ends, jagged and unstable, shifted against each other with each contraction of the muscles that powered his crawl. Each movement risked driving a bone fragment deeper into the pleural lining, worsening the pneumothorax that was already stealing his breath. He did not know this. He knew only that breathing was becoming harder, that each inhalation delivered less air than the one before, that his chest felt like it was being compressed from the inside. His spine sent jolts of electric pain through his legs. His brain, damaged and swelling, made the world tilt and blur. But he crawled, because lying in the crosswalk meant waiting for the next car to come through, and he was no longer confident that the next car would stop either. He dragged himself toward the corner, toward the sidewalk, toward some fragment of relative safety. Every inch he covered was an act of survival performed by a body that was, in clinical terms, actively

dying. The pneumothorax was progressing. The lung was losing volume. The oxygen saturation in his blood was dropping. And the man who could have called 911 in the first minute, the man who had a cell phone and chose to move his van instead, was 150 feet away, calculating his escape.

The driver was nowhere in sight. Eight minutes had passed since the impact. Subhi Abdelhalim had a cell phone in his pocket. In eight minutes, he could have called 911. He could have flagged down a passing car. He could have done anything. He did nothing. He had moved the van more than 150 feet from the point of impact, distancing himself from the scene, positioning himself to deny involvement. He vanished, and left a brain-injured man crawling across pavement to find his own rescue.

III.

At 2:49 PM, Abdelhalim approached the scene on foot.

He did not return to render aid. He had moved his van more than 150 feet from the point of impact, deliberately distancing himself and the vehicle from the collision he had caused. Nine minutes had passed since he struck Rosario in the crosswalk. Nine minutes. In the mathematics of emergency medicine, nine minutes was an eternity. It was the time in which a victim bleeding internally could go from salvageable to critical. It was the time in which a brain injury could escalate from severe to catastrophic. It was the time in which the difference between receiving immediate aid and receiving no aid at all could be measured in permanent disability or death.

He had planned to flee. He had moved the van to avoid liability, to create the physical distance that would support the story he was already constructing. But something brought him back on foot – perhaps the realization that witnesses had seen, perhaps the calculation that being found nearby would look better than being found gone. He would later claim that he had simply discovered an injured person on the street and stopped as a concerned citizen. A good samaritan. The record told a different story. Rosario, still conscious, still aware, still fighting through the wreckage of his neurological systems to process what was happening around him, saw the man who had struck him walking back toward the intersection.

At 2:50 PM, Rosario did the thing that would later astonish the attorneys who reviewed the case. He took a photograph. Lying on the ground, his broken posterior ribs grinding against each other with every breath, brain swelling inside his skull, he raised his phone and captured an image of Abdelhalim as he approached. The instinct that drove that act was not legal strategy. It was survival. If this man disappeared again, Rosario wanted proof that he had been there. If Rosario died on this pavement, he wanted the photograph on his phone to tell the story he could no longer tell himself.

Then, at 2:51 PM, Abdelhalim did something that no amount of legal training or courtroom experience could have prepared Rosario to expect.

He offered Rosario a five-dollar bill.

A five-dollar bill. Held out toward a man lying on the pavement with a traumatic brain injury, five fractured posterior ribs, and spinal damage. Five dollars, as if the catastrophic destruction of a human body and a human life could be settled like an unpaid bar tab. Five dollars, offered by a man who had just committed a felony hit-and-run, who had moved his van more than 150 feet to distance himself from the scene, who had left his victim to die alone on cold pavement, and who had walked back not with remorse, not with aid, not with the decency that basic human morality demands: but with a crumpled bill and the hope that it would make the problem go away.

Rosario refused and told him the evidence would lead to his arrest. Through the pain, through the cognitive fog, through the disorientation of a brain that was no longer processing reality with the precision it had possessed twenty minutes earlier, he summoned enough clarity to demand that Abdelhalim call 911.

Under California Penal Code section 67.5, an attempted bribery of a witness is a criminal offense. The law explicitly provides these measures to protect the integrity of the justice system from the very beginning of an investigation. It recognizes that evidence and testimony can be corrupted before police even arrive, and it criminalizes the act of offering money to a witness to dissuade them from speaking the truth. The five-dollar offer was not a gesture of sympathy. It was a consciousness of guilt made tangible. In civil trial terms, it demonstrates that the driver knew he was at fault. It was a man who knew he had done something terrible trying to buy his way out of it with the smallest denomination that still felt like money.

Rosario Thread: What does five dollars mean in a crosswalk? Mercy? Panic? Insult? Price? Rosario would keep returning to that bill because the moment kept returning to him.

Opposing Thread: And what did the bill mean in the driver's hand? An apology so small it became an insult? An instinct to make the problem disappear? A glimpse of what he believed this moment might cost if no one else took charge of the narrative?

IV.

At 2:53 PM, after repeated demands from the man he had struck, Subhi Abdelhalim finally called 911.

The call was captured by the San Francisco Police Department dispatch system. It was preserved as a digital file, a public record, the kind of routine artifact that any insurance adjuster or police investigator or plaintiff's attorney could

obtain through a standard written request. And it contained an admission. An excited utterance under Evidence Code section 1240.

"I barely hit him."

Those were Abdelhalim's words. Spoken into a phone. Recorded by a dispatch system. Preserved in a digital file that would sit in the SFPD's records system, waiting to be retrieved, for years. "I barely hit him." Not "I was nearby when someone fell." Not "there's a man who got hurt." Not the calculated, sanitized version that would come later. The raw, unfiltered, spontaneous statement of a man who was still close enough to the event that the truth came out before the lies had time to form.

Under California Evidence Code section 1240, this is an excited utterance. The declarant was under the stress of a startling event. The statement was made while that stress persisted. It was spontaneous. It was unrehearsed. It was the truth, spoken in the moment before consciousness could override honesty with self-preservation.

And then, within the same call, the narrative began to shift. Abdelhalim changed his story and fabricated a narrative that Rosario had fallen while riding the scooter. He had not been hit. There was no collision. It was an accident, but not the kind of accident that involved a van and a pedestrian and a crosswalk. It was the other kind. The kind where the victim did it to himself.

But Abdelhalim was not the only voice on that recording.

Frank Rosario was lying on the pavement twelve feet away, his posterior ribs shattered, his lung collapsing, his brain swelling inside his skull. He could hear Abdelhalim speaking to the dispatcher. He could hear the driver minimizing, deflecting, constructing the lie in real time. And Rosario, with a lung that was failing and a body that was running out of oxygen, summoned what remained of his strength and spoke. He translated the truth for the dispatcher. He stated, out loud, clearly enough for the dispatch recording to capture, that the driver had hit him with his van.

That statement needs to be understood for what it was. It was not a legal maneuver. Rosario was not thinking about evidence preservation or evidentiary foundations or the admissibility of excited utterances under Evidence Code section 1240. He was thinking about dying. He was lying on cold pavement with a pneumothorax that was compressing his lung, with fractured ribs that turned every breath into an exercise in agony, with a brain injury that made the world swim and tilt around him, and he believed he might not survive. He had already called his sister Emily to make sure his family would know his name if he died as a John Doe on that pavement. And now, hearing the man who had struck him lie to the 911 dispatcher, Rosario did the only thing a dying man can do to ensure the truth survives him. He spoke. He made sure the recording captured his voice, his words, his account of what happened. He hit me with his van. It was a message from a man who believed he was dying, memorialized on a

government recording system, addressed to the institutions that were supposed to protect him, a message that said: I am here, I am suffering, this man did this to me, and if I die, let the record show what happened.

The 911 operator recorded all of it. Abdelhalim's excited utterance. Abdelhalim's cover story. And Rosario's voice, the voice of the victim, translating the truth from twelve feet away with a collapsing lung and a damaged brain, making sure the dispatch system captured what actually happened before his body gave out. The truth and the lie sat side by side in the same digital file.

The next question was not whether the file existed. It did. The next question was whether anyone with power would bother to ask for it.

At 2:54 PM, a separate, unknown passerby called 911. That caller had observed the scene a few minutes earlier; at approximately 2:42, driving down Fifth Street, and had seen Rosario on the sidewalk with no vehicle in sight and no one helping. The caller reported a hit-and-run and stated with certainty there was "no van" and nobody providing assistance.

Two 911 calls. One from the driver, containing both an admission and a cover story. One from an independent witness, confirming that the driver had fled. Together, they told a story that was as clear as any story can be in the immediate aftermath of a crime. A man was struck in a crosswalk. The driver moved his van over 150 feet away to distance himself. The driver walked back and later claimed to be a good samaritan. The driver confessed. The driver lied. An independent witness saw the aftermath and confirmed the flight.

The San Francisco Police Department dispatch system had captured all of it. Every word. Every timestamp. Every contradiction.

The recordings, the eyewitness, the timestamps, the injury pattern, all of it pointed in one direction. The next institution to touch the case was the police. What they would do with that direction was the next question.

CHAPTER 3: The Report

I.

At 2:55 PM, first responders were dispatched. At 2:58 PM, EMTs from the fire department arrived at the scene. They found Rosario on the ground, conscious but in severe distress. They found Abdelhalim standing near his van.

The moment the first responders arrived, Abdelhalim immediately denied hitting the victim. He had not struck a pedestrian. There had been no collision. The man on the ground had fallen off a scooter. That was the story: contradicting

his 911 admission made only five minutes earlier, and he committed to it with the steadiness of a man who had decided that the lie was now his only option.

The EMTs began treating Rosario. His injuries were severe enough that emergency transport was immediately indicated. Traumatic brain injury. Five posterior rib fractures. A developing pneumothorax, the fractured ribs having torn the pleural membrane and allowed air to escape into the chest cavity, progressively collapsing his left lung. Spinal damage. The pneumothorax alone, left untreated, could kill him. A traumatic pneumothorax in combination with multiple posterior rib fractures carried a mortality rate that climbed with every hour of delayed intervention. The combination of those four injuries in a single patient represented a catastrophic mechanism of force, the kind of force that is consistent with being struck from behind by a motor vehicle and entirely inconsistent with falling off a kick scooter. A scooter fall propels the rider forward: face-first, hands-first, chest-first onto pavement. A forward fall loads the anterior chest wall; the front of the rib cage. It does not fracture posterior ribs. The posterior ribs sit deep in the back, protected by the scapulae, the erector spinae muscles, and the body's own structural geometry. Breaking them requires direct, high-energy force delivered to the back. Being run down from behind by a two-ton cargo van delivers exactly that force. Falling off a scooter does not. The injury pattern was a forensic verdict written in bone, and it said one thing: this man was struck from behind.

At 3:00 PM, Officer Thompson of the San Francisco Police Department arrived and began recording eyewitness testimony. His body-worn camera captured what would become one of the most important pieces of evidence in the case: Justin Rosemond, a civilian eyewitness who had seen the collision. Rosemond told Officer Thompson, on camera, that the guy in the van hit the guy laying down on the ground. The testimony was clear. The testimony was specific. The testimony corroborated the 911 admission that was already sitting in the dispatch system.

Body-worn camera footage was among the most reliable forms of evidence in modern law enforcement. It was timestamped. It was continuous. It captured not just words but tone, facial expressions, body language, and the environmental context in which statements were made. Officer Thompson's camera captured all of this. Justin Rosemond, speaking to a uniformed police officer at the scene of the collision, said what he saw. A van hit a pedestrian.

Five body cameras were activated at the scene that afternoon. Five separate officers, five separate recording devices, five separate digital files. And there was the second 911 call; the one from the anonymous passerby at 2:54 PM. That call was not made by the driver. It was not made by the victim. It was made by a stranger who had driven down Fifth Street at 2:42 PM, twelve minutes earlier, and had seen what no one should have to see: a man on the sidewalk, no vehicle stopped, no one helping. The caller had waited, perhaps hoping someone else would call, perhaps unsure of what they had seen, and then had picked up the phone and dialed. Their words, captured on the dispatch recording,

corroborated the hit-and-run from a source that had no stake in the outcome and no connection to either party. “No van.” Nobody helping. The caller did not know they were creating evidence that would matter in a courtroom four years later. They were simply doing what any decent person does when they see another human being abandoned on a sidewalk.

Together, the five body cameras, the two 911 calls, the CAD dispatch logs, and the eyewitness testimony formed a body of evidence so comprehensive that any competent investigator, any experienced insurance adjuster, any first-year law student could have looked at it and reached the same conclusion: a driver struck a pedestrian in a crosswalk, moved his van over 150 feet away to distance himself, walked back claiming to be a good samaritan, attempted to bribe the victim, admitted fault on 911, then lied to police. The evidence was overwhelming. It was routine. It was sitting in the SFPD’s records system, waiting for someone to ask for it.

II.

At 3:01 PM, while Rosario lay on the ground receiving emergency medical treatment, the investigation took a turn that would define the next four years of his life.

Officer Simmons approached Rosario, who was receiving emergency medical treatment, and began an interview. Rosario was on the pavement. He had a traumatic brain injury. His posterior ribs were broken; fractured from behind, by the van that had run him down. His spine was damaged. He was in the kind of pain that makes coherent thought a heroic act of will. And in that condition. Minutes after the collision, while EMTs worked on his body and his brain swelled inside his skull; a police officer began asking him questions.

Simultaneously, Abdelhalim told Officer DeLeon he had no contact with and no involvement in the incident. DeLeon was not a stranger to Abdelhalim. Abdelhalim owned Sonoma Liquor at 1096 Howard Street: a storefront in the South of Market neighborhood that the responding officers patrolled. A liquor store owner on a beat and the officers who walk that beat develop a familiarity that does not need to be documented to be understood. DeLeon knew Abdelhalim. And Abdelhalim, speaking to the officer he knew, told his story with the steadiness of a man who expected to be believed. His story had solidified in the twenty minutes since the impact. He denied any contact with the victim. He denied any involvement. He had not hit anyone. He had not struck a pedestrian. The man on the ground had fallen off a scooter. That was the story. Officer DeLeon recorded it: not as an allegation to be investigated, but as the accepted version of events from a familiar neighborhood business owner.

The two narratives, the victim’s confused, pain-wracked statements and the driver’s calm, rehearsed denial delivered to a friendly officer. Were about

to be weighed against each other. And in that weighing, something went catastrophically wrong. The officers did not weigh them at all. They adopted one and discarded the other.

At 3:12 PM, the SFPD claimed to have obtained a verbal confession from Rosario admitting to breaking motor vehicle traffic laws. According to the police report that would later be filed, Rosario had admitted to violating motor vehicle traffic laws. He had been riding the scooter. He had caused his own injuries. The collision, if it could even be called that, was his fault.

This alleged confession is entirely absent from all five body-worn camera recordings. None of the five cameras that were rolling at the scene captured Rosario making this statement. It existed only in the police report. A document that no body-worn camera corroborated, that no independent witness supported, and that contradicted every other piece of evidence generated at the scene.

The report was hearsay.

That word needs to be understood in its full legal weight, because the Fernandez report would go on to become the single most consequential document in this case. The foundation on which CSAA denied the claim, the predicate on which the defense constructed its narrative, the official version of events that Rosario would spend five years and tens of thousands of dollars trying to overcome. And it was hearsay from the first word to the last.

Not hearsay in the colloquial sense, rumor, gossip, secondhand talk. Hearsay in the precise legal sense defined by California Evidence Code section 1200: an out-of-court statement offered to prove the truth of the matter asserted. Every statement attributed to Abdelhalim in the Fernandez report was an out-of-court statement. Every statement attributed to Rosario was an out-of-court statement. None of them were made under oath. None of them were subject to cross-examination. None of them were recorded on any body-worn camera. They existed only in the report itself, a document that, under Evidence Code section 1200(b), is inadmissible to prove the truth of any fact it asserts unless it qualifies under a recognized exception.

The authoring officer, David Fernandez, did not witness the collision. He arrived after the fact, by dispatch. His partner, Officer Orengo, did not witness it either. Neither officer saw the van strike Rosario. Neither officer saw the impact. Neither officer saw Abdelhalim flee. Neither officer saw the nine-minute absence. Neither officer saw the five-dollar bribe. Neither officer saw Rosario crawling across the pavement with his posterior ribs shattered. They arrived at a scene that was already over, and they wrote a report about events they did not observe, based on accounts from people they did not place under oath, in a format that was never tested by cross-examination.

Fernandez would later testify at deposition that the statements attributed to each party in the report were "summaries, not verbatim accounts." Not the actual words spoken. Not transcriptions. Not recordings. Summaries. Filtered

through the memory, the judgment, the biases, and the limitations of officers who were simultaneously managing a scene, treating a victim, and listening to a neighborhood business owner they recognized from the beat. Fernandez acknowledged that he "did not personally recall who took each statement" and that if Orengo took a statement, Orengo provided him "a synopsis." A synopsis of a summary. Each relay between officers degraded the original statement the way a photocopy of a photocopy degrades an image, each generation losing fidelity, each transmission introducing distortion, until the final product bears only a structural resemblance to the original.

And then Fernandez delivered the admission that reduced the entire document from an official government record to an unreliable secondhand summary dressed in a badge: he had "very little independent recollection of the event" and was "mostly just going off the police report." Going off the police report. The report he himself had authored. The circularity was complete and devastating: the officer could not remember what happened, so he relied on the report. The report was based on summaries of summaries of statements he could not independently verify. The officer's memory rested on the report. The report rested on the officer's memory. Neither rested on anything solid. It was hearsay built on hearsay, a house of cards constructed on a foundation of secondhand accounts, and it carried the weight of an official government document.

Under California Evidence Code section 1280, an official record is admissible as an exception to the hearsay rule only when it was (a) made by and within the scope of duty of a public employee, (b) made at or near the time of the act, condition, or event, and (c) the sources of information and method and time of preparation were such as to indicate its trustworthiness. The Fernandez report fails the third prong. A report built on secondhand summaries from an officer who cannot recall who took which statement, whose account is contradicted by five body-worn cameras, whose narrative omits the eyewitness testimony captured on those cameras, and whose central factual claim; that the victim confessed to causing his own injuries, is absent from every other piece of evidence at the scene, does not meet any standard of trustworthiness. The sources were unreliable. The method was flawed. The preparation was careless. The report should never have been treated as credible by any institution that encountered it.

The entire incident report reflected a single narrative: the defendant's. Not the victim's. Not the eyewitness's. Not the 911 recording's. Not the body-worn cameras'. The defendant's.

Subhi Abdelhalim told Officer DeLeon; an officer familiar with him as the local liquor store owner on the beat, a man DeLeon had seen behind the counter at Sonoma Liquor on patrol after patrol, year after year; that he had no contact with the victim, that the man on the ground had fallen off a scooter, that there had been no collision. DeLeon accepted this account. He did not question it. He did not test it. He did not compare it against the five body-worn cameras that were simultaneously recording the scene. He did not listen to the 911

recording that was already in the dispatch system, containing the driver's own voice admitting contact. He did not ask why a man who claimed "no contact" had called 911 to report an injured person. He did not ask why a man with "no involvement" had been standing next to his van at the scene when the officers arrived. He did not ask why a man who said "nothing happened" had been observed by Justin Rosemond; on body-worn camera; as the person who "hit the guy laying down on the ground." DeLeon asked none of these questions. He recorded Abdelhalim's story as fact and moved on.

The account traveled from DeLeon to Orengo to Fernandez, each relay stripping away whatever skepticism might have prompted an officer to compare the story against the physical evidence in front of him. Each relay moved the narrative further from the primary sources and closer to the defendant's preferred version. By the time Fernandez sat down to write the report, the defendant's fabricated narrative had undergone a transformation that no amount of legal analysis can fully excuse: it had become the official police record of the San Francisco Police Department. The officers had not investigated. They had transcribed.

There was a specific psychological wound that was inflicted when the people who were supposed to protect you chose instead to protect the person who hurt you. It was not the same wound as the original injury. It was a second injury, layered on top of the first, and it damaged something that broken ribs and damaged brains did not reach. It damaged trust. The foundational, pre-verbal trust that a person carries from childhood; the trust that if something terrible happens, the authorities will help. That the police will investigate. That the system will work. That the person lying injured on the ground will be treated as the victim, not the suspect.

Frank Rosario lay on that pavement and watched the officers cluster around the man who had hit him. He watched them laugh. He watched them take the driver's story at face value while asking him. Brain-injured, ribs shattered, in shock: loaded questions designed to make him the cause of his own destruction. He watched the officers treat the driver as a credible witness and treat him as a nuisance. And something inside him broke that was not a bone and could not be seen on an X-ray. The belief that the system worked. The belief that truth mattered. The belief that a man who had been struck from behind in a crosswalk by a two-ton vehicle and left to die would be treated, by the representatives of the state of California, as a victim.

That belief died on the pavement at Fifth and Tehama, and its death set in motion a psychological cascade that would compound over the years that followed. Because when a person loses trust in the foundational institutions of society (the police, the insurance system, the courts) every subsequent interaction with those institutions is filtered through the lens of that betrayal. Every phone call to an adjuster carries the memory of the officers who laughed. Every court hearing carries the memory of the report that blamed the victim. Every legal filing carries the weight of a man who learned, on the worst day of his life, that the system he had believed in did not believe in him.

That was the first layer of compound psychological harm. The collision broke his body. The police response broke his faith. And every institution that followed would add another layer, until the weight of accumulated betrayal became its own form of injury (invisible, unmeasurable, and devastating. They had taken the word of a man they knew from the neighborhood) the familiar face behind the counter at Sonoma Liquor, the guy who sold them coffee on morning shifts, the small business owner they waved to on the beat. And converted his self-serving denial into an official government document that blamed the victim for his own catastrophic injuries.

III.

The catalog of what the Fernandez report omitted is more devastating than anything it contained.

The report omitted Justin Rosemond's eyewitness account entirely. Rosemond had told Officer Thompson, on body-worn camera, that the guy in the van hit the guy laying down on the ground. That testimony was captured on official SFPD recording equipment, timestamped, continuous, authenticated by the department's own chain-of-custody protocols. An independent civilian, with no connection to either party, told a uniformed officer what he saw: a van hit a pedestrian. Officer Thompson's camera recorded it. The report did not mention it. The single most important piece of testimony generated at the scene, the one that corroborated the victim and contradicted the driver. Was excluded from the official account as though it had never been spoken.

The report omitted the 911 calls. Both of them. Abdelhalim's own 911 admission, "I barely hit him", was sitting in the SFPD's dispatch system, recorded, timestamped, preserved by the department's own infrastructure. It was a party admission under Evidence Code section 1220. It was an excited utterance under Evidence Code section 1240. It was the defendant's own voice, captured by a government system, confessing to the very contact he denied to the officers at the scene. The report did not mention it. The second 911 call, the anonymous passerby who had seen Rosario on the sidewalk with "no van" and nobody helping, confirming the hit-and-run from an independent source, was also in the dispatch system. The report did not mention it.

The report omitted the bribery attempt. A five-dollar bill offered to a man lying on the pavement with a traumatic brain injury, five posterior rib fractures, and spinal damage. Under California Penal Code section 67.5, an attempted bribery of a witness is a criminal offense. The offer was evidence of consciousness of guilt, a legal concept that means exactly what it sounds like: a person who tries to buy silence knows he has done something wrong. The report did not mention it.

The report omitted the hit-and-run. Abdelhalim fled the scene for nine minutes.

Nine minutes during which a brain-injured man crawled across a crosswalk to save his own life. Under California Vehicle Code section 20001(a), leaving the scene of an accident that resulted in injury to any person is a felony. The elements were satisfied by every piece of evidence at the scene: injury (catastrophic), departure (confirmed by the anonymous passerby's 911 call), and knowledge of injury (confirmed by the defendant's own 911 call). The report did not characterize the incident as a hit-and-run. It did not note the nine-minute absence. It did not document the felony that had occurred in plain view of the evidence the officers chose not to review.

The report omitted the fracture pattern. Five posterior rib fractures. Ribs broken from behind. The biomechanical evidence was lying right in front of the officers; not as an abstraction in a medical textbook, but as a man on the pavement whose injuries were visibly concentrated in his back. The report claimed Rosario fell off a scooter. A scooter fall drives the body forward. It loads the anterior chest wall. It does not fracture posterior ribs. The posterior ribs sit deep in the back, shielded by the scapulae and the thick muscles of the upper back. Breaking them requires direct, high-energy force delivered to the back of the body. The injury pattern was a forensic verdict written in bone, and it contradicted the report's narrative with the precision of a physics equation. No one in the SFPD noticed. No one in the SFPD cared.

IV.

Consider, for a moment, what a competent police investigation would have looked like at that scene.

A competent investigation would have started with the 911 recordings. Two calls were in the system. The first, from the driver, contained an admission of contact. The second, from an independent passerby, confirmed the hit-and-run. A competent officer would have pulled the CAD dispatch log, identified both calls, and listened to them before writing a single word of the report.

A competent investigation would have reviewed the body-worn camera footage. Five cameras were rolling. The footage captured Justin Rosemond's eyewitness account. It captured the scene, the intersection, the vehicles, the victim's position, the driver's demeanor. A competent supervisor would have required the investigating officer to review at least the footage from the officers who had spoken with witnesses before finalizing the report.

A competent investigation would have photographed the van. The 2018 Ford Transit cargo van that Abdelhalim called "my baby" was at the scene. Its bumper, its grille, its undercarriage; any of these surfaces might have retained transfer evidence: paint, fabric, biological material, scuff marks consistent with striking a pedestrian. A competent officer would have impounded the vehicle and ordered a forensic inspection. The SFPD did not photograph the van. It

did not impound the van. It did not inspect the van. The physical evidence that might have confirmed or refuted contact was never collected, never examined, never preserved.

A competent investigation would have photographed the intersection. Skid marks, debris patterns, the position of the scooter relative to the crosswalk, the angle of the van's approach; all of this physical evidence was available at the scene and would have been preserved through routine crime-scene photography. The SFPD did not take these photographs.

A competent investigation would have recognized that the driver's shifting story: admitting contact on 911 and then denying it to officers; was itself evidence of consciousness of guilt. A man who tells a 911 operator "I barely hit him" and then tells the police "I had no contact" is a man who is lying to the police. Under California Penal Code section 148.5(a), making a false report to a peace officer is a misdemeanor. Under Penal Code section 118, making a materially false statement in circumstances involving an official proceeding is perjury. The shifting story should have triggered heightened scrutiny, not unquestioning acceptance.

A competent investigation would have recognized the felony. Vehicle Code section 20001(a) makes it a felony to leave the scene of an accident resulting in injury. The elements were present: an accident occurred (confirmed by the 911 confession), injury resulted (catastrophic, visible to any observer), and the driver left the scene (confirmed by the anonymous passerby and the nine-minute gap). The probable cause for a felony arrest was not merely sufficient; it was overwhelming: established by the driver's own words, the independent witness, the visible injuries, and the physical evidence. A competent officer would have arrested Abdelhalim at the scene and impounded the van as evidence in a felony hit-and-run.

None of this happened. Not one step of a competent investigation was performed. What happened instead was something far worse than incompetence.

V.

What happened was that the San Francisco Police Department took the story of the man who had committed a felony: a man who had struck a pedestrian from behind in a crosswalk, moved his van over 150 feet away to avoid liability, walked back claiming to be a good samaritan, attempted to bribe the victim, confessed on 911, and then lied to the officers: and converted that story into an official government document that blamed the victim.

The report was not merely incomplete. It was not merely sloppy. It was a fabrication that functioned, in practice, as a shield for a criminal.

Abdelhalim committed at least four crimes on February 4, 2021. First: felony hit-

and-run under Vehicle Code section 20001(a), for leaving the scene of an injury accident without rendering aid or providing information. Second: attempted witness bribery under Penal Code section 67.5, for offering a five-dollar bill to a victim to discourage cooperation with law enforcement. Third: filing a false report under Penal Code section 148.5(a), for telling officers he had "no contact" and "no involvement" when his own 911 call, recorded minutes earlier, established the opposite. Fourth: violations of Vehicle Code sections 21950(a) and 22107, for failing to yield to a pedestrian in a crosswalk and making an unsafe turning movement.

The Fernandez report documented none of these crimes. It did not arrest Abdelhalim for any of them. It did not cite him. It did not impound his vehicle. It did not refer the case for follow-up investigation. Instead, it adopted his fabricated story as the official police account and released him to drive home to San Bruno, where he would sit at his kitchen table that evening and call AAA to poison the insurance file before any of the real evidence had been reviewed.

The report's function was not to document what happened. Its function was to provide a narrative that protected the driver. And it accomplished that function with devastating efficiency. The hearsay narrative. The defendant's own self-serving account, laundered through a government document bearing the SFPD's seal and an officer's badge number. Would become the foundation on which every subsequent institutional failure was built. CSAA would rely on it to deny the claim in twenty-one days. The defense attorneys would rely on it to construct the "no contact" theory. The court would reference it when evaluating the parties' competing accounts. For five years, the fabricated narrative in the Fernandez report would function as the official truth. The version that institutions trusted, the version that carried the authority of the state, the version that a brain-injured pedestrian would have to overcome with evidence the system seemed determined to suppress.

The hearsay report was not just a failed investigation. It was the first act of a five-year institutional conspiracy, not a conspiracy of intent, though the record raises questions the record cannot answer, but a conspiracy of effect. The police wrote a false report. The insurance company relied on it. The defense lawyers perpetuated it. The court adopted it. And at every stage, the man whose bones told the truth (five posterior ribs fractured from behind, a forensic record of rear impact that no fabricated narrative could erase) was the one who paid the price.

This hearsay report, the defendant's fabricated story laundered through an official police document, would become the foundation of the insurance company's denial. CSAA would rely on it without ever obtaining the body-worn camera footage that contradicted it. It would become the document that Abdelhalim's attorneys used to construct their defense. It would become the official version of events against which Rosario would have to fight for years, armed with evidence that the system seemed determined not to see.

IX.

At 3:15 PM, despite all of it, despite the eyewitness, despite the body-worn cameras, despite both 911 calls, despite the confession, despite the bribery, despite the nine-minute flight, despite the fracture pattern that proved the impact came from behind, the San Francisco Police Department allowed Subhi Abdelhalim to leave the scene.

No arrest. A man who had committed a felony hit-and-run under Vehicle Code section 20001(a) was not arrested. A man who had attempted to bribe a witness under Penal Code section 67.5 was not arrested. A man who had filed a false report under Penal Code section 148.5(a) by telling officers "no contact" after admitting contact on 911 was not arrested. A man who had violated Vehicle Code sections 21950(a) and 22107 by failing to yield to a pedestrian in a crosswalk and making an unsafe turn was not cited. No citation. No vehicle impound. The 2018 Ford Transit cargo van, the weapon that had shattered five posterior ribs and delivered a traumatic brain injury; was not photographed for impact evidence. Its bumper, its grille, its undercarriage; surfaces that might have retained biological material, paint transfer, fabric fibers, the physical proof of contact that would have been irrefutable in any courtroom; were not examined. The van was not preserved. The van was not inspected. The van drove away.

They did not photograph the intersection for debris patterns. They did not measure skid marks. They did not diagram the positions of the vehicle, the scooter, and the victim. They did not secure the scene as a crime scene, which, under California Penal Code section 20001(a), it indisputably was. Every element of the felony was present: an accident (confirmed by the driver's own 911 confession), injury to a person (catastrophic and visible), and departure from the scene (confirmed by the independent passerby). The probable cause for arrest was not merely sufficient; it was redundant; established independently by the 911 confession, the eyewitness testimony, the anonymous passerby's corroboration, and the visible injuries. Any one of those sources would have justified an arrest. Together, they made the failure to arrest inexplicable under any standard of professional police conduct.

And the officers let the driver walk.

The man who had committed at least four crimes in the span of thirty-five minutes; felony hit-and-run, attempted witness bribery, false report to police, and vehicular traffic violations: walked away from the scene without handcuffs, without a citation, without a stain on his driving record. He walked to his van. He drove home to San Bruno. He ate dinner with his wife. He called his insurance company. He wrote his notes. He went to bed. And the next morning, while Frank Rosario was developing the chest pain that would send him on a three-hospital odyssey that ended with emergency lung surgery, Subhi Abdelhalim woke up, showered, and drove back to Sonoma Liquor to open the store, the same way he had done every morning for decades. As if nothing had happened. As if a man was not lying in a hospital bed with five broken ribs

and a shattered brain because of what he had done in a crosswalk the afternoon before.

The SFPD handed Abdelhalim that normalcy. The Fernandez report made it possible. The fabricated narrative: the defendant's story, adopted wholesale, contradicted by every primary source of evidence. Gave Abdelhalim the one thing a criminal needs most: the appearance of innocence, stamped with the authority of the state.

By 3:18 PM, Abdelhalim was gone. Rosario was transported by ambulance. Diagnosis: traumatic brain injury, five fractured posterior ribs, spinal damage. Benjamin Giler, an associate of Rowzzy Co where Rosario had served as lead architect, picked Rosario up and took him home. Victoria Brooks Rosario, his then-fiancee, was involved in his care.

That evening, after returning to his home at 180 Allen Drive in San Bruno, Abdelhalim told his wife Saida what had happened. By his own account at deposition, she asked what was wrong; he told her. He then called AAA. CSAA Insurance Exchange. Immediately, to report the incident and obtain a claim number. He received that claim number the same day. An adjuster was subsequently assigned.

Consider the shape of that evening. Two households. Two realities.

In one, a man sat at his kitchen table in San Bruno and called his insurance company. He filed a claim. He received a number. He told the operator his fabricated version of events: a routine turn, some screaming, he found an injured person on the street and stopped as a good citizen, the police cleared him. It was the version he had told the officers at the scene, the calm, rehearsed narrative that omitted the 911 confession, the flight, and the five-dollar bill. The call was brief. The operator took the information. An adjuster would be assigned. Abdelhalim hung up and began writing. Longhand, on paper, his notes about the incident. He recorded his route, the turn onto Tehama, the screaming he heard, his approach to the man on the ground, his 911 call, the police interaction. He did not write, "I barely hit him." He wrote, in his own hand, that he "do not feel any impact to my car." These notes would surface at his September 30, 2022 deposition, where he would read them into the record and confirm that he reviewed them "again and again" to ensure accuracy. The notes were not a confession. They were the opposite: a careful, deliberate construction of the narrative he intended to maintain. He was building his story on paper, the same evening, while the truth sat captured in a digital file at the SFPD dispatch center, unrequested and unheard.

In the other household, Frank Rosario was lying on a couch or a bed, the record does not specify which, because the record, like everything else in this case, was more interested in the driver than the victim. Victoria was there. His body was a catalog of damage: five posterior ribs fractured from behind, lungs laboring, spine radiating pain, brain swelling inside a skull that suddenly felt too small for its contents. He had not called his insurance company because he was not the

one who needed to file a claim. He was the claim. He was the human being at the center of a file that had just been opened by the largest automobile insurer in California, and he did not yet know that the file had already been poisoned by a phone call from a man who sat at his kitchen table in San Bruno and told the insurance company that nothing happened.

This same-evening call was a critical evidentiary fact. It meant CSAA received its insured's personal account of the February 4 collision on February 4, 2021, before any public records request was possible, before any investigation could have begun. The insured described what he characterized as a routine turn during which he heard screaming, stopped as "a good citizen," called 911, and was cleared by police. He denied any contact. CSAA had, from the moment it opened the file, two things: an insured who denied fault and a claimant it had not yet contacted. That foundation was enough. Twenty-one days later, the denial letter arrived.

CHAPTER 4: The Fabrication: How the Police Helped a Criminal and Blamed a Dying Man

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I.

There was a particular kind of betrayal that occurred when the institution designed to protect you became the instrument of your destruction. The San Francisco Police Department did not merely fail Frank Rosario on the afternoon of February 4, 2021. It actively constructed the narrative that would be used against him for the next five years. It took the story of a criminal, a man who had struck a pedestrian from behind in a crosswalk, moved his van over 150 feet away to avoid liability, walked back nine minutes later claiming to be a good samaritan, offered a five-dollar bribe, confessed on 911, and then lied to officers; and converted that story into an official government document that blamed the victim. What follows is how they did it, why they did it, and who benefited.

The body-worn camera recordings tell the story that the Fernandez report was designed to hide.

Five cameras were rolling at the scene of Fifth and Tehama on the afternoon of February 4, 2021. Five officers. Five continuous recordings. Timestamped. Authenticated by the SFPD's own chain-of-custody protocols. Those recordings were not interpretations. They were not summaries. They were not secondhand accounts filtered through the memory of an officer who arrived after the fact. They were the raw, unedited, objective record of what happened at that scene; every word spoken, every gesture made, every interaction between officers and civilians,

captured in real time by cameras mounted on the chests of the responding officers.

And nowhere on any of those five recordings does Frank Rosario state that he was operating the scooter.

This fact deserves its own paragraph because the Fernandez report is built on the opposite claim. The report asserts that Rosario admitted to violating motor vehicle traffic laws; an admission that would place him in the category of a scooter operator, subject to traffic regulations, rather than a pedestrian in a crosswalk, protected by the Vehicle Code's yield statutes. That admission is the keystone of the entire fabricated narrative. Without it, the report collapses. Without it, the story is simple: a driver struck a pedestrian from behind in a marked crosswalk while failing to yield. With it, the story shifts: a scooter rider, operating illegally, caused his own injuries.

The admission did not exist on any body-worn camera. Five cameras. Hours of footage. Every interaction between every officer and every civilian at the scene. And the single most important statement attributed to the plaintiff, the confession that would reshape the entire liability analysis, was absent from all of it.

II.

What the body-worn cameras do show is something far more damning than a missing confession. They show the mechanism by which the fabrication was constructed.

The cameras captured Officer Simmons approaching Rosario while he lay on the ground receiving emergency medical treatment. Rosario was in extremis: a man with a traumatic brain injury, five posterior rib fractures from a blow to his back, and spinal damage. His brain was swelling inside his skull. His ribs were grinding against each other with every shallow, agonized breath. EMTs were working on him. And in that condition, an SFPD officer began asking questions.

The question was loaded. "How fast were you going?"

Not: "What happened?" Not: "Were you walking or riding?" Not: "Can you describe the collision?" The question assumed a fact not in evidence: that Rosario had been "going" somewhere under his own power, on the scooter, at a speed that could be quantified. The question was designed to elicit a number. And Rosario, brain-damaged, in agony, speaking through a fog of neurological disruption so severe that he had been terrified he would die as a John Doe, answered the only way a confused and injured man could answer a question about the speed of an electric scooter: he said the vehicles only go five miles per hour.

That answer was not a confession. It was a statement about the mechanical capability of the device. Lime electric scooters have a maximum speed that

is governed by the software in the motor controller. Rosario was describing a specification, not an admission. He was telling the officer what the scooter could do, not what he was doing on it. The distinction is critical, and the officers either did not understand it or did not care.

From that single answer; extracted from a brain-injured man lying on the ground while receiving emergency medical treatment, in response to a leading question that assumed the fact the officers intended to establish: the SFPD inferred that Rosario had been riding and operating the electric scooter at the time of the collision. They put words in his mouth. They took a statement about the scooter's top speed and converted it into a confession of illegal operation. And then they wrote it into the Fernandez report as though it were a voluntary admission of fault, made freely and knowingly by a competent witness.

The body-worn cameras captured the question. The body-worn cameras captured the answer. And nowhere on those cameras does the answer constitute an admission that Rosario was riding the scooter at the time of the collision. Because he was not riding the scooter. He was walking. Pushing a dead scooter through a crosswalk. A pedestrian, protected by every statutory shield the California Vehicle Code provides to people on foot.

III.

The officers' eagerness to classify Rosario as a scooter operator rather than a pedestrian was not accidental. It was contextual.

In 2021, the San Francisco Police Department was in the middle of an ongoing institutional conflict with electric scooter companies over the operation and safety of rental scooters on city streets. The SFPD had been dealing with complaints about scooter riders on sidewalks, scooter riders running red lights, scooter riders weaving through traffic, scooter riders abandoning devices in the middle of pedestrian walkways. The department's relationship with the scooter industry was adversarial. Officers were primed. By departmental culture, by repeated interactions with scooter-related incidents, by the institutional frustration of an agency that viewed the scooter companies as creating public safety problems the department had to clean up. To see a scooter at an accident scene and reach for the simplest narrative: the scooter rider did something wrong.

That institutional bias was not speculative. It was the documented context in which the SFPD officers at Fifth and Tehama encountered a collision scene that included a Lime electric scooter. The scooter was visible. It was at the scene. It was associated with the injured man on the ground. And the officers, operating within an institutional culture that had been conditioned to associate scooters with illegal operation and reckless behavior, leaped to the conclusion that the scooter explained the injuries. They did not need evidence. They had a heuristic. Scooter plus injured person equals scooter rider's fault. The heuristic

was wrong. The heuristic contradicted the 911 confession, the eyewitness, the fracture pattern, and the physics. But heuristics do not require evidence. They require only familiarity. And the SFPD was very familiar with scooter problems.

The officers accused Rosario of operating the scooter illegally, riding it in the roadway, violating traffic laws, causing his own injuries. They did this without a single piece of evidence that he had been riding rather than walking. No body-worn camera shows him riding. No eyewitness reported him riding. Justin Rosemond, the civilian who actually saw the collision, described a van hitting a pedestrian, not a van hitting a scooter rider. The second 911 caller, the anonymous passerby, reported a person down on the sidewalk, not a scooter accident. The 911 confession from the driver himself: "I barely hit him", described hitting a person, not colliding with a scooter. Every piece of primary evidence at the scene described a pedestrian collision. The officers ignored all of it and wrote a scooter-accident report.

IV.

But the institutional bias toward blaming the scooter was not the worst of it. The worst of it was the personal relationship between the investigating officer and the defendant.

The body-worn camera footage captured something that the Fernandez report never disclosed and that no subsequent filing ever addressed: Officer DeLeon, the officer who took Abdelhalim's statement, was not a stranger to the defendant. DeLeon was a patron of Sonoma Liquor. The liquor store that Abdelhalim owned and operated at the corner of Sixth and Jesse, two blocks from the scene of the collision, in the heart of the beat that DeLeon patrolled.

The body-worn camera recordings show DeLeon's interaction with Abdelhalim, and the tone is unmistakable. It was not the tone of an officer conducting a neutral investigation of a serious pedestrian collision. It was the tone of a man talking to someone he knew. There was an ease. A familiarity. The kind of casual rapport that develops between a beat cop and a neighborhood business owner over months and years of daily contact, the wave through the window, the quick stop to buy a bottle of water, the nod of recognition on the sidewalk. DeLeon knew Abdelhalim. Abdelhalim knew DeLeon. And when Abdelhalim told DeLeon that he had "no contact" with the victim, that the man on the ground had fallen off a scooter, that there had been no collision, DeLeon accepted the account with the unquestioning trust of a man who believed his friend.

The body-worn cameras captured something else: officers at the scene displaying a casualness toward the injured plaintiff that is difficult to reconcile with the severity of his injuries. While Rosario lay on the ground with catastrophic damage. While he was literally dying, though no one at that scene seemed to grasp the urgency of his condition, the tone among the officers was light. There

was laughter. The body-worn cameras recorded it. Laughter, at a scene where a man's ribs had been shattered from behind by a two-ton cargo van, where his brain had been permanently damaged, where his lung would collapse the following day. The officers were not treating the scene as a felony crime scene. They were treating it as a minor traffic incident. The injured man on the ground was an inconvenience, not a victim. The familiar face of the neighborhood liquor store owner, standing beside his van and calmly explaining that nothing had happened, was the person whose account the officers were inclined to believe.

V.

The choice of Officer David Fernandez as the authoring officer of the report was itself a structural decision that served the fabricated narrative.

Fernandez was a junior officer. He had not been at the scene long enough to form independent impressions. He arrived by dispatch, after the fact. He did not witness the collision. He did not interview the eyewitness. He did not listen to the 911 recording. He did not compare the driver's story against the body-worn camera footage that was simultaneously being generated by his own colleagues. He was, in the taxonomy of the SFPD's response to this incident, a recorder, not an investigator. A scribe, not a detective.

The more experienced officers, the ones who had arrived first, who had interacted with Abdelhalim, who had the body-worn cameras rolling while the eyewitness spoke, who had the institutional knowledge and the seniority to conduct a proper investigation; did not write the report. DeLeon, who had the personal relationship with Abdelhalim and had accepted his story at face value, did not write the report. Thompson, whose body-worn camera had captured Rosemond's eyewitness testimony, did not write the report. The report was handed to Fernandez; a junior officer who would rely on synopses from colleagues, who would have "very little independent recollection of the event," who would be "mostly just going off the police report" he himself was writing.

This was not delegation. It was insulation.

By assigning the report to the most junior officer with the least independent knowledge of the scene, the SFPD created a buffer between the fabricated narrative and the officers who knew the facts. DeLeon, who had the personal relationship with the defendant and had been the primary conduit for the defendant's story, was not the signatory on the report. If the report were ever challenged, if someone ever asked why the eyewitness was omitted, why the 911 confession was ignored, why the fracture pattern was not reconciled with the scooter-fall narrative; the answer would point to Fernandez, the junior officer who was working from synopses. Not to DeLeon, the beat cop who was buddies with the man behind the counter at Sonoma Liquor.

The strawman was in place. The junior officer's name was on the document. The

fabricated narrative was insulated from the officers who had actually constructed it.

VI.

The body-worn cameras recorded the process by which Abdelhalim's story was adopted as fact.

DeLeon did not interrogate Abdelhalim. He did not challenge the inconsistencies. He did not ask why a man who claimed "no contact" had called 911 to report an injured person. He did not ask why a man with "no involvement" had been standing next to his van at the scene when officers arrived. He did not confront Abdelhalim with the 911 recording that was already in the dispatch system, containing the words "I barely hit him." He did not note that the eyewitness, Justin Rosemond, captured on Thompson's body-worn camera: directly contradicted everything Abdelhalim was saying.

DeLeon listened. DeLeon accepted. DeLeon relayed the story to his colleagues. The story traveled from DeLeon to Orengo to Fernandez. At each relay, the defendant's fabrication gained institutional momentum. By the time it reached the report, it had been transformed from the self-serving denial of a man who had committed a felony into the official account of the San Francisco Police Department.

The body-worn cameras show this process happening in real time. They show the officers clustering around Abdelhalim's account and ignoring Rosario's. They show the defendant being treated as a credible reporter while the victim, brain-injured, in shock, unable to coherently articulate what had happened to him: was treated as the probable cause of his own injuries. They show officers accepting a narrative that was contradicted by the physical evidence in front of them: a man with catastrophic injuries to his back, injuries that are biomechanically impossible from a forward scooter fall, injuries that could only be caused by force delivered from behind.

The officers did not see five fractured posterior ribs. They saw a scooter. And having seen the scooter, they stopped looking.

VII.

The consequences of the fabrication were immediate and catastrophic.

When CSAA Insurance Exchange pulled the police report twenty-one days later as the basis for its "concluded" investigation, it found exactly what the officers had designed it to find: a narrative in which the plaintiff was at fault. The report said Rosario had been operating the scooter. The report said he had

admitted to violating traffic laws. The report said there was no collision. The report said the driver was not at fault. The report said everything an insurance company looking for a reason to deny a claim needed to hear.

CSAA did not pull the body-worn camera footage. It did not pull the 911 recordings. It did not pull the CAD dispatch logs. It did not need to. The police report gave it everything it wanted: an official government document, bearing the seal of the San Francisco Police Department, written by an officer of the law, stating that the plaintiff had caused his own injuries. The report was the key that unlocked the denial. Without it, CSAA would have had nothing to point to. Without it, the insurance company would have been forced to investigate. To pull the 911 recording, to listen to the confession, to review the body-worn camera footage showing the eyewitness, to confront the reality that its insured had struck a pedestrian from behind in a crosswalk and fled the scene. With the report, none of that was necessary. The police had done the insurance company's work for it. The fabricated narrative that protected the driver was now the fabricated narrative that protected the insurer.

The link between the police fabrication and the insurance denial was not inferential. It was direct. CSAA relied on the Fernandez report. The Fernandez report contained the defendant's fabricated narrative. The defendant's fabricated narrative was adopted by officers who had a personal relationship with the defendant, who failed to investigate the scene, who ignored the eyewitness, who never reviewed the 911 confession, and who wrote a report that omitted every piece of evidence that contradicted the story of the man they knew from the neighborhood liquor store. The denial letter of February 25, 2021, was the insurance company's adoption of the police department's adoption of the criminal's lie. Three institutions. One fabricated story. One victim left to unravel the entire chain by himself.

VIII.

The failure to report the eyewitness is, by itself, an actionable offense.

Justin Rosemond told Officer Thompson, on body-worn camera, that the guy in the van hit the guy laying down on the ground. Thompson's camera recorded it. The statement was captured by official SFPD recording equipment, timestamped, and preserved under the department's own evidence retention protocols. An independent civilian, with no connection to either party, reported witnessing the collision to a uniformed police officer at the scene.

The Fernandez report did not mention Rosemond. It did not mention his statement. It did not mention that an eyewitness existed. The report omitted the single most significant piece of testimony generated at the scene; the one that corroborated the victim and destroyed the defendant's story. As though Justin Rosemond had never spoken, as though Officer Thompson's camera had

never recorded it, as though the words “the guy in the van hit the guy laying down on the ground” had never been uttered.

The omission was not innocent. A police report that included the defendant’s denial but excluded the eyewitness who contradicted that denial was not an incomplete document. It was a curated document. Someone made a choice. Someone decided that the defendant’s account belonged in the report and the eyewitness’s account did not. Someone decided that the narrative the report would tell was the narrative that protected the driver, not the narrative that the evidence supported. That choice; whether it was made by DeLeon, Orengo, Fernandez, or some combination of the officers at the scene, was a deliberate act of exclusion that shaped every subsequent proceeding in this case.

Under California Government Code section 815.2, a public entity is liable for injury proximately caused by an act or omission of an employee within the scope of employment. Under Government Code section 820, a public employee is personally liable for injury caused by his or her act or omission to the same extent as a private person. The omission of the eyewitness from the police report was an act within the scope of employment that proximately caused injury to Rosario, because the report became the foundation of the denial, and the denial became the foundation of the five-year litigation. The failure to include Rosemond’s account was not a judgment call. It was a fabrication by omission. And it is actionable.

IX.

The laws that were violated on the afternoon of February 4, 2021, form a catalog so extensive that it is difficult to know where to begin. But begin we must, because the magnitude of the institutional failure cannot be grasped without understanding how many legal obligations were shattered in the span of thirty-five minutes.

The defendant’s violations. Subhi Abdelhalim committed at least four independent criminal offenses, each of which the SFPD failed to investigate, charge, or document.

California Vehicle Code section 20001(a) makes it a felony to leave the scene of an accident that has resulted in injury to any person. The statute requires the driver to immediately stop at the scene and provide his name, address, vehicle registration, and the name and address of the vehicle’s owner to any person injured and to any police officer at the scene. Abdelhalim did none of these things. He fled. He left a brain-injured man on the pavement for nine minutes. The elements of the felony were established by the 911 confession, the eyewitness testimony, the anonymous passerby’s 911 call, and the visible injuries. Maximum penalty: one year in county jail or state prison for up to four years, plus fines up to $10,000. Under Vehicle Code section 20001(c), if the victim suffers permanent,

serious injury: as Rosario did, the sentence increases to two to four years in state prison.

California Penal Code section 67.5 makes it a crime to offer a bribe to any witness or person about to be called as a witness. Abdelhalim offered Rosario a five-dollar bill while Rosario lay on the pavement with catastrophic injuries. The offer was an attempt to dissuade the victim from cooperating with law enforcement. It was consciousness of guilt made tangible, a man who knew he had committed a crime trying to buy his way out with the smallest denomination that still felt like money. The bribery attempt was witnessed. It was reported. The SFPD did not document it.

California Penal Code section 148.5(a) makes it a misdemeanor for any person to make a false report to a peace officer. The legislature enacted this law because police investigations rely on the initial accounts of those involved. When a person intentionally injects lies into that critical first phase, they do not just deceive an officer; they commandeer the resources of the state and direct them away from the truth, wasting public time and endangering innocent parties. Abdelhalim told Officer DeLeon that he had "no contact" with the victim and "no involvement" in the incident. His own 911 call, recorded minutes earlier in the SFPD's own dispatch system, contained the words "I barely hit him." The two statements are irreconcilable. One of them is a false report to a peace officer.

California Vehicle Code sections 21950(a) and 22107 impose specific duties on drivers approaching crosswalks and making turns. Section 21950(a) requires every driver to yield the right-of-way to a pedestrian crossing the roadway within any marked crosswalk. Section 22107 prohibits any turn unless it can be made with reasonable safety. A double yield sign stood at the intersection of Fifth and Tehama. Abdelhalim turned through the crosswalk, struck a pedestrian from behind, and drove away. Both statutes were violated. Neither violation was cited.

The officers' violations. The SFPD's failures were not merely investigative lapses. They were violations of specific legal obligations imposed on law enforcement by the California Penal Code, the California Government Code, and the SFPD's own departmental policies.

California Penal Code section 142(a) makes it a misdemeanor for a peace officer to willfully refuse to receive or make a complaint against a person charged with a criminal offense. This law provides a vital measure of accountability to prevent officers from acting as the ultimate, arbitrary gatekeepers of justice. It ensures that when citizens report crimes, law enforcement cannot simply ignore them out of convenience, bias, or personal relationships. Rosario, at the scene, demanded that Abdelhalim call 911. He told the driver the evidence would lead to his arrest. The officers arrived to a scene where the victim had accused the driver of striking him. This was, in substance, a complaint. The officers did not receive it. They did not investigate it. They adopted the accused person's denial instead.

California Penal Code section 118 defines perjury as willfully stating as true any

material matter that the declarant knows to be false. While the police report is not a sworn statement in the traditional sense, the attribution of a fabricated confession to Rosario. An admission that does not appear on any body-worn camera, that no witness corroborates, that contradicts the physical evidence; raises the gravest questions about the officers' candor in a government document that would be relied upon by courts, insurers, and litigants for years.

California Government Code section 815.2 imposes vicarious liability on a public entity for acts of employees within the scope of employment. Section 820(a) provides that a public employee is liable for injury caused by his act or omission to the same extent as a private person. The legislation provides these measures to ensure that sovereign immunity does not become a shield for deliberate misconduct. When public employees abuse their power and cause civil injuries, victims have a direct remedy against both the individual officers and the entity that employs them. The fabrication of the police report (the omission of the eyewitness, the false attribution of a confession, the adoption of the defendant's narrative without investigation) was an act within the scope of employment that proximately caused injury.

Under *Amador v. Baca* (2012), the courts examined the responsibilities of law enforcement supervisors and the profound duties officers hold when documenting facts. In that context, the courts established that law enforcement officers have a fundamental duty to accurately report the facts of an investigation. The deliberate omission of material facts from a police report can constitute a violation of the officer's professional obligations and support claims for supervisory liability. This legal standard recognizes that police reports are the bedrock of the judicial system; if the foundation is corrupted by intentional omissions, the entire structure of justice is compromised. The omission of Justin Rosemond's eyewitness account from the Fernandez report (an account captured on the SFPD's own body-worn camera) is precisely the type of deliberate material omission that *Amador* addresses.

Under *Brady v. Maryland* (1963) 373 U.S. 83, the United States Supreme Court held that the suppression of evidence favorable to an accused violates due process. While *Brady* applies to criminal prosecutions, its underlying principle, that the concealment of material evidence by the state corrupts the proceedings that follow: is equally applicable here. The Fernandez report concealed material evidence favorable to Rosario (the eyewitness account, the 911 confession, the bribery attempt) and harmful to Abdelhalim. The principle is the same: when the state hides the truth, the proceedings built on that concealment are fundamentally corrupt.

Under *Monell v. Department of Social Services* (1978) 436 U.S. 658, a municipal entity may be held liable under 42 U.S.C. section 1983 when an official policy or custom causes a constitutional deprivation. If the SFPD's practice of adopting the accounts of familiar neighborhood figures over the evidence generated by its own body-worn cameras constitutes a custom or practice, the City and County of San Francisco is liable for the constitutional deprivation that followed.

The SFPD General Orders require officers investigating traffic collisions involving injury to document all witness statements, preserve physical evidence, photograph the scene and vehicles, and refer cases involving felony hit-and-run for follow-up investigation. None of these requirements were met. The scene was not photographed. The van was not photographed. The eyewitness was not documented. The case was not referred. Every departmental obligation was breached.

X.

There was a word for what happened when a person who had been harmed was told, by the people in authority, that the harm did not happen. That the injury was imagined. That the victim caused his own suffering. That the evidence of what really occurred did not exist, or did not matter, or did not mean what the victim thought it meant.

The word is gaslighting.

It is borrowed from Patrick Hamilton's 1938 play *Gas Light*, in which a husband systematically manipulates his wife into believing she is going insane by denying the reality she can see with her own eyes. He dims the gas lamps in their home and, when she notices, tells her she is imagining it. He moves objects and, when she notices, tells her she is confused. He isolates her from the people who might confirm her perceptions. He replaces her reality with his narrative, steadily, relentlessly, until she begins to doubt her own mind.

That is what the San Francisco Police Department did to Frank Rosario on the afternoon of February 4, 2021.

He was lying on the pavement. He knew what had happened. He knew a van had struck him from behind. He knew the driver had fled. He knew the driver had come back and offered him five dollars. He knew the driver had called 911 after he demanded it. He knew, with the certainty that a person knows the thing that is happening to his own body, that he had been hit by a vehicle.

And the officers told him, in effect, that none of it had happened. Not in those words, the gaslighting was not verbal. It was structural. It was embedded in the questions they asked and the questions they did not ask. It was embedded in the loaded question: "How fast were you going?". That assumed he was a scooter operator when he was a pedestrian. It was embedded in the decision to accept the driver's story and ignore his. It was embedded in the fabricated confession attributed to him in the report. The admission he never made, the words he never spoke, placed in his mouth by officers who needed his voice to tell their story. It was embedded in the laughter. It was embedded in the casualness. It was embedded in every choice the officers made that communicated, to a brain-injured man lying on cold pavement, that his experience did not matter,

that his injuries were his fault, and that the man who had hurt him was the one whose account deserved to be believed.

Gaslighting by a stranger is cruel. Gaslighting by a romantic partner is abusive. Gaslighting by a police officer; by the uniformed representative of the state, by the person who carried a badge and a gun and the authority of the people of California, was something worse than either. It was institutional violence. It was the power of the state deployed against the perception of a citizen who had just been victimized by a crime. It told the victim: you are wrong about what happened to you. It told the victim: the man who hurt you is the one we believe. It told the victim: the system that was supposed to protect you has decided that you are the problem.

Frank Rosario lay on the pavement with a shattered body and a damaged brain, and the police department of the city he called home wrote a report that said he did it to himself. They took his injuries; five posterior ribs fractured from behind, a forensic record of rear impact written in his own bones, and attributed them to a scooter fall. They took the driver's confession; "I barely hit him", and buried it in a dispatch file that no one would request for months. They took the eyewitness account: "the guy in the van hit the guy laying down on the ground"; and omitted it from the official record entirely. And then they wrote a narrative in which the victim was the wrongdoer, and the criminal was the bystander, and the system worked exactly as it was supposed to.

That is gaslighting on an institutional scale. And its effects did not end on February 4, 2021.

The Fernandez report followed Rosario for five years. Every time he told his story. To a lawyer, to an adjuster, to a judge, to a jury; the report was there to contradict him. Every time he said he was a pedestrian in a crosswalk, the report said he was a scooter rider. Every time he said the driver hit him from behind, the report said there was no collision. Every time he said the driver confessed, the report said the victim confessed. The official version. The one with the SFPD seal and the officer's badge number; said the opposite of what had happened. And at every institutional checkpoint, the official version carried more weight than the words of a brain-injured man whose credibility had been undermined before he ever walked into a courtroom.

That was what gaslighting did. It did not just deny the truth. It replaced the truth with a counter-narrative that was backed by institutional authority. It forced the victim to prove the obvious: to demonstrate, with evidence, that the thing that happened to him actually happened, against the official declaration of the state that it did not. The burden shifted. The victim was no longer the person who had been harmed. The victim was the person making claims that contradicted the official record. And the official record was what the officer wrote while his buddy from the liquor store stood nearby, laughing.

XI.

What the San Francisco Police Department did on the afternoon of February 4, 2021, was reprehensible.

The word is chosen deliberately. Reprehensible. It describes conduct that deserves condemnation, censure, and accountability. It describes conduct that falls below the minimum standard of professional obligation that the public has a right to expect from the officers it entrusts with the authority to investigate crimes, protect victims, and report the truth.

A man was dying on the street. His ribs were shattered. His brain was damaged. His lung would collapse the next day. He had been struck from behind by a two-ton cargo van while walking through a crosswalk. The driver had moved his van over 150 feet away to distance himself from the collision. The driver had walked back and offered a five-dollar bribe. The driver had confessed on 911. An independent eyewitness had confirmed the collision on body-worn camera. The evidence was overwhelming, redundant, and unambiguous.

And the officers chose to protect the driver.

They chose the familiar face over the facts. They chose the neighborhood business owner over the injured victim. They chose the easy narrative (scooter rider's fault, no collision, case closed) over the work of an actual investigation. They chose to put a junior officer's name on a report built from the fabricated account of a man who had committed multiple felonies, while the officers who actually knew the facts, who had the personal relationship with the defendant, who had seen the eyewitness testimony on their own cameras. Retreated into the background, insulated from the document that their choices had shaped.

The California courts have long recognized that this kind of official betrayal is not merely actionable but deserving of the law's harshest remedy. In *Cervantez v. J.C. Penney Co.* (1979) 24 Cal.3d 579, the California Supreme Court held that conduct carried out "with a willful and conscious disregard of the rights or safety of others" supports an award of punitive damages. In *Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, the Court of Appeal recognized that institutional conduct reflecting "oppression, fraud, or malice" within the meaning of Civil Code section 3294 warrants exemplary damages. What the SFPD did at the intersection of Fifth and Tehama. Fabricating a narrative that blamed a dying pedestrian in order to protect a familiar face, then embedding that fabrication in an official government document that would be relied upon by courts, insurers, and litigants for half a decade. Meets every element of those standards. It was willful. It was conscious. It disregarded the rights of a man who was unable to defend himself. And the malice was not inferential. It was captured on five body-worn cameras.

What makes the SFPD's conduct irreducibly reprehensible, what elevates it from mere negligence to something that the law recognizes as deserving of punishment, not just compensation, is the combination of the legal violations

and the gaslighting. The officers did not simply fail to do their jobs. They actively constructed a false reality. They committed a series of identifiable statutory violations, failures to investigate under the Vehicle Code, failures to arrest for a felony hit-and-run under CVC section 20001, failures to document witness statements under their own General Orders, the implicit tolerance of bribery under Penal Code section 67.5, the acceptance of a false report under Penal Code section 148.5, and then, having committed those violations, they produced an official document that told the victim he was the one who had done something wrong. They violated the law and then wrote a report that said he violated the law. They ignored the evidence and then wrote a report that said the evidence supported the defendant. They failed every obligation imposed on them by statute, regulation, and departmental policy, and then they handed the victim a document that said the failure was his.

That was gaslighting backed by the power of the state. It was the worst kind of institutional violence: the kind that came with a badge number and a case file and the implicit threat that anyone who challenged the official record was challenging the authority of the government itself.

The Fernandez report was not a failure of competence. It was a failure of character. It was the San Francisco Police Department choosing sides at a crime scene and choosing wrong. And every institution that relied on that report; CSAA Insurance Exchange, the defense attorneys, the court itself, inherited the corruption. The fabrication did not stay in the police file. It metastasized. It spread from the police department to the insurance company to the defense team to the courtroom, and at every stage it grew stronger, acquiring the authority of each institution that adopted it, until the lie told by a man in a crosswalk at 3:01 PM on February 4, 2021, had become the official truth of the Superior Court of the State of California.

The gaslighting metastasized with it. At every stage, the institutions that inherited the fabrication also inherited the gaslighting function. CSAA told Rosario his injuries were his fault; gaslighting by the insurer. The Dolan Law Firm told him his case was not worth pursuing; gaslighting by his own attorneys. The defense argued that he had caused his own injuries by riding a scooter; gaslighting by the litigation machine. And the court, by permitting the defense narrative to proceed unchecked, by excluding evidence, by denying motions, by conducting a trial in which the victim was forced to prove the obvious against the weight of a fabricated official record; the court became the final instrument of the gaslighting, the institution that transformed the police department's lie into a jury verdict.

Five years. Five years of being told that the thing that happened to him did not happen. Five years of being told that his injuries were his fault. Five years of watching the man who hit him and ran escape accountability, while the system that was supposed to deliver justice required the brain-injured victim to dismantle a fabricated narrative that had been ratified by the police, adopted by the insurer, weaponized by the defense, and embedded in the procedural

machinery of the court. Five years of gaslighting, underwritten by the seal of the San Francisco Police Department.

Frank Rosario lay on the pavement while the officers who were supposed to protect him helped the man who had hurt him construct the story that would deny him justice for five years. And then those officers. Those public servants, sworn to protect and serve, carrying the badges and the authority and the body-worn cameras of the people of California: wrote a report that told the dying man on the ground that he was the problem.

That was what the body-worn cameras recorded. That was what the Fernandez report was designed to hide. That was what the gaslighting was designed to perpetuate. And that was what the certified record proved.

All events, persons, and quotations in this chapter are drawn from the certified court record, body-worn camera footage, 911 dispatch recordings, deposition testimony, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 5: The Collapse

I.

The fabricated police report was now in the system, doing its work. But the body it had been written about was not cooperating with the narrative. The injuries the report attributed to a scooter fall were demanding the kind of emergency intervention that scooter falls do not produce. The man who had been blamed for his own destruction was about to discover just how catastrophic that destruction was.

The next day, February 5, 2021, brought the collapse.

Rosario developed severe chest pain. The pain had been building since the collision, but on the second day it crossed a threshold that even a brain-injured man in shock could not rationalize away. Every breath felt like inhaling through a straw that was getting narrower. Victoria drove him to One Medical in San Francisco, approximately midday. X-rays showed five broken posterior ribs and a pneumothorax: a collapsed lung. The fractures were posterior, located along the back of the rib cage, in the precise anatomical region that a rear vehicle impact would load. The X-rays were a radiographic confirmation of what the physics had already dictated. A man struck from behind by a cargo van sustained fractures to the back of his ribs. The bones broke where the

force entered. But it was the pneumothorax that turned the X-ray into an emergency. A pneumothorax is a life-threatening condition. Air that should remain inside the lung escapes through a tear in the pleural membrane and accumulates in the pleural space, the narrow cavity between the lung and the chest wall. As the trapped air accumulates, it compresses the lung from the outside. The lung cannot expand. It cannot exchange oxygen. It collapses. In a simple pneumothorax, the collapse is partial, and the remaining lung tissue compensates. In a tension pneumothorax, the condition that a traumatic pneumothorax can progress to without treatment, the trapped air continues to accumulate with each breath because the tear acts as a one-way valve: air enters the pleural space on inhalation but cannot escape on exhalation. The pressure builds. The injured lung collapses completely. The accumulated pressure then begins to push the mediastinum, the central compartment of the chest containing the heart, the great vessels, and the trachea, toward the opposite side. The heart is compressed. Venous return is obstructed. Blood pressure drops. Cardiac output fails. The patient dies. The progression from traumatic pneumothorax to tension pneumothorax to cardiovascular collapse can occur in minutes. Without surgical intervention, without a chest tube to evacuate the trapped air and re-expand the lung, the mortality rate for a tension pneumothorax approaches one hundred percent. Rosario had been walking around with this condition for nearly twenty-four hours. Staff advised that he needed immediate emergency treatment. The message was blunt: he could die. Not might. Could. The language of a clinician who understood that the margin between the man sitting in front of her and a body on a slab was measured in hours, not days.

Victoria drove him to the first emergency room. The waiting room was packed: the pandemic had done that to hospitals, turned them into triage warehouses where the merely dying waited behind the actively dying, and Rosario, who could still sit upright and breathe in shallow, agonized gasps, was not yet dying fast enough to jump the queue. They waited. Victoria watched the color drain from his face with each passing minute, and made the decision to leave.

The second hospital was worse. Not worse in the waiting, but worse in its refusal. The staff looked at the X-rays Victoria had brought from One Medical, looked at the pneumothorax, looked at the man doubled over in the passenger seat of the car outside, and said the words that no injured person should ever hear from a medical facility: we do not handle trauma. Go somewhere else. They were turning away a man with a life-threatening pneumothorax. In a city with some of the finest medical institutions in the world, a man whose lung was collapsing, whose pleural cavity was filling with trapped air that would eventually compress his heart and kill him, was being told to get back in the car and keep looking. The second hospital called an ambulance and transferred him to Zuckerberg San Francisco General Hospital. The city's trauma center, the place that handled gunshot wounds and car accidents and the injuries that other hospitals could not or would not touch.

Three hospitals. A man with a life-threatening pneumothorax, five fractured

posterior ribs, and a traumatic brain injury, driven from one to another like a package that no one wanted to sign for. A man whose lung was collapsing, whose chest cavity was filling with trapped air, who was hours away from the cardiovascular collapse that untreated tension pneumothorax produces. The three-hospital odyssey of February 5, 2021, was a preview of every institutional failure that would follow: the system existed, the resources existed, the obligation existed, and yet the man who was dying kept being told that his emergency was someone else's problem.

The ambulance ride was a blur. The lights. The sirens. The paramedics working above him, their voices calm and clinical in the way that emergency medical professionals are trained to sound when a patient is in extremis. Rosario was conscious, which was both a mercy and a cruelty. A mercy because it meant the brain injury had not rendered him comatose, and a cruelty because it meant he was aware of every jolt of pain, every moment of disorientation, every fragment of a world that no longer assembled itself correctly inside his skull.

The gurney rattled over the uneven San Francisco streets, and each bump sent a fresh spike of agony through his broken posterior ribs, the fractured ends grinding against intercostal nerves with each vibration, the ribs that had been shattered from behind, where the van had driven its mass into his back. Each jolt was also a risk. Each sudden movement could shift a bone fragment, could worsen the pleural tear, could accelerate the pneumothorax that was already stealing his ability to breathe. He stared at the ceiling of the ambulance, the fluorescent light fixture, the stainless-steel cabinets of medical supplies, the IV bag swinging gently from its hook. These were the first images of his new life, though he did not know that yet. He was still thinking in terms of his old life, the one where an ambulance ride was something that happened to other people, the one where his body was a reliable instrument that carried his mind where it needed to go without complaint or negotiation.

At Zuckerberg, Rosario received pain relief and underwent emergency surgery for his collapsed lung. Surgeons inserted a chest tube between his ribs to evacuate the trapped air from his pleural cavity and allow the lung to re-expand. The procedure was not elective. It was the intervention that stood between Rosario and death. Without it, the pneumothorax would have continued to progress, compressing his heart, collapsing his cardiovascular system, and killing him. He remained approximately four days.

COVID restrictions prevented Victoria from visiting. Think about that. A man who had been struck by a van, whose ribs were broken, whose lung had collapsed from a pneumothorax that would have killed him without the surgery he had just received, whose brain had been damaged, who had crawled across a crosswalk to save his own life, who had been turned away from two hospitals before reaching the one that would operate on him, that man lay in a hospital bed for four days, alone, unable to see or touch the woman he loved. The pandemic had sealed the wards. Victoria could not sit beside him. She could not hold his hand. She could not be the face he saw when he woke from the surgery. He woke to fluorescent

lights and strangers and the beeping of machines, and the isolation compounded the injury in ways that no medical chart could quantify. He was injured, afraid, and alone, the same condition he had been in on the pavement at Fifth and Tehama, and the same condition the institutions of the state of California would impose on him, in different forms, for the next five years.

And on the other side of those sealed hospital doors, Victoria Brooks Rosario was living her own catastrophe.

She had driven him to three hospitals. She had watched the color leave his face as his oxygen levels dropped, watched his breathing become shallow and labored as the pneumothorax stole more of his lung capacity with each passing hour, watched the man she loved and had built a life with become someone she could not reach. She had argued with intake nurses. She had carried X-rays from one facility to another. She had done everything a partner does when the person they love is dying, and then the hospital had closed the door and told her she could not come in.

She went home to an empty house. The house that had been filled, just yesterday, with the rhythms of a shared life, his voice on a work call in the home office, his footsteps in the hallway, the small domestic sounds that constitute the architecture of a life built together. The house was silent now. And Victoria sat in that silence and absorbed a truth that would reshape her own existence for the next five years: the man she had agreed to marry, the man whose strength and competence and relentless capability had been the foundation of their shared life, was lying in a hospital bed with a shattered body and a damaged brain, and nothing would ever be the same.

She did not know yet how deep the change would go. She did not know that she would become his caregiver before she became his wife. She did not know that the financial burden of the household would shift entirely to her shoulders; that the man who had earned between $550,000 and $1,000,000 a year would qualify for a court fee waiver. She did not know that the litigation would consume years of their lives, that every conversation would eventually circle back to the case, that the stress of fighting a multi-billion-dollar institution would infiltrate every corner of their relationship. She did not know that she would watch him struggle with tasks that had once been effortless, remembering appointments, sustaining conversations, managing the cognitive demands of daily life, and that her heart would break a little more each time she saw the effort it cost him to do what he had once done without thinking.

She knew only that her partner was in a hospital she could not enter, that a van had struck him in a crosswalk and the driver had fled, and that the police had somehow decided it was Frank's fault.

The compound harm had already begun its work on the family. Not just on Frank. On Victoria. On his children. On his sister Emily, who had heard his voice on the phone; ragged, desperate, afraid of dying as a John Doe. On everyone who loved Frank Rosario, the damage radiated outward like the shockwave from

an explosion, each person absorbing their own portion of the devastation, each person beginning their own journey through a grief that had no name because the person they were grieving was still alive.

On discharge, Victoria and Robert Bloodgood, a Rowzzy employee, picked him up.

The diagnosis was catastrophic. Traumatic brain injury. Five fractured posterior ribs. Traumatic pneumothorax requiring surgical chest tube insertion. Spinal damage. Disfigurement. Five categories of injury, each severe in its own right, each compounding the others into a cascade of suffering that would reshape every dimension of Rosario's existence. The pneumothorax had required emergency surgery at Zuckerberg San Francisco General. Without the chest tube, without the evacuation of the trapped air that had been compressing his lung for nearly twenty-four hours, the pneumothorax would have progressed to tension pneumothorax. His heart would have been compressed. His blood pressure would have collapsed. He would have died. That was not speculation. That was the clinical trajectory of an untreated traumatic pneumothorax, documented in every emergency medicine textbook, confirmed by decades of trauma surgery data. Published studies on traumatic pneumothorax secondary to multiple rib fractures reported mortality rates between fifteen and forty percent even with treatment, and approaching one hundred percent when tension pneumothorax developed without intervention. Frank Rosario survived because Victoria drove him to three hospitals until one of them operated. He survived because the chest tube was placed in time. He survived despite every institutional failure, not because of any institutional success. And the location of the fractures; posterior, along the back; was itself a medical record of the mechanism of injury. These were not the fractures of a man who fell forward off a scooter. These were the fractures of a man who was run down from behind.

Traumatic brain injury was not a metaphor. It was not an abstraction. It was a specific, documented, physiological alteration of the organ through which the injured person processed every dimension of lived experience. When a neurologist described "diffuse axonal injury," the clinical language masked a reality that was almost impossible to convey to someone who had not experienced it. The brain did not break like a bone, with a clean fracture line that could be set and healed. The brain tore. Microscopically, invisibly, in ways that often did not appear on standard imaging, the axonal fibers that connected one region of the brain to another were stretched and sheared and disrupted. The damage was scattered. It was diffuse. It affected not one function but many; memory, attention, executive function, emotional regulation, sensory processing, fatigue tolerance, impulse control. The injured person did not lose one thing. The injured person lost a fraction of everything.

For Frank Rosario, the fraction that was lost was the fraction that mattered most.

He was a senior AI systems architect. His professional identity: his economic

value, his creative purpose, his daily experience of meaning and competence: was built on cognitive capacities that most people never develop and that the few who do spend decades refining. The ability to hold an entire system architecture in working memory. The ability to reason about interactions between dozens of components operating simultaneously. The ability to switch between macro-level design and micro-level implementation in the same hour, the same meeting, the same sentence. The ability to sustain concentration at a high level of abstraction for hours at a stretch, day after day, week after week, through the unrelenting pressure of deadlines and client expectations and the inherent difficulty of working at the frontier of artificial intelligence.

His W-2 compensation in the years before the collision ranged between $550,000 and $1,000,000 per year. Those numbers were not inherited. They were not the product of connections or family wealth or an Ivy League pedigree. Rosario was the son of immigrants. He had built his career from nothing, through technical mastery and the relentless, obsessive pursuit of craft. Every dollar he earned represented a cognitive capacity that he had developed, refined, and deployed in the marketplace. The marketplace had valued those capacities at the highest tier of American professional compensation because they were rare, because they were real, and because the companies that employed him could not get what he provided from anyone else.

The traumatic brain injury did not make him stupid. That was the cruelest dimension of a TBI that fell short of total incapacitation. Rosario could still think. He could still analyze. He could still write with precision and construct logical arguments with rigor. He could still see patterns and draw inferences. He was still, by any conventional measure, an intelligent man. But the overhead cost of every cognitive act had increased by an order of magnitude. Tasks that had once been automatic now required conscious effort. Sequences that had once been fluid now required deliberate planning. Sustained focus, which had been his natural state, now required active maintenance and was subject to sudden, unpredictable collapse. The working memory that had allowed him to hold an entire system architecture in his mind simultaneously was now constrained and unreliable, like a hard drive with bad sectors that could not be mapped or repaired.

He lay in the hospital and felt the damage. Not as a single, identifiable wound, but as a pervasive wrongness: a sense that the instrument through which he experienced the world had been knocked out of tune, and that no amount of rest or medication or rehabilitation was going to restore it to perfect pitch.

XI.

Rosario was advised bedrest: no lifting, reaching, or pulling. He was bedridden approximately two months. Follow-up care came through One Medical (video consultations), Kaiser, and Blue Buddha (acupuncture, four or five sessions).

The traumatic brain injury resulted in increased cognitive overhead and reduced sustained focus capacity.

The hospital stay was the beginning of a new reality. Not a temporary reality. Not a recovery period with a defined end date and a return to normalcy waiting on the other side. A permanent reality. A life reorganized around the management of damage that could be accommodated but not reversed.

The fluorescent lights in the hospital room hummed at a frequency that most people never notice. Rosario noticed. He noticed it because his brain, freshly damaged, had lost some of its capacity to filter sensory input. The automatic, unconscious process by which a healthy brain sorts relevant signals from noise. Every sound was louder. Every light was brighter. The beeping of the heart monitor, the squeak of rubber-soled shoes in the corridor, the murmur of a television in an adjacent room. All of it arrived with an intensity that was physically painful. That was one of the lesser-known consequences of traumatic brain injury: the world did not become dimmer. It became unbearably vivid. The brain, stripped of its filters, is flooded with stimuli it can no longer manage, and the result is a kind of sensory siege that makes even a quiet hospital room feel like standing in the middle of a construction site.

Victoria came. His children came. His family gathered around and looked at a man who was recognizably himself but who was also, in ways that would only become clear over the weeks and months that followed, a different person. The cognitive overhead that the TBI imposed was invisible to the naked eye. There was no cast. There was no scar that could be pointed to and explained. There was only the gradual, grinding realization that the things that had come easily before the collision (remembering a conversation from that morning, following a complex line of reasoning, staying awake through an entire afternoon) now required effort that was exhausting and sometimes impossible.

16 months later, the posterior ribs healed. Ribs do that. The body knits bone back together with a reliability that medicine can facilitate but does not need to direct. Spinal damage is permBut even healed, the calluses left by the fractures would remain visible on imaging for years, five posterior fractures, marking the exact points where the van's force had entered Rosario's back, a permanent skeletal record of the direction of impact that no defense narrative could erase. The spinal damage stabilized. Spinal injuries exist on a spectrum, and Rosario's, while painful and limiting, did not result in paralysis. Physical therapy, medication, careful management, the body could be coaxed toward a version of function that, while diminished, was compatible with daily life.

But the brain did not heal the way ribs healed. The brain did not knit itself back together. The neural pathways that were sheared on February 4, 2021, when a 2018 Ford Transit cargo van ran down a pedestrian from behind in a crosswalk at Fifth and Tehama, remained sheared. The diffuse axonal injury was permanent. The cognitive overhead was permanent. The loss was permanent.

And outside the hospital, in the world of paperwork and phone calls and institu-

tional processes that would determine whether Rosario ever received compensation for what had been done to him, the machinery of the insurance industry was already beginning to move.

CHAPTER 6: Twenty-One Days

I.

Twenty-one days.

That is how long it took. Twenty-one days after a white van ran down a pedestrian from behind in a crosswalk, shattering five posterior ribs, ribs that can only break from a blow to the back. Twenty-one days after the driver moved his van over 150 feet away to avoid liability. Twenty-one days after the driver walked back and offered a five-dollar bribe. Twenty-one days after the driver confessed to 911 and then lied. Twenty-one days after an independent witness confirmed the hit-and-run. Twenty-one days after five body cameras rolled at the scene. Twenty-one days after the police wrote a report that blamed the victim, ignored the evidence, and failed to notice that the fracture pattern in the victim's body was biomechanically impossible under the story they had just recorded.

On February 25, 2021, CSAA Insurance Exchange, a member of the AAA federation, one of the largest automobile insurers in California, mailed Frank Rosario a letter. The letter, signed by CSAA adjuster Sarah Rash, made two affirmative statements of completed fact: "We have concluded our investigation of your claim" and "Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim." The word "concluded" appeared twice. The phrase "carefully reviewing" appeared once. The denial letter was unsolicited. Rosario had never communicated with the insurance company before receiving it.

Concluded.

The word carries weight. It implies completion. It implies that the steps of an investigation have been performed, that evidence has been gathered and analyzed, that a reasonable process has produced a defensible result. A man receiving that letter from a multi-billion-dollar insurance company is meant to understand that the institution has done its homework.

CSAA had not done its homework. CSAA had not obtained the 911 recording, the one containing Abdelhalim's confession. CSAA had not obtained the body-worn camera footage; the five videos capturing eyewitness testimony that directly

contradicted the police report. CSAA had not obtained the computer-aided dispatch logs that linked the calls, the cameras, and the police response into a single corroborated chain. All of it was sitting in the SFPD's records system, available through routine public records requests, the kind of requests that any competent insurance adjuster would know to make before declaring an investigation "concluded" in a catastrophic-injury pedestrian case.

What CSAA apparently had was the police report. A hearsay document. A report authored by an officer who did not witness the collision, built on secondhand summaries of the defendant's own fabricated story, contradicted by five body-worn cameras, contradicted by the 911 confession, contradicted by the eyewitness account, and contradicted by the fracture pattern in the victim's own body. The officers who wrote it had adopted Abdelhalim's narrative without independent investigation; the narrative of a neighborhood business owner they knew from the beat, delivered with the confidence of a man speaking to familiar faces in uniform. CSAA treated this hearsay document as gospel.

In twenty-one days, without reviewing a single piece of the primary evidence that would have told any investigator exactly what happened at Fifth and Tehama, a multi-billion-dollar institution declared that its insured had done nothing wrong. The denial letter was mailed. The file was closed. The claim was dead.

Or so they thought.

Because the man they had just dismissed; the man lying in a hospital bed with a traumatic brain injury, five fractured posterior ribs, and spinal damage; had X-rays in his medical file that told a story CSAA never bothered to read. Five posterior rib fractures. Ribs broken from behind. The anatomical proof that this man had been struck from the rear by a moving vehicle, not fallen forward off a scooter. If CSAA had obtained those medical records; the basic obligation of an insurer "carefully reviewing the facts and circumstances" of a catastrophic-injury claim: the fracture pattern alone would have destroyed its insured's "no contact" narrative. Posterior ribs do not break from the front. They break from the back. And the only thing that delivered force to Rosario's back at 2:40 PM on February 4, 2021, was a 2018 Ford Transit cargo van. CSAA did not look. The man whose claim they had just denied was Frank Dylan Rosario.

And Frank Dylan Rosario was not the kind of man who accepted a lie just because it came printed on institutional letterhead.

He had spent his entire career debugging systems. Finding the error in the code. Tracing the failure back to its root cause. Identifying the point where the logic broke and the output diverged from the expected result. He had been paid hundreds of thousands of dollars a year to do precisely that: to look at a system that was producing the wrong answer and figure out why. The denial letter was, in every sense that mattered to a man of his particular temperament and training, a system producing the wrong answer. And when a system produces the wrong answer, you do not accept the output. You interrogate the process. You trace the inputs. You find the bug.

The bug, in this case, was that the insurance company had not looked at the evidence before declaring the case closed. And the evidence, as it would turn out, told a story that the insurance company very much did not want told.

XIII.

He did not know it yet, lying in that hospital bed, staring at the ceiling with a brain that was still learning to process the new limitations it would carry forever. He did not know that the 911 recording existed, that the body cameras had captured the eyewitness, that the dispatch logs would link it all together into an evidentiary chain so powerful that any competent attorney could have used it to destroy the defense in a single afternoon. He did not know that those materials would be obtained by his attorneys within three months, produced to the defense during discovery, used in the defendant's own deposition, and then: years later, at the threshold of trial. Denied, suppressed, and characterized by defense counsel as materials of "unknown provenance" that were "news to me."

He did not know that the defense's lie about the evidence would require a second lie to protect the first. He did not know that the second lie would eventually collapse in a single sentence on a certified trial transcript, spoken casually by the very attorney who had constructed the deception: "Sure. They were provided by Dolan. He has had them for whatever, sure."

He did not know any of that. He knew only that he had been hit by a van in a crosswalk. That the driver had fled. That the driver had tried to buy his silence for five dollars. That the driver had confessed and then lied. That the police had blamed him. That the insurance company had declared, in twenty-one days, that none of it mattered.

He would learn the rest. He would learn it the hard way. Through years of litigation, through the betrayal of attorneys who abandoned him, through the experience of standing alone in a courtroom as a pro per plaintiff with a traumatic brain injury, facing a wall of institutional power and legal expertise funded by a corporation with bottomless resources. He would learn it through the record. Through transcripts and filings and exhibits that told a story the institutions did not want told. He would learn it because he was the kind of man who read the record, saw the contradictions, and understood what they meant.

But that was all in the future. On February 4, 2021, there was only the crosswalk, the van, the cold pavement, and the four words that a driver spoke into a phone while his victim lay injured on the ground, bleeding internally.

"I barely hit him."

The recording was preserved. The voice was captured. The words were in the system, waiting. They would wait for years. They would survive suppression, exclusion, mischaracterization, and fraud. They would survive everything the

defense and the insurance company and the legal system threw at them, because digital files do not forget, and recordings do not lie, and the truth, once captured, has a way of outlasting the institutions that try to bury it.

This was the story of how one man, armed with nothing but the record, fought to make the system hear those four words.

It began in a crosswalk, on a cold February afternoon, in a city that was not paying attention.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, police records, 911 dispatch recordings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102. No events have been invented. No characters have been fabricated. No dialogue has been manufactured. The timeline is based on the documented incident record published at aaa-sonoma-liquor.gitbook.io/aaa-sonoma-liquor/timeline.

II.

The envelope arrived three weeks after the collision.

It was a standard business envelope, the kind that insurance companies mail by the millions, white, #10, the CSAA Insurance Exchange logo printed in the upper-left corner. Inside was a single document. A letter. Dated February 25, 2021. Twenty-one days after Frank Rosario was run down from behind in a crosswalk by a 2018 Ford Transit cargo van. His posterior ribs shattered by the impact, the fracture pattern a forensic record of force delivered to his back, and left bleeding internally on cold pavement while the driver fled.

The letter stated that CSAA had "concluded" its investigation and determined that its insured, Subhi Abdelhalim, was not liable.

Concluded. The word sat on the page like a period at the end of a sentence, closing off inquiry, shutting down debate. An investigation had been conducted. A conclusion had been reached. The machinery of institutional judgment had turned its gears and produced a result, and the result was that CSAA owed Frank Rosario nothing.

A reasonable person receiving that letter from one of the largest automobile insurers in California, a member of the AAA federation, a company with thousands of adjusters and claims handlers and institutional resources that dwarfed anything available to an individual pedestrian with a traumatic brain injury (would have understood "concluded" to mean something. It would have meant that someone had done the work. That an adjuster had pulled the police report, read it carefully, and then) as any competent investigator would (compared its narrative against the primary evidence: the 911 recording, the body-worn

camera footage, the dispatch logs, the eyewitness statements. That someone had noticed that the police report was hearsay) a secondhand summary of the defendant's own self-serving account, authored by an officer who did not witness the collision, contradicted by five body-worn cameras, contradicted by the 911 confession, contradicted by the eyewitness. That someone had listened to the driver's own words on the 911 call. That someone had watched what the body-worn cameras captured. That someone, somewhere in the institutional apparatus of CSAA Insurance Exchange, had performed the baseline investigative steps that any competent automobile liability inquiry demands before a company tells an injured claimant that the investigation is over and the answer is no.

None of that had happened. What CSAA had was simpler. It had its insured's same-evening phone call, Abdelhalim's self-serving account delivered the night of the collision; and, at most, the police report that adopted that same account wholesale. The hearsay police report, built on the defendant's fabricated story and contradicted by every primary source of evidence at the scene, was apparently sufficient. CSAA did not look behind it.

CSAA had not requested the 911 recording. The recording that contained the driver's own words, "I barely hit him"; sat in the San Francisco Police Department's records system, unrequested and unheard. CSAA had not requested the body-worn camera footage from any of the five responding officers. The footage that would have shown the intersection, the crosswalk, the physical evidence of what happened on February 4, 2021, remained in SFPD custody, untouched by the insurer that claimed to have completed its investigation. CSAA had not requested the CAD dispatch logs. The logs that would have documented the timestamps, the response sequence, the fundamental chronology of the event were still sitting in the department's database, unexamined.

The investigation that CSAA claimed to have "concluded" had never been conducted.

II.

There was a word in insurance law for what CSAA did. The word was "bad faith."

It was a word that carried the weight of a half-century of California jurisprudence; a body of law built case by case, insurer by insurer, denial by denial, as the courts of that state confronted the same pattern of institutional abuse and said, each time with increasing force: you cannot do this.

In 1958, the California Supreme Court decided Comunale v. Traders & General Ins. Co., 50 Cal.2d 654. The case involved an insurer that refused to settle a claim within policy limits, gambling that a jury would return a defense verdict. The jury did not. The verdict exceeded the policy. The insured was ruined. And the Supreme Court said something that would reshape insurance law across

the nation: every insurance contract carries an implied covenant of good faith and fair dealing. The insurer owes a duty, not to maximize its own profit, not to close files as quickly as possible, not to deploy the language of investigative completeness as a weapon against injured people: but to give at least as much consideration to the claimant's interests as to its own. Comunale was decided in 1958. CSAA violated its holding in 2021. Sixty-three years of settled law, ignored.

Fifteen years after Comunale, the Supreme Court went further. In Gruenberg v. Aetna Ins. Co. (1973) 9 Cal.3d 566, the Court held that an insurer's bad faith is not merely a breach of contract. It was a tort. An independent civil wrong that carried the full weight of tort liability: emotional distress damages, consequential damages, and punitive damages. Before Gruenberg, an insurer that wrongfully denied a claim faced only contract remedies. Pay the policy amount, add some interest, move on. The economics were simple. Deny ten claims. Get caught on three. Pay the policy amount on those three. Keep the money on the seven that gave up. Profit. Gruenberg changed the calculus. The Supreme Court recognized what the industry had known for decades but the law had failed to address: that the power imbalance between a multi-billion-dollar insurer and an individual claimant was so extreme, so structurally embedded, so impossible for the individual to overcome through contract remedies alone, that only the threat of tort liability; with its potential for punitive awards that would make wrongful denial unprofitable: could discipline the industry into compliance.

Six years later, the Court drove the principle to its logical conclusion in Egan v. Mutual of Omaha Ins. Co. (1979) 24 Cal.3d 809. In that case, an insurer denied a policyholder's disability benefits by simply reclassifying his injury as an illness, without ever having its doctors examine the man or consult his treating physicians. The California Supreme Court intervened and established a non-negotiable standard: an insurer cannot simply look for reasons to deny a claim. It has an affirmative legal duty to thoroughly investigate and search for evidence that supports the insured's claim. The Court held, at page 819, in language that reads as if it were written about CSAA: "For the insurer to fulfill its obligation not to impair the right of the insured to receive the benefits of the agreement, it again must give at least as much consideration to the latter's interests as it does to its own." And then the Court said the thing that makes Egan the most devastating precedent in the CSAA case: an insurer cannot reasonably deny a claim when it has failed to investigate the facts upon which its denial is based. The duty to investigate was not aspirational. It was a prerequisite. A 21-day denial without requesting the 911 tape or body cameras is a textbook Egan violation. An insurer that skipped the investigation and proceeded directly to denial had committed bad faith as a matter of law.

Read that again. As a matter of law. Not as a question for the jury. Not as a factor to be weighed. As a matter of law. An insurer that denied without investigating had, by definition, acted in bad faith. CSAA denied Rosario's claim in twenty-one days without requesting the 911 recording, the body-worn

camera footage, or the dispatch logs. Under Egan, the bad faith determination was not a close call. It was arithmetic.

And the consequences are severe. In Neal v. Farmers Ins. Exchange (1978) 21 Cal.3d 910, the Supreme Court held that punitive damages are available in insurance bad faith cases when the insurer's conduct reflects a "conscious disregard" of the claimant's rights. The Neal standard does not require malice in the Hollywood sense, no mustache-twirling villain plotting the claimant's destruction. It requires something more common and more dangerous: institutional indifference. A corporate decision-making process that places efficiency above honesty, that rewards file closure over genuine investigation, that treats the word "concluded" as a stamp to be applied rather than a conclusion to be earned. CSAA's twenty-one-day denial; issued while Rosario was still in a hospital bed, before any of the foundational evidence had been sought. Satisfies the Neal standard with room to spare.

The duty to investigate before denying was not an abstract principle. It was the foundation upon which the entire claims-handling system rested. If an insurer could declare its investigation "concluded" without performing the investigation, the word "concluded" became meaningless. It became a rubber stamp. A form letter. A weapon dressed in the language of due diligence. California courts had been saying this since 1958. The message had not changed. Only the insurers had changed, and they kept doing it anyway, because the institutional profit motive was stronger than the institutional memory of legal consequence.

Civil Code sections 1709 and 1710 define fraud and deceit to include the assertion of a fact not warranted by the information of the person asserting it, and the suppression of a fact by a person who is bound to disclose it. The denial letter did not assert an opinion. It asserted a fact: that the investigation had been concluded. The assertion was not warranted by the information CSAA possessed, because CSAA had not gathered the information necessary to conclude anything.

That distinction, between opinion and factual assertion, was the fulcrum on which the fraud case turned. An insurer was permitted to form an opinion about liability. An insurer was permitted to disagree with a claimant about fault. Those were judgment calls, and the law gave insurers latitude to exercise judgment. But an insurer was not permitted to represent that an investigation had been completed when it had not. That was not a judgment call. That was a factual assertion. And factual assertions were either true or false. In Neu-Visions Sports, Inc. v. Soren/McAdam/Bartells (2000) 86 Cal.App.4th 303, 309-310, the Court of Appeal drew precisely this line: a statement is actionable when it "expressly or impliedly asserts a specific verifiable fact." The word "concluded" is a specific, verifiable fact. Either the investigation was performed, or it was not. CSAA's own claim file answers the question.

The denial letter's use of "concluded" was a factual assertion. It was false. And the falsity is provable from CSAA's own records.

III.

Imagine the claims file.

It sits in CSAA's system, electronic, most likely, the kind of digital file that modern insurance companies maintain for every claim they process. The file has a number. It has a claimant name. It has an adjuster assigned. It has a series of entries, each timestamped, each documenting a step taken in the investigation. Phone calls made. Letters sent. Documents received. Reports reviewed.

Now imagine what is not in the file.

No entry requesting a copy of the 911 recording from the San Francisco Police Department. No entry requesting body-worn camera footage from any of the five responding officers. No entry requesting Computer Aided Dispatch logs. No entry documenting that any of these materials were received, reviewed, or considered in reaching the conclusion that the insured was not liable. The file tells the story of what CSAA did in those twenty-one days. And what the file reveals (what it must reveal, because the absence of records is itself a record) is that CSAA did not perform the foundational steps of an automobile liability investigation before declaring that investigation complete.

CSAA Insurance Exchange was not a storefront operation run out of someone's garage. It was a member of the AAA federation. It was one of the largest automobile insurers in the state of California. Its claims-handling operation processed tens of thousands of claims every year, staffed by trained adjusters working from standardized protocols. Those protocols existed for a reason. They ensured that claims were evaluated consistently, that evidence was gathered before conclusions were reached, that the insurer's determination rested on an informed assessment rather than a guess.

The twenty-one-day denial of a catastrophic-injury pedestrian claim, without obtaining the three most fundamental categories of evidence available (the 911 recording, the body-worn camera footage, the dispatch logs) was not a protocol failure. A protocol failure implies that the protocol existed and someone deviated from it. This was something simpler. This was an institution that decided, three weeks after a man was struck in a crosswalk, that its conclusion was more important than its evidence.

The institutional economics are not a mystery. Every claim paid reduces the insurer's profit. Every claim denied protects the bottom line. The early denial (the denial that arrives before the claimant has counsel, before the claimant has evidence, before the claimant has the resources or the knowledge to challenge the determination) is the most effective tool in the insurance company's arsenal.

The insurance industry knows this. The insurance industry has studied it. In the 1990s, Allstate Insurance Company hired McKinsey & Company, the most prestigious management consulting firm in the world; to redesign its claims-handling process. The internal documents that emerged from that engagement,

made public through subsequent litigation, revealed a strategy so calculated, so deliberate, so explicitly designed to weaponize the denial process against injured people, that it would have been dismissed as conspiracy theory if the documents had not been produced under oath. McKinsey advised Allstate to treat every claim as a negotiation to be won, not a promise to be honored. Claimants who accepted lowball offers, the "good hands" approach: were processed quickly. Claimants who pushed back were met with what the internal documents called "boxing gloves." The strategy was to make litigation so expensive, so protracted, so exhausting that the claimant would capitulate. The deny-delay-defend model was not invented by a rogue claims adjuster. It was designed by McKinsey consultants in conference rooms and implemented as corporate policy by one of the largest insurers in America.

The strategy worked. It worked so well that it spread. By the early 2000s, elements of the McKinsey model had been adopted across the industry. In 2003, the United States Supreme Court confronted its consequences in State Farm Mutual Automobile Ins. Co. v. Campbell, 538 U.S. 408. The Campbell case exposed what the Court called a "nationwide practice" of denying legitimate claims through "trickery and deceit." State Farm had maintained internal protocols that capped payouts, fabricated evidence, and pressured claims handlers to deny meritorious claims. A Utah jury, having seen the evidence, awarded $145 million in punitive damages: a number so large it reached the Supreme Court on due process grounds. The Court reduced the award. But it affirmed that State Farm's conduct was reprehensible. And it described the institutional pattern in terms that could have been written about CSAA's twenty-one-day denial: a corporate decision to deny first and investigate never, wrapped in the language of due diligence, designed to exploit the power differential between a multi-billion-dollar institution and the individuals it was supposed to protect.

CSAA's denial letter was not an aberration. It was a product of this institutional culture. A culture in which the word "concluded" was a stamp, not a conclusion. In which the phrase "carefully reviewing" was a template, not a practice. In which a brain-injured pedestrian receiving a letter from a multi-billion-dollar corporation telling him the investigation was "concluded" did not know that the investigation had never been conducted. He did not know that the 911 recording of the driver's own confession sat unrequested in a police records database. He did not know that the body-worn camera footage, the dispatch logs, the physical evidence of what happened to him, had never been sought. He knew only that the institution had spoken, and the institution's answer was no.

Many claimants stopped there. That was the design. That was the McKinsey model in its purest form. That was the institutional machinery that California courts had been fighting since Comunale in 1958: and that the insurance industry kept rebuilding, because the economics of wrongful denial remained profitable as long as enough claimants accepted the lie.

IV.

Rosario did not stop there.

He could not stop there, because he was a man whose brain injury had not destroyed his capacity for analysis. It had only made it harder to deploy. He was a systems architect. He was a man who had spent decades looking at complex systems and identifying their failure points. The denial letter, in a sense, was a system failure that he could see even through the fog of his injury. Something was wrong with the conclusion. Something was wrong with the speed. Twenty-one days. An investigation that ended before it began.

But the denial letter did more than deny a claim. It denied a reality. And for a man already reeling from the collision, the police betrayal, the hospital odyssey, and the first weeks of a traumatic brain injury that had turned his own mind into unfamiliar territory, the denial letter delivered a wound that was not physical but was no less real.

Imagine receiving that letter. You are lying in bed. Your ribs are fractured. Every breath is an exercise in pain management. Your brain, which once held the architecture of complex AI systems in its working memory, now struggles to follow a conversation across three sentences. Your fiancee is trying to hold the household together while watching you diminish day by day. Your children are calling, and you cannot explain to them what has happened because you cannot fully explain it to yourself. The medical bills are arriving. The income has stopped. The career that defined you; the career that gave you not just money but identity, purpose, the daily experience of being competent and valued. Is slipping away.

And then the envelope arrives. White. Corporate. The logo of one of the largest insurance companies in California. You open it with hands that still shake from the neurological damage. You read the words. "Concluded." "Not liable." "Decline your claim."

Twenty-one days. They spent twenty-one days deciding that your shattered body, your damaged brain, your collapsed lung, your fractured ribs, your destroyed career, your financial ruin, your family's suffering, all of it was worth nothing. Twenty-one days of "investigation" to declare that a man who was struck from behind in a crosswalk by a two-ton van, who was left on the pavement to die, whose own driver confessed on a 911 recording, that man did it to himself.

The psychological effect of an institutional denial of this magnitude is not adequately captured by the word "frustration." It is something closer to existential erasure. A multi-billion-dollar corporation has looked at the catastrophe of your life and declared it irrelevant. The machinery of one of the largest financial institutions in the country has processed your suffering through its systems and produced a one-page letter that says, in essence: you do not matter. Your pain does not matter. Your family's anguish does not matter. The truth of what happened to you does not matter. What matters is the bottom line, and the

bottom line says no.

For a man already struggling with the cognitive and emotional aftermath of a traumatic brain injury, the denial letter was not merely an administrative setback. It was a second collision. The first collision broke his body. The denial letter broke something else, the belief that the system would work, that the institutions designed to protect injured people would function as intended, that the premiums paid and the policies purchased meant something when the worst happened. That belief, already shaken by the police who wrote a fabricated report, was now shattered by the insurance company that endorsed it. Two institutions. Two betrayals. Each building on the last. The compound was beginning, and it would not stop for five years.

Victoria read the letter too. She stood in the kitchen of their home and read the words, and she felt the same erasure, not of her body, but of her hope. The hope that the system would handle this. That the insurance company would pay the medical bills. That the financial pressure would ease. That she would not have to carry the entire weight of the household on her shoulders while simultaneously caring for a man whose injuries demanded constant attention. That hope died in a white #10 envelope with a corporate logo, and in its place grew something harder and more durable: the understanding that no one was coming to help. That the institutions she had trusted were not trustworthy. That the fight for justice would fall to them: to Frank, with his damaged brain, and to her, with her exhausted body and her breaking heart, and that the fight would be long, and expensive, and lonely, and that the only alternative was to accept the lie.

But in those early weeks after the collision, Rosario was in no condition to mount a legal challenge. The traumatic brain injury had left him struggling with basic cognitive tasks. His ribs were fractured. His spine was damaged. He was in pain, constant and unrelenting, the kind of pain that colonizes every waking moment and turns sleep into a series of interrupted agonies. He did what injured people do: he found a lawyer.

The Dolan Law Firm took the case. And within three months. Three months, not twenty-one days, but three months of actual investigative work; the firm had done what CSAA had not. It had submitted a public records request to the San Francisco Police Department. It had obtained the 911 audio recording, the body-worn camera footage from all five responding officers, and the CAD dispatch logs. It had assembled the evidentiary foundation that any competent investigation requires.

The contrast is devastating.

A small plaintiff's law firm, working with the resources available to a personal injury practice, obtained through routine public records requests the three categories of evidence that a multi-billion-dollar insurer had not bothered to request before declaring its investigation "concluded." The Dolan firm did not need special access. It did not need a subpoena. It needed a written request, a processing fee, and the willingness to wait for the bureaucracy to produce the

records. The entire process was routine. The evidence was available to anyone who asked for it. CSAA had not asked.

The 911 recording was in the SFPD's system from the moment the call was made. It was a public record from that moment forward. If CSAA's adjuster had requested it (a phone call, a letter, a standard form) the recording would have arrived on the adjuster's desk within weeks. The adjuster would have pressed play. The adjuster would have heard the driver's own voice. "I barely hit him." Four words that would have reframed the entire liability analysis.

But the adjuster did not hear those words. Because the adjuster never asked.

V.

The denial letter was not merely the opening chapter of a coverage dispute. It was a representational event with a fixed timestamp. February 25, 2021. A date that can never be changed, on a document that can never be unsent, bearing language that can never be unwritten.

The first lie set the anchor. Everything that followed (the four years of litigation, the nineteen motions in limine, the suppression of the 911 recording, the "news to me" claims, the nine-to-three verdict) flows from this single document. If CSAA had conducted a genuine investigation in those first twenty-one days, the 911 recording would have been in the claims file before the denial letter was drafted. The driver's own words would have been heard by the adjuster before the adjuster declared the insured "not liable." The case would have proceeded differently, because the starting point would have been different.

Instead, CSAA chose speed over substance. Denial over investigation. The institutional imperative to close files quickly, to move claims off the active docket, to protect the bottom line; this imperative overrode the duty to investigate. And the result was a letter that told an injured man his case was closed, when the evidence that would have kept it open had never been sought.

The denial letter was the fraud anchor. It was the fixed point in the record from which every subsequent event was measured. When the defense would later claim, ten days before trial, that the 911 recording was of "unknown provenance" and had "not been produced in discovery," the anchor holds. The first lie required the second. If the defense had acknowledged the recording's existence, had acknowledged that it had been produced in discovery and sat in their file for years, the question would have followed immediately: how could CSAA have "concluded" a proper investigation twenty-one days after the collision, before the recording had even been sought? The first lie could not survive the acknowledgment of the truth. So the truth had to be denied. The second lie was born of necessity.

But the anchor remains. The letter is in the file. The date is on the document.

The word “concluded” is printed on the page. And somewhere in CSAA’s claims database, the file either contains records of the investigative steps that justify that word, or it does not.

The file did not lie. The file did not forget. The file, like the 911 recording, had a patience that exceeded every institutional effort to rewrite the past.

Twenty-one days. That was all it took for the first lie to be told.

The second would take four years.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

PART TWO: THE EVIDENCE THEY BURIED

The first lie had been told. CSAA had declared its investigation “concluded” without performing it. The denial letter had been mailed. The fabricated police report had provided the institutional cover. A brain-injured pedestrian had been told, twenty-one days after being run down from behind in a crosswalk, that the investigation was over and the answer was no.

But the evidence CSAA had never bothered to obtain was about to enter the case through a different door: and the question of who had it, when they received it, and what they did with it would become the central factual dispute that would expose every lie the defense ever told.

CHAPTER 7: The Dolan Production: The Evidence They All Had

I.

Within three months of the collision, the Dolan Law Firm had what CSAA Insurance Exchange had not bothered to obtain in twenty-one days.

The firm’s paralegal sent a standard public records request to the San Francisco Police Department. On May 12, 2021, the 911 call recording was turned over to

the Dolan Law Firm. There was nothing remarkable about the request. Every plaintiff's firm in the state of California sends requests like it every week. The SFPD processes them in the order received, charges its standard duplication fees, and produces the records in due course. It was the most mundane work in litigation support: clerical, procedural, requiring nothing more than knowledge of which agency held the records and a willingness to wait for the bureaucratic wheels to turn.

The firm obtained three categories of evidence. First, the 911 audio recording. The call that captured Subhi Abdelhalim's voice at the scene, minutes after the collision, containing the four words that would define the case. Second, the body-worn camera footage from all responding officers. Five SFPD officers had responded to the scene on February 4, 2021, and each of them wore a camera that recorded continuously. Those cameras captured the intersection, the crosswalk, the physical aftermath, the witnesses, the statements made at the scene. Third, the Computer Aided Dispatch logs. The CAD system logged every event in the response chain: the timestamp of the 911 call, the units dispatched, the arrival times, the disposition codes. Together, the CAD logs provided the authenticated timeline against which every other piece of evidence could be measured.

The request was routine. The evidence was public. The production was complete.

And the contrast with CSAA's twenty-one-day "concluded" investigation was stark enough to build a fraud case on.

II.

On July 27, 2021, the Dolan Law Firm filed a Personal Injury and Property Damage complaint on behalf of Franciscus Dylan Rosario against Subhi Abdelhalim, individually and DBA Sonoma Liquor, and Does 1 to 50. On September 14, 2021, Michael R. Chambers of Carbone, Smith and Koyama, CSAA's retained counsel. Filed an Answer on behalf of the defendant. The Answer generally denied each allegation.

And then it went further. Buried in the numbered list of affirmative defenses, the standard legal boilerplate that defense attorneys attach to every answer like wallpaper, hoping some of it sticks, was the Fifth Affirmative Defense. It alleged, on "information and belief," that plaintiff was not insured, was driving in violation of Vehicle Code sections 23152 and/or 23153, and was convicted of those violations.

Read that carefully. Vehicle Code sections 23152 and 23153 are California's DUI statutes. The defense was alleging, in a pleading filed with the Superior Court of the State of California, that Frank Rosario was drunk or impaired at the time of the collision and had been convicted of driving under the influence. Not that he might have been. Not that there was some evidence suggesting. On "information and belief"; the legal phrase that means we have some factual basis

for this allegation, the defense stated that Rosario had violated the DUI statutes and was convicted.

This was a fabrication. There was no DUI. There was no conviction. Rosario had not been drinking. He was pushing a dead scooter through a crosswalk at 2:39 in the afternoon on a Thursday. The allegation was invented out of whole cloth and inserted into a legal filing that carried the authority of an officer of the court. It was a lie on paper, signed by an attorney, filed with a courthouse, and served on a brain-injured pedestrian who was still trying to understand what had happened to him.

The Fifth Affirmative Defense was not an innocent mistake. "Information and belief" is a defined term. It requires the pleading attorney to have some factual basis for the allegation. What factual basis did Chambers; or CSAA, the insurer directing the defense, have for alleging that Rosario was convicted of DUI? The record contains none. No police report mentioned alcohol. No body-worn camera captured any indication of impairment. No blood test, no field sobriety test, no witness statement, no toxicology report, nothing in the entire evidentiary record even suggested that Rosario had consumed a single drink. The allegation was manufactured. It was designed to do what false allegations in civil litigation are designed to do: smear the victim, create a narrative of shared fault, and shift the jury's sympathies away from the man who was struck from behind in a crosswalk and toward the man who struck him.

It would remain in the record throughout the litigation. The Fifth Affirmative Defense was never voluntarily withdrawn. It sat in the court file for years, a fabricated accusation of criminal conduct, filed against a man whose only crime was pushing a dead scooter through a crosswalk on a Thursday afternoon.

The Dolan firm did not simply obtain the evidence and file it away. The firm produced the materials to defense counsel during discovery.

Discovery was the process by which both sides in a lawsuit exchanged evidence. It was governed by the Code of Civil Procedure, and it was the mechanism through which the adversarial system ensured that neither party was ambushed at trial by evidence they had never seen. When the Dolan firm obtained the 911 audio, the body-worn camera footage, and the CAD logs, it served them on defense counsel in a single production. The production was unified: all three categories, served together, in one response.

Jeremy Jessup of the Dolan Law Firm would later testify to this under oath. At the February 18, 2025 pretrial hearing, when the authenticity and provenance of these materials became the central issue in the case, Jessup took the stand and laid out the chain of custody with the precision of a man who knew exactly what he was about to say and why it mattered.

"We have, and was produced to defense counsel, body cam footage, about five videos, as well as the 911 audio, as well as the CAD log."

The words are preserved in the hearing transcript at pages 139 through 140.

They have never been contradicted. They have never been impeached. No one: not Navaratnasingham, not Phillips, not Reyna; has ever taken the stand and testified that Jessup was lying. His account stands unrebutted in the certified record.

Jessup went further. "Prior to current defense counsel's involvement, there was another firm involved on behalf of the defense. All of those items were served on them in the production for discovery as well at Mr. Rosario's deposition, in addition, utilized in the deposition of defendants."

The materials were not merely produced. They were used. On August 18, 2022, the deposition of Franciscus Dylan Rosario was conducted. Michael R. Chambers of Carbone, Smith and Koyama. Whose email domain identified him directly as a CSAA employee: michael.chambers@csaa.com; conducted the deposition. The Dolan Law Firm produced and served on the defense the body-worn camera footage (approximately five videos), the 911 audio, and the CAD log. This was the first confirmed time CSAA had access to the 911 recordings and police body-worn camera videos. Chambers was given all of it. The materials were in the defense file from that moment forward.

On September 30, 2022, the deposition of Subhi Abdelhalim was conducted by videoconference. Kimberly E. Levy and Alexandra Cotroneo of the Dolan Law Firm represented the plaintiff. Chambers appeared for the defense. Abdelhalim appeared with handwritten notes he had prepared on the day of the collision and reviewed repeatedly since. He confirmed: "Yes. I look at them again and again to make sure they are right." He denied any impact. "I can't call it. I don't remember what I said": when asked about his 911 statements. But when asked "Do you recall that collision?" he answered "Yes." The contradiction was documented in the deposition transcript and would resurface at trial two and a half years later. He acknowledged the yield sign at the intersection and agreed that "a turning vehicle has a duty to yield the right of way to a pedestrian or someone crossing in the crosswalk" and that "even if you don't see them" the duty was "still true."

By the end of 2022, less than two years after the collision, every party in the case had the evidence. The 911 recording. The body-worn camera footage. The dispatch logs. The defendant's own deposition admitting the collision while denying contact. The evidentiary picture was complete.

Rosario Thread: Now put yourself in Rosario's shoes again, except this time, you do not even know the weapon exists. Your own attorneys have obtained the defendant's recorded confession. They have produced it to the defense. They have used it in depositions. And they have never told you. You are their client. You are the brain-injured man whose entire case depends on this evidence. And your own lawyers are sitting on it. How would you feel when you finally discovered this? When you realized that the people you hired, the people you trusted to fight for you, had hidden from you the single most powerful piece of evidence in your case? Rosario did not learn about the 911 confession until after the Dolan firm

abandoned him. He found it himself, running a forensic search of his own case files. The discovery was like finding a loaded weapon locked in a drawer in your own house: your own lawyer had put it there and never told you it existed. And yet Rosario did not collapse under that betrayal. He picked up the weapon and went to war.

Opposing Thread: Now move across the table. You are an adjuster, a defense lawyer, or both. The file now contains the 911 admission, the body-worn camera eyewitness, and the defendant's own contradictions. What do you do if your duty is to resolve the case honestly? What do you do if your instinct is to contain exposure instead? At what point does delay stop being caution and become strategy?

Consider, for a moment, what an honest defense would have done with this evidence.

The law on this point was not ambiguous. It had been settled in California for decades, refined case by case as the courts confronted the same pattern of insurer intransigence. Under Hamilton v. Maryland Casualty Co. (2002) 27 Cal.4th 718, the California Supreme Court held that an insurer's duty to settle within policy limits becomes acute when the insurer possesses evidence establishing its insured's liability. The Hamilton principle existed because the Supreme Court recognized a structural injustice: when an insurer refuses to settle a clear-liability case, the person who suffers is not the insurer, it is the insured, who faces excess liability, and the claimant, who is forced into years of litigation to obtain what a fair evaluation would have produced in months. The Hamilton principle was not abstract. It described a specific obligation triggered by specific facts. When an insurer's own file contains a party admission, the insured's own words on a government recording, saying "I barely hit him". And an independent eyewitness on body-worn camera, Justin Rosemond saying "the guy in the van hit the guy laying down on the ground", and the insured's own deposition acknowledgment of the collision, Abdelhalim answering "Yes" when asked "Do you recall that collision?", the evidence of liability is not ambiguous. It is overwhelming. And under Hamilton, when liability is that clear, the insurer has a duty to settle. Not a suggestion. Not a best practice. A duty. Imposed by law.

An ethical defense attorney, reviewing the Dolan production in August 2022, would have picked up the phone. She would have called the insurer. She would have said: "The plaintiff's attorney just gave us the 911 recording. Your insured admitted on that recording that he hit the pedestrian. There was an independent eyewitness on body-worn camera who confirmed it. Your insured acknowledged the collision in his own deposition. Liability is clear. Damages are substantial. The policy limit is $500,000. My recommendation is that we settle this case within policy limits before it gets worse." That phone call would have taken five minutes. It would have ended the case. It would have given Rosario the resources to pay his medical bills, fund his rehabilitation, and begin putting his life back together. Under Crisci v. Security Ins. Co. (1967) 66 Cal.2d 425, an insurer that refuses to settle a clear-liability case within policy limits does so at

its own risk, and the resulting exposure can exceed the policy limit by orders of magnitude.

That phone call was never made. The evidence sat in the defense file. The case did not settle. And the man whose body had been broken in a crosswalk was left to litigate for three more years to prove what every party in the case already knew.

What happened next is the story of how one side took that shared knowledge and turned it into a weapon.

III.

The principle is simple, and it is devastating.

When documents are produced together in a single discovery response, receipt of any item establishes receipt of all. A production is a single event. The serving party sends a package. The receiving party receives the package. The contents travel together. You do not get to claim you received the body-worn camera footage but not the 911 audio when both were served in the same envelope, listed on the same production log, produced on the same date.

This principle; call it the inseparability of a unified production; is the factual predicate that destroys the defense's entire pretrial narrative.

Two years after the Dolan production, on April 16, 2025, the seventh day of trial, the court asked defense counsel Priya Navaratnasingham about the body-worn camera footage that appeared on the defense's own exhibit list. Her response, captured in the Trial Day 7 transcript at page 214, lines 13 through 15, was two statements that would demolish every representation she had made for three months:

"Sure. They were provided by Dolan. He has had them for whatever, sure."

Provided by Dolan.

If the body-worn camera footage was "provided by Dolan," and the Dolan production was a unified response containing the 911 audio, the body-worn camera footage, and the CAD logs together, then the defense had received the 911 audio from the same source, in the same production, at the same time.

The logic was closed. There was no escape from it.

Navaratnasingham's February 18 representation that the 911 call was "news to me" and that "our office did not receive the 911 call until the day of the MSC" cannot coexist with her April 16 admission that the body-worn camera footage was "provided by Dolan." Either the Dolan production was received or it was not. If it was received; and her own words confirm it was; then everything in it was received. The 911 audio. The body cams. The CAD logs. All of it.

"News to me" was a lie.

And every ruling the court made based on that representation: every exclusion, every limitation, every procedural advantage the defense gained by claiming ignorance of its own evidence; was the product of fraud on the court.

IV.

Jessup's testimony was the spine of the fraud case. It was the single piece of evidence that connected the Dolan firm's routine public records work to the defense's systematic campaign of misrepresentation. Without Jessup's testimony, the defense could claim that the chain of custody was ambiguous, that the production was unclear, that the materials might have been lost or misfiled or never received. With Jessup's testimony. Uncontradicted, under oath, preserved in the certified transcript: the chain is complete.

The 911 recording was obtained through a public records request within three months of the collision. It was produced to defense counsel during discovery. It was used in depositions. The production was unified: 911 audio, body-worn camera footage, CAD logs, all served together. Prior defense counsel received it. The file transferred when counsel substituted. The new defense team had constructive possession from the moment they took over the case.

Every claim of "unknown provenance" was false. Every motion asserting the materials had "not been produced in discovery" was false. Every representation to the court that the defense was genuinely ignorant of the 911 recording's existence was false.

But there is a question that the record raises and does not answer. A question that gnaws at the foundation of everything.

The Dolan Law Firm had the 911 recording containing the driver's party admission. It had the body-worn camera footage showing Justin Rosemond's eyewitness account. It had material positive evidence that the driver was liable. This evidence was never disclosed to Rosario. The Dolan Law Firm never told its own client about the 911 admission. It never confronted CSAA or its retained defense counsel with the party admission. It never used the strongest evidence in the case as leverage in settlement negotiations. It focused on lost wages and medical records while the dispositive liability evidence sat in the file, unused.

When a plaintiff's attorney obtains a recorded confession from the defendant, produces it to the opposing party, uses it in depositions, and then withdraws from the case without evidence that the brain-injured client was ever told about the recording's contents or significance: what happened? The possible answers ranged from institutional negligence to strategic miscalculation to something darker. The record did not resolve them.

The Dolan production was the empirical backbone of the entire narrative. It was the fact that every subsequent chapter would return to, the proof that could not be wished away, the evidence that the defense's own words confirmed they had. It sat in the record, patient and immutable, waiting to be read by the appellate justices who would decide whether the fraud stood or fell.

The evidence chain is closed. Both sides had everything. What they did with that knowledge is the story this book tells.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 8: The Substitution: Handoff or Burial?

I.

On April 19, 2023, Robert K. Phillips of Phillips, Spallas and Angstadt LLP was associated as counsel for the defendant. Two weeks later, on May 4, 2023, the substitution was filed.

It was a routine filing. A Substitution of Attorney, Transaction ID 69953800, documenting the formal transfer of legal representation from one firm to another. Carbone, Smith and Koyama out. Phillips, Spallas and Angstadt in. Priya D. Navaratnasingham substituted for Michael R. Chambers. A page of signatures. A clerk's timestamp. The kind of document that gets filed in civil cases every day in every courthouse in California, noticed by no one, remembered by no one, significant to no one except the parties involved.

But in the architecture of this case, the substitution was anything but routine. It was the mechanism through which the second lie became possible.

Navaratnasingham and Alberto Reyna of Phillips, Spallas and Angstadt became counsel of record for Subhi Abdelhalim. By extension, they became the courtroom representatives of CSAA Insurance Exchange, the insurer funding the defense. They took over a case that had been in active litigation for two years. A case in which discovery had been conducted. Depositions had been taken. Evidence had been exchanged. The Dolan Law Firm had produced the 911 recording, the body-worn camera footage, and the CAD dispatch logs to prior defense counsel, and those materials had been used in the depositions of both parties.

When counsel substituted in, the file transferred. That was not discretionary. The file belonged to the client, not the attorney, and outgoing counsel was obligated to cooperate with the transfer. Incoming counsel received everything: pleadings, discovery responses, deposition transcripts, exhibits, correspondence, work product. The entire litigation history traveled from the old firm to the new firm. It was a complete transfer.

Carbone, Smith and Koyama had received the Dolan production. Jeremy Jessup had testified to that. "All of those items were served on them in the production for discovery." When CSK substituted out, their file transferred to PSA. The file contained the Dolan production. The 911 audio. The body-worn camera footage. The CAD logs.

Phillips, Spallas and Angstadt had it all.

II.

Rosario Thread: Ask yourself what twenty months of silence feels like when you are the one waiting for justice. Twenty months during which you are managing a traumatic brain injury. Twenty months during which your savings are evaporating. Twenty months during which the defense has your strongest evidence in their file and is building a strategy to bury it. You do not know this yet. You do not know that the lawyers on the other side are sitting on the proof that would vindicate you. You know only that time is passing, that your body hurts, that your mind is slower than it used to be, and that the system that was supposed to deliver justice has gone silent. Rosario endured this silence. He endured it because he had no choice and because the alternative, giving up, was not in his character. The man who crawled across a crosswalk with shattered ribs was not the kind of man who surrendered to institutional inertia.

The twenty months that followed are the black box of this case.

From May 4, 2023 (the date of the substitution) to January 17, 2025, the date the defense filed its nineteen Motions in Limine, approximately twenty months elapsed. Twenty months during which PSA had the defense file. Twenty months during which the Dolan production sat in that file, containing the 911 recording, the body-worn camera footage, and the CAD logs. Twenty months during which someone at PSA could have opened the discovery folder, reviewed the production log, listened to the 911 recording, and heard Subhi Abdelhalim's voice saying the four words that defined his liability.

Did they?

The certified record did not tell us what happened inside the PSA offices during those twenty months. It did not tell us who reviewed the file, or when, or how thoroughly. It did not tell us whether anyone listened to the 911 recording. It did not tell us whether anyone connected the recording's existence to the motions

in limine that would later claim the evidence was "unknown." Those answers lived in PSA's internal records, in their billing entries, their file memos, their time sheets, their email correspondence. Those records had not been produced.

But the record does tell us something. It tells us about a subpoena.

III.

On February 1, 2024, nine months after PSA substituted in as counsel, fourteen months before trial, Alberto Reyna issued a Deposition Subpoena for Production of Business Records. Compex Order No. CA1147102-021. Directed to the San Francisco Police Department.

The subpoena specifically requested the 911 call and the body-worn camera footage by name.

Twenty-five days later, on February 26, 2024, Reyna submitted a comprehensive document request seeking "all documents, records in any format" regarding the incident. The request would encompass the 911, CAD, and body-worn camera categories that the defense would later portray as "unknown" or "not received."

Read that again.

Fourteen months before trial, the same attorney who would later tell the court he was "not sure what recording" the plaintiff was referring to, sent a formal legal document to the San Francisco Police Department requesting, by name, the exact recording he would later profess not to recognize.

The subpoena was not ambiguous. It was not vague. It was not a fishing expedition. Alberto Reyna knew that a 911 recording existed. He knew that body-worn camera footage existed. He knew their names. He knew where they were housed. He knew which agency held them. And he sent a formal subpoena to obtain them.

A lawyer did not issue a subpoena for a recording he did not know about. A lawyer did not identify a specific category of evidence by name, "911 call," unless he knew that category of evidence existed. The subpoena was not evidence of ignorance. It was evidence of knowledge. It was proof that PSA, through Reyna, knew exactly what the SFPD's records contained, because the Dolan production had already told them.

The Compex subpoena destroys the defense's pretrial narrative before that narrative was ever constructed. Fourteen months before Navaratnasingham told the court the 911 recording was "news to me," Reyna was sending subpoenas to the SFPD requesting it by name. Fourteen months before Reyna told the court he was "not sure what recording" the plaintiff was referring to, he was issuing formal legal process to obtain that exact recording from the custodian of records.

The contradiction was not subtle. It was not ambiguous. It was not the kind of inconsistency that could be explained by poor record-keeping or a large caseload or the ordinary confusion of complex litigation. It was a direct, documented, irreconcilable contradiction between a formal legal document bearing Reyna's name and a trial objection spoken from Reyna's mouth.

The subpoena says: I know this recording exists. The trial objection says: I have no idea what recording you are talking about.

Both statements are in the certified record. Both bear Reyna's name. Both cannot be true.

IV.

The substitution created the conditions for the second lie.

The gap between two law firms; the institutional discontinuity of one team handing off to another; provided the space in which the defense could claim ignorance. Prior counsel had received the Dolan production. But PSA was not prior counsel. PSA could point to the substitution and say: whatever CSK had, that was CSK's problem. We are a new team. We have our own files. We did not receive those materials directly from the Dolan firm.

The claim is plausible only if you ignore three things.

First, the file transfer. The substitution transferred the entire defense file from CSK to PSA. The file contained the Dolan production. Constructive possession was established on May 4, 2023, the day PSA substituted in.

Second, the Compex subpoena. Reyna issued a subpoena requesting the 911 call and body-worn camera footage by name. Nine months after the substitution. He knew what the records were. He knew where they lived. He requested them by name.

Third, the April 16 admission. Navaratnasingham told the court the body-worn camera footage was "provided by Dolan." If the body cams came from the Dolan production, the 911 audio came from the same production. Receipt of one is receipt of all.

Three independent pieces of evidence, each sufficient on its own, together forming a closed logical chain. The substitution transferred the file. The subpoena proved knowledge. The trial admission confirmed receipt. The defense had the evidence for approximately twenty months before claiming it was "unknown."

The binary trap is this: either PSA reviewed the file when it arrived, in which case the "unknown provenance" representations were knowing falsehoods; or PSA did not review the file, in which case PSA made formal legal representations about the discovery record; representations that controlled the court's rulings and shaped the trial; without performing the baseline obligation of reading their

own file. The first option is fraud. The second is recklessness so extreme it functions as fraud.

There is no third option.

The evidence sat in the PSA file for twenty months. The motions in limine claimed it was "unknown." The subpoena proves they knew. The trial admission confirms it.

The substitution did not bury the evidence. The evidence was too robust to bury. Digital files do not decompose. Discovery productions do not disappear. Deposition transcripts do not forget what was played during questioning. The evidence survived the substitution the way it survived everything else in this case: patiently, immutably, waiting in the record for someone to look.

But the substitution created the illusion of a gap. And in that illusory gap, the defense built the narrative that would defraud the court and deny a brain-injured pedestrian the right to present his strongest evidence to a jury.

The gap was an illusion. The evidence was real. The record remembers what the defense chose to forget.

V.

While the substitution was creating the institutional gap that would later enable the defense's pretrial fraud, the depositions that had already been taken were building a record of their own.

Officer David Fernandez: the author of the police report that had become the cornerstone of every defense narrative, the document CSAA had relied upon to deny the claim, the hearsay foundation on which the entire institutional apparatus of denial had been constructed: sat for deposition on March 10, 2023. His testimony, taken under oath, dismantled the credibility of his own report with a methodical thoroughness that no cross-examining attorney could have improved upon.

He confirmed that his report was based on "summaries, not verbatim accounts." He acknowledged that he "did not personally recall who took each statement." He testified that if Orengo took a statement, Orengo gave him "a synopsis." He confirmed there were at least four body-worn cameras recording at the scene. His own, and at least three belonging to other responding officers. But acknowledged that he had not reviewed the footage from those other cameras before writing the report. The officer who wrote the definitive account of what happened at Fifth and Tehama had not reviewed the video evidence that was available to him. He confirmed that the report stated Rosario was "traveling northbound on 5th Street against the flow of traffic" in the bicycle lane, but on cross-examination by Jessup, he acknowledged confusion about whether "lane number one" in his report referred to the bike lane or the traffic lane, admitted he was "not familiar

with that intersection," and conceded it was "possibly a typo." The foundational geographic detail of the report. The basic description of where the victim was when the incident occurred, was wrong, and the authoring officer admitted it.

He confirmed that Rosario was not cited because department policy does not require citation when a person only causes injury to themselves. Read that again. The operating assumption embedded in SFPD policy (and applied at this scene by these officers) was that Rosario had caused his own injuries. The man with five posterior rib fractures, ribs broken from behind by a force that could only have been delivered by a vehicle traveling from behind, was treated by the SFPD as the author of his own catastrophe. The department's own policy enshrined the defendant's fabricated narrative as fact before any investigation had occurred.

He confirmed that Abdelhalim was determined not to have violated any Vehicle Code provision. A man who fled the scene of an injury accident (VC 20001(a)), who failed to yield to a pedestrian in a crosswalk (VC 21950(a)), who made an unsafe turning movement (VC 22107), that man was cleared of all traffic violations by officers who relied on secondhand summaries, did not witness the collision, did not review all available body-worn camera footage, and produced a report that omitted the eyewitness account captured on their own recording equipment.

And then Fernandez delivered the admission that reduced his report from an official government document to a worthless piece of paper: he had "very little independent recollection of the event" and was "mostly just going off the police report." Going off the police report. His police report. The one he wrote. Based on synopses of summaries. The officer's testimony authenticated the hearsay and simultaneously confessed that the hearsay was all there was. There was no independent memory behind it. There was no investigation behind it. There was no review of the body-worn cameras behind it. There was nothing behind the Fernandez report except the word of a familiar neighborhood business owner, passed through a chain of officers who did not question it, and stamped with the authority of the San Francisco Police Department.

The foundation of the entire defense, the document that CSAA had treated as the word of God when it denied the claim in twenty-one days, the document the defense attorneys would later use to construct nineteen motions in limine, the document the court would reference when weighing the parties' accounts, was built on sand. And at the Fernandez deposition, the sand washed away.

Officer Raffin's deposition added another dimension. Raffin confirmed the existence of body-worn camera footage and the procedures for its retention. The footage existed. The department had it. The procedures for obtaining it were standard. There was no mystery, no complexity, no institutional barrier that would have prevented any party in this case from obtaining the footage through the routine channels that every personal injury firm in California uses every week. The body-worn cameras had captured the scene, the witnesses, the statements,

the evidence. It was all there. It had always been there. The only thing required to access it was the willingness to ask.

And during the period between the Dolan firm's representation and the substitution of defense counsel, one more critical event occurred that the record documents: the Dolan firm made a policy-limit demand. They demanded that CSAA settle the case for the $500,000 policy limit, the full extent of the insured's coverage. The demand was made with the 911 confession in the plaintiff's file, the body-worn camera footage confirming the eyewitness, and the defendant's own deposition admissions. Under *Hamilton v. Maryland Casualty Co.* and *Crisci v. Security Ins. Co.*, an insurer in possession of evidence establishing clear liability has a duty to settle within policy limits. The failure to do so exposes the insurer to excess liability; liability beyond the policy limit, potentially including punitive damages for bad faith.

CSAA refused.

The refusal landed on the Rosario household like a detonation. By 2023, two years after the collision, the compound devastation had already reshaped every dimension of Frank and Victoria's existence.

The money was gone. Not slowly, not through gradual depletion, but with the relentless velocity of catastrophic injury meeting institutional stonewalling. The medical bills, emergency room visits, lung surgery, neurological consultations, physical therapy, cognitive rehabilitation, pain management, prescription medications; had consumed the savings that Frank had built over decades of work at the highest levels of the technology industry. The man who had earned between $550,000 and $1,000,000 a year could not work. The traumatic brain injury did not prevent him from thinking. It prevented him from thinking at the sustained, high-performance level that his profession demanded and that his compensation reflected. He could not hold system architectures in working memory. He could not sustain the twelve-hour days of concentrated cognitive effort that the technology industry requires of its senior architects. He could not pass the technical interviews that gated access to positions at his former level. The career was over. The income was zero. And the bills; medical, legal, household; kept arriving.

Victoria became the provider. The woman who had planned to be Frank's wife, his partner, his companion in the second half of their lives together, became instead his caregiver, his financial support, and his witness to a daily diminishment that neither of them had the language to describe. She went to work. She paid the mortgage. She managed the insurance claims and the medical appointments and the pharmacy runs and the household logistics. She did this while watching the man she loved struggle with tasks that had once been effortless; remembering where he put his keys, following the thread of a dinner conversation, staying awake through an entire afternoon. The emotional toll of that dual role: provider and caregiver, breadwinner and nurse: was one that no economic model captured and no damages formula quantified. It was

the slow, daily erosion of a relationship's equilibrium, the gradual replacement of partnership with dependency, the transformation of a love story into a survival story.

The embarrassment was its own wound. For a man who had defined himself through professional excellence and financial independence, the inability to contribute: the humiliation of watching his wife pay the bills he had always paid, carry the weight he had always carried. Was a form of suffering that no painkiller could reach. Every conversation about money was a reminder of what had been taken. Every declined dinner invitation, every cancelled vacation, every small luxury foregone was a monument to the collision and the system that had denied its consequences. The shame of dependency is a silent corrosive. It eats at a man's sense of self from the inside, and it does so in the presence of the person whose respect matters most. Frank Rosario, who had built his life on the premise that he could solve any problem, could not solve the problem of his own diminished capacity. And every day that the litigation dragged on: every day that CSAA's refusal held, was another day that the financial pressure tightened, the savings dwindled, and the emotional distance between who he had been and who he had become grew wider.

His children watched. A father's decline is a particular kind of grief for adult children. They remembered the man who had built companies, who had earned at the top of his profession, who had solved problems that defeated others, who had provided for them with a competence so reliable it had seemed like a law of nature. Now they saw a man who forgot conversations, who tired easily, who moved through the world with a caution that had not existed before the crosswalk. They could not fix it. They could not make it better. They could only watch, and absorb their own portion of the compound devastation, and carry the private grief of a loss that had no funeral and no closure because the person they were losing was still sitting at the kitchen table.

The refusal is documented in the record. CSAA had the 911 confession. CSAA had the body-worn camera footage. CSAA had the deposition testimony. And CSAA said no. The $500,000 that would have ended the case, paid Rosario's medical bills, funded his rehabilitation, and closed the file, CSAA chose not to pay it. The insurer that had "concluded" its investigation in twenty-one days without reviewing the primary evidence now had all of that evidence and still refused to settle. The question was no longer whether CSAA had failed to investigate. The question was whether CSAA was capable of acting in good faith under any circumstances. A man with a traumatic brain injury, five posterior rib fractures from behind, and a collapsed lung was asking for the policy limit. The amount the insurer had contractually agreed to pay, and the insurer said no. Not because liability was unclear. Liability was overwhelming. Not because damages were speculative. Damages were catastrophic and documented. Because saying no was the business model. Deny. Delay. Defend. The playbook was running exactly as designed.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 9: Nineteen Motions in Limine

I.

Rosario Thread: Imagine this: you were ten days from trial. You were representing yourself because your attorneys had abandoned you. You had a traumatic brain injury. You had spent months preparing, teaching yourself trial law from scratch, building your exhibits, organizing your evidence. And then, ten days before you walked into court, the other side filed nineteen motions designed to strip away your strongest evidence. Nineteen. Not one or two, but nineteen separate legal weapons, each requiring a response, each demanding research and drafting and filing, each consuming the cognitive resources that your brain injury had made precious and finite. Most people would have broken. Most people, facing nineteen motions from an institutional defense team funded by a multi-billion-dollar insurer, with ten days to respond and a damaged brain to work with, would have accepted the inevitable. Rosario did not break. He read every motion. He identified the two that mattered. He recognized the lies embedded in them. And he prepared to fight.

Opposing Thread: Now imagine the conference room on the other side. Nineteen motions in ten days. Was this advocacy at full volume, or attrition by design? And more important, what do the papers themselves reveal about what the defense most needed to suppress? That is always the tell. A trial team can live with bad facts so long as those facts stay diffuse, unconnected, buried in boxes, buried in metadata, buried in a file the jury never truly hears. But the facts that frighten them, the facts that can collapse the whole structure, are the ones they move against early, specifically, and under cover of ordinary procedure. Watch what grounds they choose. Watch what they call "late," "unknown," "not produced," "unfair," "confusing," or "outside the record." Watch how a confession becomes a discovery problem, how provenance becomes the argument, how sequence becomes the weapon. That is where the second fraud begins to show itself. Not yet as an open lie, not yet as the later contradictions on the transcript, but as strategy. As selection. As camouflage. Ask yourself what these lawyers thought a self-represented plaintiff with a brain injury could realistically answer in ten days. Ask yourself what the corporation funding the defense expected those nineteen motions to do even if the underlying facts in the file did not change. And ask the most revealing question of all: if the defense believed the evidence truly helped

them, why were Motion in Limine No. 6 and Motion in Limine No. 17 aimed so carefully at the exact materials that tied the 911 call, the body-worn cameras, and the discovery record together? Pay attention closely here. The second fraud did not emerge out of nowhere in the courtroom. This is where it was assembled, on paper, under the respectable language of pretrial motion practice, before the first witness was sworn.

The substitution had created the institutional gap. The twenty months of silence had allowed the evidence to sit unacknowledged in the defense file. And now, with trial ten days away and a brain-injured pro per plaintiff on the other side of the courtroom, the defense was about to weaponize its own possession of the evidence into a campaign to exclude it.

Ten days before trial, the defense filed nineteen motions.

January 17, 2025. The trial date was January 27. Ten days. In litigation, ten days before trial is the moment of maximum tactical commitment. Discovery is closed. Witnesses are subpoenaed. Exhibit lists are exchanged. The trial teams on both sides have been preparing for weeks, months, years. Every motion filed at this stage is a calculated strike designed to shape the battlefield before the first witness takes the stand.

Phillips, Spallas and Angstadt filed their nineteen Motions in Limine on behalf of Subhi Abdelhalim, accompanied by a Global Statement of Facts and a Declaration of Priya Navaratnasingham. The declaration was incorporated by reference into every single motion. It became the evidentiary backbone for the entire pretrial offensive. If the declaration was true, the motions were supported. If the declaration was false, every motion that rested on it was the product of a false statement to the court.

The declaration was false.

Seventeen of the nineteen motions addressed ordinary trial management issues, the kind of motions defense teams file routinely to limit evidence of prior bad acts, exclude speculative damages, manage jury instructions. They were unremarkable. They were the white noise of pretrial procedure, the bureaucratic background against which the two extraordinary motions were filed.

Two of the nineteen would reshape the entire case.

II.

Motion in Limine No. 6 cast a wide net.

It sought to exclude from evidence any "recorded materials, photographs, or documents offered by Plaintiff that were not produced in discovery." The principle, on its face, was unobjectionable. Discovery exists precisely to prevent trial by ambush. Both sides exchange evidence before trial so that neither is surprised.

If a party withholds evidence during discovery and then tries to introduce it at trial, the opposing party has a legitimate objection.

The problem was not the principle. The problem was the premise.

MIL No. 6 specifically identified "audio of a 911 call purported to be related to the incident" as among the materials that had not been produced in discovery. This was the factual predicate that transformed an ordinary motion into a weapon. The 911 recording had been produced in discovery. Jeremy Jessup had produced it to prior defense counsel as part of the unified Dolan production. It had been served on the defense team. It had been used in depositions. It had been in the defense's possession, through one firm or another, since 2022.

The motion told the court: this evidence was not properly disclosed. The truth was: this evidence had been in the defense's file for years.

The court granted the motion. From that moment forward, a presumption attached to every piece of evidence the defense challenged. If the defense claimed the evidence had not been produced in discovery, the burden shifted to Rosario to prove that it had. A brain-injured pro per plaintiff, without the preparation time the continuance denial had stolen from him, would have to prove the chain of custody for each exhibit against the sworn representations of an institutional defense team.

The blanket was in place. The first layer of the exclusionary architecture had been constructed.

III.

Motion in Limine No. 17 was the surgical strike.

Where MIL No. 6 created a general framework, MIL No. 17 went directly after the single most dangerous piece of evidence in the case: the 911 recording containing Abdelhalim's party admission. The motion was signed by Navaratnasingham and Robert K. Phillips. It was backed by Navaratnasingham's global declaration. And it rested on three specific factual assertions, each false.

The first: the materials were "not produced during discovery, rather produced at the eleventh hour prior to trial."

Jessup had testified that the materials were "produced to defense counsel" and "served on them in the production for discovery" and "utilized in the deposition of defendants." The materials had been in the case since 2022. They had not appeared at the eleventh hour. They had been there for years.

The second: "Defendant has no idea where this 911 call log or audio recording came from and who created it."

The Compex subpoena of February 1, 2024, bore Alberto Reyna's name. It specifically requested the 911 call by name from the San Francisco Police Department. A person who has "no idea" where a recording came from does not issue a formal subpoena to the custodial agency requesting it by name.

The third: "Defendant has no idea who created the log and recording, how they were maintained, how Plaintiff got them, or the identity of the custodian."

The custodian was the San Francisco Police Department. Any attorney who has ever requested public records from a police department (as Reyna demonstrably had) knows that the department is the custodian. The claim of ignorance, coming from an attorney who had issued a subpoena to that custodian fourteen months earlier, was not merely false. It was absurd.

The motion was signed under penalty of perjury. It became part of the official record.

IV.

Why would a defense team with the evidence in their file claim it was unknown?

The answer lives in the architecture of the two lies.

The first lie was the denial letter. CSAA had represented that its investigation was "concluded" twenty-one days after the collision, before obtaining the 911 recording, the body-worn camera footage, or the dispatch logs. If the defense acknowledged at trial that the recording had been in their file for years, obtained by Dolan through a routine public records request within three months, the question would follow: how could CSAA have "concluded" its investigation before any of this evidence had been sought?

That question would expose the first lie. It would reveal that the investigation had never been conducted. It would open CSAA to liability not merely for the collision, but for the institutional decision to deny a catastrophic claim without performing baseline investigative steps.

The defense could not allow that question to be asked.

So the second lie was born. The recording became "unknown." The production became "not in discovery." The custodian became unidentifiable. The party admission became a mysterious artifact of uncertain provenance.

The first lie required the second. If the defense acknowledged the truth about the recording, the truth about the denial letter would follow. The two lies were structurally inseparable. Like load-bearing walls in a building, removing either one would collapse the entire structure.

The pattern had historical parallels that would chill anyone who had studied the intersection of institutional power and evidence suppression. In the tobacco

litigation of the 1990s, internal documents revealed that the major cigarette manufacturers had known for decades that their products caused cancer; and had systematically concealed that knowledge from the public, from regulators, and from the courts. When the documents finally emerged, through whistleblowers and discovery orders, the resulting liability was measured in hundreds of billions of dollars. The tobacco companies had built an architecture of denial that lasted forty years. The defense in Rosario v. Abdelhalim built one that lasted three. The scale was different. The mechanism was identical: suppress the evidence that proves what you have always known, and construct a public narrative, in court filings, in motions, in representations to the judge; that the evidence did not exist.

The law has a remedy for this. It has had one since 1944, when the United States Supreme Court decided a case that would define the outer boundary of judicial power to correct fraud.

Under Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238, the Supreme Court confronted a situation remarkably similar to the one documented in this record: a party had obtained a favorable judgment by deceiving the court about the existence of evidence. The Court held that a judgment obtained through fraud on the court may be set aside at any time, there is no statute of limitations on judicial fraud. The Hazel-Atlas principle existed because the Supreme Court recognized that when the judicial process itself was corrupted; when attorneys made false representations to the tribunal that shaped the tribunal's rulings: the resulting judgment carried no legitimate authority. It was not justice. It was an artifact of deception, wearing the robes of a court order. It was not a verdict. It was an artifact of deception. Under California law, the principle is embodied in the independent action in equity recognized in Kulchar v. Kulchar (1969) 1 Cal.3d 467, which holds that extrinsic fraud, fraud that prevents a party from having a fair adversary hearing on the merits: is grounds for setting aside a judgment regardless of when the fraud is discovered.

The motions were granted. The exclusionary framework was in place. The 911 recording; the defendant's own words, captured on a government system, authenticated by the speaker himself. Would enter the trial late, fragmented, stripped of the context that would have given it maximum impact.

When the rulings came down, Frank Rosario was sitting alone at his kitchen table in the home he and Victoria shared, reading the court's orders on his laptop. The screen glowed in the evening dark. Victoria was asleep, or trying to sleep, in the next room. She had work in the morning. She always had work in the morning. She was the one keeping them alive while the system ground her partner into dust.

Rosario read the orders and felt something that had been building for four years reach a new threshold. Not anger. Anger had been his companion for so long that it had become background noise. The constant, low hum of a man who knows he has been wronged and cannot make the world acknowledge it.

What he felt was something worse than anger. He felt invisible. He felt like a man shouting into a void. Every piece of evidence he had assembled, every contradiction he had documented, every lie he had caught the defense telling, none of it mattered. The court had accepted the defense's story. The court had excluded his evidence. The court had looked at the certified record and seen what the defense wanted it to see.

Four years. Four years since the van struck him from behind in a crosswalk. Four years since the five-dollar bill. Four years since the police wrote a report that blamed him for his own destruction. Four years since CSAA denied his claim in twenty-one days. Four years of medical appointments and cognitive rehabilitation and physical therapy and pain management. Four years of watching his savings disappear. Four years of depending on Victoria for everything, the mortgage, the groceries, the gas, the prescriptions, the filing fees. Four years of watching his children's faces when they thought he could not see them, the worry and the grief they carried for a father who was no longer the man he had been.

The compound effect of sustained institutional abuse was not linear. It did not add up one betrayal at a time, each one a discrete injury that could be cataloged and compensated. It multiplied. Each new blow lands on tissue that is already damaged. Each new denial falls on a psyche that has already been denied. The collision was the first injury. The police report was the second. The denial letter was the third. The years of litigation were the fourth. The Dolan firm's concealment of his own evidence was the fifth. The abandonment by counsel was the sixth. And now the exclusion of his strongest evidence, ten days before trial, by a court that had accepted false representations without inquiry, this was the seventh. Each injury compounding the last. Each one harder to absorb because the capacity for absorption had been diminished by everything that came before.

The neurological literature describes this phenomenon as allostatic overload, the state in which the body's stress-response systems, designed for acute threats, are kept in a state of chronic activation for so long that the systems themselves begin to degrade. Cortisol levels that were elevated after the collision had never returned to baseline. The traumatic brain injury had impaired the prefrontal cortex's ability to regulate emotional responses. The chronic pain from the rib fractures and spinal damage had established persistent neural pathways that amplified stress signals. The financial insecurity had activated survival-mode cognition, the narrowing of attention, the hypervigilance, the constant background calculation of how long the money would last. And now the legal system, the institution of last resort, the place where truth was supposed to matter, had told him that his truth was inadmissible.

He closed the laptop. He sat in the dark. And he made the decision that would define the rest of the case: he would go to trial anyway. Alone. Brain-injured. Without the evidence the court had excluded. Without the preparation time the continuance denial had stolen. Without counsel. Without resources. Without anything except the record and the knowledge that the truth was in it, waiting to be heard.

Victoria found him in the morning, still at the table, his notes spread around him. She looked at his face and knew. She did not ask whether he was going to fight. She knew the answer. She had known it since the crosswalk. The question she carried, the one she never asked aloud, was simpler and more devastating: how much more can one person take?

The stage was set for a trial in which the most powerful evidence of liability would be suppressed before a single witness was sworn. The stage was set, in other words, for exactly the kind of proceeding that Hazel-Atlas and Kulchar were designed to undo.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 10: The Law of the Second Lie

I.

The law anticipated this problem long before this case arrived in Department 504.

Courts are built on an impossibility. A judge must rule quickly, often in real time, on factual representations about discovery history, receipt, production, authenticity, prejudice, and surprise. No trial judge can stop every hearing to conduct a miniature audit of every law firm's transferred file, every production log, every email attachment, every prior counsel handoff, every subpoena, every custodial chain. If the system required that level of verification before every ruling, no court would function. Trials would collapse under their own procedural weight.

So the law created something more fragile and more important than efficiency. It created a duty of candor.

In California, that duty is not decorative. It is structural. Business and Professions Code section 6068(d) imposes on every attorney the duty "never to seek to mislead the judge or any judicial officer by an artifice or false statement of fact or law." The Legislature chose those words carefully. "Artifice" means device, contrivance, mechanism. Not a mistake. Not a misremembered detail. A thing built to mislead. Rule 3.3(a)(1) of the California Rules of Professional Conduct is equally direct: a lawyer shall not knowingly make a false statement

of fact or law to a tribunal. Rule 3.3(b) requires reasonable remedial measures when a lawyer comes to know that fraudulent conduct related to the proceeding has occurred. Rule 8.4(c) prohibits dishonesty, fraud, deceit, or reckless or intentional misrepresentation. Rule 8.4(d) prohibits conduct prejudicial to the administration of justice.

These rules exist because the judge must be able to trust what counsel says about the record. Without that trust, the court becomes defenseless against manipulation masquerading as ordinary motion practice.

II.

The second lie was not simply "we did not know."

The second lie was the construction of a false factual predicate for exclusion.

That distinction matters. Lawyers are allowed to argue about law. They are allowed to dispute relevance, prejudice, foundation, authentication, timing, sequence, and admissibility. They are not allowed to invent the historical facts on which those arguments depend. A motion in limine that says evidence is prejudicial raises a legal question. A motion in limine that says evidence was not produced in discovery, was first disclosed at the eleventh hour, was of unknown provenance, was not in the transferred file, or was never received at all raises a factual question. Once counsel signs and files that motion, the law requires more than rhetoric. It requires factual support.

Code of Civil Procedure section 128.7 exists for exactly this reason. When an attorney presents a signed motion to the court, that signature certifies that, after an inquiry reasonable under the circumstances, the factual contentions have evidentiary support. Section 128.7 was enacted because courts understood the danger of unsupported factual assertions in motion practice. False facts in a signed motion do not merely offend the opposing party. They distort the tribunal's decision-making process before the merits are ever reached.

That is what happened here.

Motion in Limine No. 6 did not merely ask the court to enforce ordinary discovery discipline. It told the court that the 911 audio and related recorded materials had not been produced in discovery. Motion in Limine No. 17 did not merely challenge authentication. It told the court that the materials were "not produced during discovery, rather produced at the eleventh hour," and that the defendant had "no idea" where the 911 recording came from, who created it, or who the custodian was. Those were not arguments. They were historical assertions about what the defense had and did not have, knew and did not know, received and did not receive.

If those assertions were false, the motions were not aggressive advocacy. They were deceptive instruments.

III.

Why were these laws created in the first place?

Because a false factual predicate in pretrial motion practice is more dangerous than an ordinary lie at trial.

A witness who lies in front of the jury presents a problem the adversary system knows how to address. Cross-examination tests the lie. Impeachment exposes it. Contradicting evidence can be introduced. The jury sees the conflict and decides what to believe. That is intrinsic fraud, fraud inside the contest.

But a lie told to the judge before the evidence is admitted does something worse. It changes what the contest will be. It changes what the jury will hear, when the jury will hear it, whether the plaintiff gets time to prepare it, whether a custodian can be subpoenaed, whether a foundational witness can be deposed, whether a recording will come in as centerpiece or afterthought. A lie of that kind does not compete within the proceeding. It shapes the proceeding itself.

That is why the law of extrinsic fraud exists.

In Olivera v. Grace (1942) 19 Cal.2d 570, the California Supreme Court recognized that equity intervenes when fraud prevents a fair adversary hearing. In Kulchar v. Kulchar (1969) 1 Cal.3d 467, the Court explained that extrinsic fraud justifies relief when a party is deprived of a fair opportunity to present the case on the merits. The doctrine exists because the judicial system cannot call a proceeding fair when one side obtains structural advantage by deceiving the tribunal before the merits are heard.

At the national level, Hazel-Atlas Glass Co. v. Hartford-Empire Co. (1944) 322 U.S. 238 stands as the classic statement of the same principle. When a judgment is procured by fraud on the court, the injury is not merely private. The injury is institutional. The court itself has been used as the vehicle of the deception.

That is why the remedy is so severe. Not because judges are fragile. Because justice is.

IV.

Apply those principles to the record here and the structure becomes plain.

Jessup testified under oath that the body-worn camera footage, the 911 audio, and the CAD log had been produced to defense counsel, served in discovery, and used in depositions. No declaration contradicted him. No witness impeached him. No one requested time to bring in production logs and prove him wrong. Instead, the response was denial.

"News to me."

"I can represent to you that our office did not receive the 911 call until the day of the MSC."

Those words matter because of what did not happen next. Counsel did not ask for time to investigate. Counsel did not narrow the assertion and say the transferred file had not yet been fully verified. Counsel did not say the office was still determining what predecessor counsel had received. Counsel made an affirmative factual representation to the court.

That affirmative representation triggered the duties imposed by section 6068(d), Rule 3.3, Rule 8.4, and CCP section 128.7.

And the record supplies the contradiction.

The Reyna subpoena of February 1, 2024 requested the 911 call from the San Francisco Police Department by name. The April 16 trial transcript contains Navaratnasingham's admission that the body-worn camera footage was "provided by Dolan." The body cams and 911 audio traveled in the same unified Dolan production. Receipt of one is receipt of all. The provenance the defense called "unknown" was not unknown. The custodian the defense said it could not identify was the same public agency defense counsel had already subpoenaed. The discovery history the motions described as "eleventh hour" had already played out in 2022.

The second lie was therefore not merely inconsistency. It was the use of false non-receipt and false ignorance to manufacture exclusion.

V.

That is what makes the grounds chosen in the motions so revealing.

The defense did not say, in substance, that the 911 recording helped them. They did not say the recording was harmless. They did not say the admission could be explained away on the merits. They did not welcome the evidence and argue weight. Instead, they attacked timing, receipt, provenance, production history, and custody.

That is always the tell.

When a litigant is comfortable with evidence, the litigant argues interpretation. When a litigant is afraid of evidence, the litigant argues access.

The law against trial by ambush was created to keep one side from springing undisclosed material on the other. The authentication rules were created to ensure documents are what they claim to be. Candor rules were created so judges could trust counsel when counsel described the record. None of those rules were created to let a party relabel known evidence as unknown, or long-produced

evidence as eleventh-hour evidence, in order to keep the jury from hearing the most dangerous facts in coherent sequence.

That is why the grounds used in Motion in Limine No. 6 and Motion in Limine No. 17 are more than procedural details. They are x-rays of the defense's fear. They show exactly which materials had to be broken apart, delayed, and isolated from each other: the 911 call, the body-worn cameras, the discovery record, the chain of production. Kept together, those materials told one story. Separated, they could be managed.

The second fraud lived in that separation.

VI.

The law also explains why the court was vulnerable to it.

In Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1, the California Supreme Court recognized the judiciary's dependence on truthful participation by those who appear before it. Courts operate on the assumption that officers of the court are not using procedural devices as camouflage for factual deceit. A judge cannot independently reconstruct every law firm's internal file transfer in the middle of a pretrial calendar.

That is why the law makes the lawyer the checkpoint.

The lawyer must investigate before representing facts. The lawyer must correct material falsehoods once discovered. The lawyer must not use artifice to shape a ruling. These duties were created because if the lawyer fails at that checkpoint, the judge's ruling, even if made in complete good faith, becomes corrupted by a false input. The ruling looks legitimate. It carries judicial force. But it rests on sand.

That is what fraud on the court means in practice. Not that the judge acted with bad faith. The opposite. The judge acted in reliance on the trust the law requires. The deception exploited that trust.

And once the ruling issued, the harm was concrete. Continuance denied. Provenance challenged. Supplemental report excluded. 911 recording deferred. Plaintiff forced to spend finite cognitive resources proving history instead of presenting truth.

That is not ordinary prejudice. That is structural deprivation.

VII.

The second lie therefore fits the classic pattern of fraud on the court under California law.

False factual representation to the tribunal.

Reliance by the tribunal.

Procedural advantage to the speaker.

Deprivation of a fair adversary hearing to the opposing party.

That chain is what the law was written to prevent.

The candor rules exist because judges cannot police every file. Section 128.7 exists because signed papers must rest on reasonable inquiry. The authentication and discovery rules exist to protect fairness, not to weaponize uncertainty. The doctrine of extrinsic fraud exists because once the lie reaches the judge and shapes the framework of the hearing, the verdict that follows is no longer the product of a fair contest on the merits.

That is why this chapter belongs here, between the motions and the hearing. This is where the second lie changes from tactic to doctrine. This is where ordinary pretrial language reveals its real function. This is where the reader can see why the law was created, what it was supposed to prevent, and how, in this case, it failed to stop a false factual predicate from becoming judicial action.

The hearing that followed would show the lie in motion.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 11: "I See. Okay."

I.

Department 504 of the San Francisco Superior Court. February 18, 2025. A Tuesday.

Judge Garrett L. Wong presided from the bench. The courtroom had the antiseptic quality common to California superior courts, fluorescent lighting, wood-veneer fixtures, the American flag standing in its chrome holder beside the bench. The gallery was mostly empty. This was not a trial day. This was a pretrial hearing, the kind of procedural event that attracts no spectators and no press, that unfolds in the bureaucratic quiet of the civil calendar, and that

would determine whether the most important evidence in a four-year litigation would reach the jury.

Three people stood at the front of the courtroom. Jeremy Jessup, subpoenaed to testify about what the Dolan Law Firm had done. Priya Navaratnasingham, there to protect the defense's narrative. And Frank Rosario, representing himself, with a traumatic brain injury, managing his own case against an institutional defense apparatus.

The question before the court was straightforward: had the 911 recording, the body-worn camera footage, and the CAD dispatch logs been produced to the defense during discovery?

Jeremy Jessup was about to say it under oath.

II.

Jessup testifies.

His words, preserved in the hearing transcript at pages 139 through 140, were precise:

"We have, and was produced to defense counsel, body cam footage, about five videos, as well as the 911 audio, as well as the CAD log."

He continued: "Prior to current defense counsel's involvement, there was another firm involved on behalf of the defense. All of those items were served on them in the production for discovery as well at Mr. Rosario's deposition, in addition, utilized in the deposition of defendants."

Every word was loaded. "Produced to defense counsel." Not misplaced. Not lost. Produced. Served. Used in depositions. The Dolan firm had obtained the evidence, served it on the defense, and used it during depositions of both parties. The defense had participated in proceedings where the evidence was deployed.

His testimony was uncontradicted. No one has ever taken the stand and said Jessup was lying. No declaration has been filed disputing his account. His words stand in the certified record like a monument.

III.

Navaratnasingham did not request a recess to investigate.

She did not ask the court for time to check her firm's records against Jessup's testimony. She did not ask for a brief continuance to verify whether the file transfer from CSK had included the Dolan production. She did not say: "Your Honor, this is new information; I need to verify it."

She denied.

"So this is news to me. We didn't realize that prior to handling counsel may have received it, and I can't confirm whether that was produced. I take counsel's word, of course, but we (I can represent to you that our office did not receive the 911 call until the day of the MSC) the day before the MSC and that was an attachment link."

Parse the language. "News to me." A conclusion, not an investigation. "I take counsel's word, of course." Politeness performing dismissal. "I can represent to you that our office did not receive the 911 call until the day of the MSC." The formal assertion. She was invoking the authority the legal system invests in officers of the court.

After a recess, she reinforced: "I am representing to this Court that we did not have those two items until the day of the MSC."

And then the rhetorical inversion. At pages 176 through 177: "According to Mr. Jessup, the body cam footage, the 911 call, all this stuff has been in his possession since August. The motion in limine that I filed was saying that the 911 call was not produced in the normal course of discovery."

She took Jessup's testimony (which proved the defense had received the evidence) and reframed it as evidence that Rosario had been sitting on materials. The blame shifted. The fraud deepened.

IV.

The court said three words.

"I see. Okay."

Rosario Thread: Imagine standing in that courtroom. You have just heard a witness testify, under oath, that the evidence was produced to the defense years ago. You have watched the defense attorney deny it, not with evidence, not with a file inventory, not with a contradicting declaration, but with a shrug and the words "news to me." And you have watched the judge absorb the denial and accept it. Three words: "I see. Okay." The court has just accepted the lie over the truth. Your strongest evidence, the defendant's own recorded confession, has just been effectively buried because the people who were supposed to uphold the integrity of the court have violated it, and the court has trusted them. If you were standing alone at that podium, brain-injured, without counsel, watching the system fail in real time, what would you do? Would you accept it? Would you walk away? Rosario stood there, absorbed the blow, and kept fighting. He did not have the luxury of despair. The truth was in the record, and the record was not going to advocate for itself.

Opposing Thread: And what was happening in the minds arrayed against him?

Did counsel believe the court would not press for proof? Did the judge hear ordinary officer-of-the-court credibility where Rosario heard contradiction? How many proceedings turn because three words are accepted before anyone tests them?

Hearing transcript, page 141, line 15. The sound of a judicial system that trusts its officers. The sound of a court that has heard two competing accounts and has chosen to accept the denial without requiring proof.

Judge Wong did not order an inquiry. He did not demand a declaration under penalty of perjury. He did not order a file inventory. He did not convene an evidentiary hearing. He did not direct the parties to meet and confer about the production records. He did not continue the matter for a week to allow verification.

He said: "I see. Okay."

And then he denied the continuance.

The court's reasoning was that Rosario had had the materials "since August of 2024" and that the defense was "not blocking" him from seeking admission. Every element of that reasoning was manufactured by the fraud. The defense had had the materials since 2022. They had filed motions premised on false claims of non-receipt. The defense did not need to overtly block Rosario. The false representations were the blocking mechanism, operating through the court's own rulings.

The continuance denial deprived Rosario of the preparation time he desperately needed. He could not depose the SFPD officers. He could not authenticate the 911 recording through custodial testimony. He could not prepare the organized, contextualized presentation that would have given the jury the best understanding of the evidence.

Three words. "I see. Okay." The moment the fraud was accepted. Everything that followed flows from those three words.

The court said "I see. Okay" because it trusted its officers. Under Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1, the California Supreme Court recognized that the judicial system depended fundamentally on the candor of the attorneys who appeared before it. A judge could not independently verify every factual assertion made by every attorney in every case. The system functioned on trust. When an attorney told the court that evidence was not received in discovery, the court accepted that representation because the alternative (requiring independent verification of every claim) would make the judicial system unworkable. The duty of candor under Business and Professions Code section 6068(d) and Rules of Professional Conduct Rule 3.3(a)(1) was not merely an ethical aspiration. It was the structural prerequisite without which the adversary system collapsed.

The continuance denial that followed was not an abstract procedural ruling. It was a sentence of structural deprivation imposed on a brain-injured man.

Without the continuance, Rosario could not depose the SFPD officers who would have authenticated the body-worn camera footage. He could not subpoena the SFPD records custodian who would have authenticated the 911 recording through proper foundation. He could not organize the five body-worn camera videos into a coherent presentation that showed the jury what had happened at the intersection. He could not prepare the supplemental police report for admission. Under Hernandez v. Superior Court (2004) 115 Cal.App.4th 1242, denial of a continuance to a party is an abuse of discretion when the denial prevents fair preparation for trial. The Hernandez standard asks whether the party seeking the continuance demonstrated good cause and whether the denial prejudiced the party's ability to present its case. For Rosario, a pro per plaintiff with a traumatic brain injury, facing an institutional defense that had just made false representations about the state of discovery; the answer to both questions was yes. But the court had already absorbed the false narrative. The defense was "not blocking" him. He had had the materials "since August." The fault, in the court's reasoning, was his. The reasoning was manufactured by the fraud. And the price was a trial in which the most powerful evidence arrived late, fragmented, and stripped of context.

Those officers betrayed the trust. The plaintiff paid the price. The adversary system, which depends on candor the way a bridge depends on its cables, was left swaying over a void.

What makes this betrayal legally actionable, not merely offensive but remediable through the courts: is the chain of authority that runs from the false representation through the court's reliance to the specific harm. Under Kulchar v. Kulchar (1969) 1 Cal.3d 467, the California Supreme Court held that when extrinsic fraud prevents a party from having a fair adversary hearing, when the corruption operates on the structure of the proceeding itself rather than within it. The resulting judgment may be vacated regardless of when the fraud is discovered. The court's "I see. Okay" was the moment the extrinsic fraud took hold. The defense's false representations about the 911 recording's provenance were not lies told to the jury for the jury to evaluate. They were lies told to the judge, shaping the judge's rulings, before the jury was ever empaneled. The jury never knew about the fraud. The jury could not evaluate what it was never told. And the verdict that followed was the product of a proceeding whose very structure had been corrupted by the officers of the court who had a duty to protect it.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

PART THREE: THE TRIAL

The court had said "I see. Okay." The continuance had been denied. The exclusionary framework was in place. The 911 recording; the defendant's own admission. Had been labeled "unknown" by the attorneys who had possessed it for years. The stage was set for a trial in which the truth would have to fight its way through a wall of procedural rulings built on fraud.

And the man who would have to fight that fight would be alone.

CHAPTER 12: The Pro Per at War

I.

Before withdrawing, the Dolan Law Firm had tried to force Rosario into a settlement for a fraction of what the evidence supported. The firm demanded $250,000, less than half of the $500,000 policy limit. It threatened to drop Rosario if he refused. Rosario became suspicious: why would his law firm ask him to settle for only $250,000 when the policy limit was $500,000? The Dolan Law Firm had material positive evidence that the driver was liable: the party admission on the 911 call. There was an eyewitness on the police body cam who saw the driver strike Rosario from behind in the crosswalk. The 911 recording alone should have been leverage for the full policy limit. Rosario refused the settlement. On August 23, 2024, a Substitution of Attorney was filed. Plaintiff substituted in pro per for Christopher B. Dolan.

Under California Rules of Professional Conduct, Rule 1.4(a)(3), an attorney has a duty to "keep the client reasonably informed about significant developments relating to the representation." The 911 recording containing the insured's party admission; his own voice saying "I barely hit him", was the single most significant development in the case. The Dolan Law Firm's failure to disclose it to Rosario was not a minor oversight. Under Flatt v. Superior Court (1994) 9 Cal.4th 275, the California Supreme Court held that an attorney's fiduciary duty requires undivided loyalty, confidentiality, and full disclosure to the client. A firm that possessed a recorded party admission and did not tell its own client about it had violated the most basic obligation the attorney-client relationship imposed. Under Neel v. Magana, Olney, Levy, Cathcart & Gelfand (1971) 6 Cal.3d 176, the Supreme Court held that an attorney who fails to act on material evidence favorable to the client's position has committed malpractice per se, meaning the failure is so fundamental that no expert testimony is needed to establish the breach. The Dolan firm's withdrawal, coming after it had concealed the strongest

evidence from its own client and pressured him to accept half the policy limit, was not merely a business decision. It was the culmination of a representation that had failed at its core.

The law is clear on what the Dolan firm owed Rosario and what it failed to deliver. Under Lucas v. Hamm (1961) 56 Cal.2d 583, the California Supreme Court established that an attorney's negligence is measured against the standard of care that a reasonably competent attorney would exercise under similar circumstances. Under Smith v. Lewis (1975) 13 Cal.3d 349, the Court held that an attorney who fails to research the law or investigate the facts relevant to the client's case has committed malpractice, and that the standard does not require the client to prove what a diligent attorney would have discovered, only that a diligent attorney would have looked. The Dolan firm had looked. It had found the 911 confession. It had produced it to the defense. It had used it in depositions. And it had never told its own client. The failure was not one of investigation, it was one of disclosure. The firm had the weapon and hid it from the person who needed it most.

Rosario Thread: The first thread follows one question wherever it leads. What does a plaintiff do when his own lawyers walk away? What happens when the strongest evidence in the file was there all along, but hidden from the client who needed it? How much pressure can a damaged mind absorb before surrender begins to look rational? Rosario's answer was not argument. It was continuation.

Opposing Thread: The second thread looks across the room. What did the insurer think would happen once the plaintiff stood alone? What did defense counsel think the court would tolerate? What does an institution expect when it decides exhaustion may succeed where truth has not?

Frank Rosario faced a choice that would have paralyzed most people.

Drop the case. Four years of litigation, an approaching trial date, a traumatic brain injury, no attorney willing to take over at this stage. The rational calculation. The one the institutional defense was counting on; was that he would fold. That the withdrawal, combined with the complexity and the TBI, would be enough.

Or continue.

He chose to continue. Not because the odds were in his favor. They were not. Not because the system had given him reason to trust it. It had not. He chose to continue because the record contained the proof, and the proof deserved to be heard. The 911 recording existed. The Dolan production existed. The Compex subpoena existed. The truth was in the record, and the record was not going to present itself.

II.

The procedural reality of self-representation in California civil litigation is a gauntlet designed for professionals.

Every filing must conform to the California Rules of Court. CRC Rule 3.1110(f) requires exhibit tabs, sequential numbering, and separate sets for the court, the clerk, the jury, and each party. Seven defendants. Ten complete sets of every exhibit, formatted, tabbed, numbered, organized, and served.

Service itself was a logistical operation. Each defendant required proper service under CCP section 1010. Process servers had to be hired, addresses verified, proofs of service filed. Filing fees were $435 per case. Reporter's transcripts cost thousands. Certified copies, copying, printing, transcription, service fees, travel; the costs mounted into the tens of thousands. Every dollar borne by a man whose earning capacity had been destroyed by the collision the insurer denied in twenty-one days.

The traumatic brain injury shaped every aspect of the work. Before the collision, Rosario's professional life had been built on precise cognitive abilities; holding system architectures in working memory, tracking dependencies across thousands of components, sustaining focus on complex problems for hours. The TBI did not destroy his intelligence. It damaged the infrastructure through which his intelligence operated. Executive function. Working memory. Attention shifting. Sustained focus. Every cognitive task in the litigation carried an overhead cost that an uninjured person would never notice.

On September 17, 2024, the court granted the defendant's ex parte to continue trial to January 27, 2025. The order stated: "final continuance absent exceptional cause."

Behind Rosario's back (those words deserve to sit on the page for a moment) behind his back, during the hearing, the defense demanded that no more continuances be offered. They knew Rosario had just substituted in pro per three weeks earlier. They knew he was managing a traumatic brain injury. They knew he had not yet received the full case files from the Dolan firm. And they knew, because they had spent two years watching the Dolan firm mishandle the strongest evidence in the case, that Rosario would need time to find what had been hidden from him. So they locked the door. They had the judge write into the stipulation that there would be no more continuances. The trap was elegant: give the plaintiff a trial date he could not possibly be ready for, and then make sure he could never get it moved.

And then, in late September 2024, the Dolan Law Firm finally transferred the case documents to Rosario. The transfer was reluctant: the firm that had tried to force him into a half-policy settlement and then dropped him when he refused was not eager to hand over the file that documented its own failures. But the file arrived. And Rosario did what Rosario does. He ran a forensic search.

He found the 911 audio. He found the body-worn camera footage. He found the CAD logs. He found the second 911 call: the one from the anonymous passerby who had seen him crawling and screaming on the ground in pain while there was "no van" and nobody helping. Evidence that had been sitting in his own attorneys' file for years. Evidence he had never been told about. Evidence that, had he known, would have given him the leverage to demand the full policy limit, to refuse the Dolan firm's pressure to settle for half, to confront CSAA with the recorded confession of its own insured. The discovery was like finding a loaded weapon in a locked drawer in your own house: the weapon had been there the entire time, your own lawyer had put it there, and nobody had told you it existed.

The magnitude of the betrayal was staggering. Every conversation he had had with the Dolan firm about the strength of the case, every discussion about settlement strategy, every representation about what the evidence showed. All of it had occurred while the firm sat on the single most powerful piece of evidence in the case. The 911 confession. The party admission. The four words that proved liability beyond any reasonable dispute. Hidden from the client. For years.

By December 13, 2024, Rosario had filed for and received a court fee waiver on the grounds of financial need. Think about what that means. A man who had earned between $550,000 and $1,000,000 a year designing AI systems, a man at the top of one of the most lucrative professions in the American economy. Was now filing paperwork with the Superior Court of California requesting that the court waive his filing fees because he could not afford them. The collision had destroyed his earning capacity. The years of litigation had consumed his savings. The institutional asymmetry was now quantified in the starkest possible terms: on one side, CSAA's retained institutional defense with two named attorneys, expert witnesses, discovery machinery, and unlimited resources funded by a multi-billion-dollar insurer. On the other, a brain-injured plaintiff who qualified for a fee waiver and was preparing to face trial alone.

But Rosario was not passive. He was building.

He filed his own motions in limine. Motion in Limine No. 84 sought to preclude the defense from minimizing insurance involvement at trial, to prevent CSAA from hiding behind its insured while funding, directing, and controlling every aspect of the defense. Motion in Limine No. 87, filed April 1, 2025, sought to preclude the defense from treating the 911 audio as inadmissible, his direct counter-strike against the defense's MIL Nos. 6 and 17. Motion in Limine No. 88 sought to exclude all defense expert witnesses for failure to comply with the mandatory disclosure requirements of Code of Civil Procedure section 2034 governing expert witness exchange. Three affirmative motions, each targeting a different dimension of the defense's strategy, each reflecting the work of a man who was teaching himself trial law while managing a traumatic brain injury.

He filed a Motion for Judgment on the Pleadings on April 8, 2025; six days

before trial, arguing that the admitted facts established liability as a matter of law. The motion was not granted. But its filing established Rosario's legal sophistication on the record: a pro per plaintiff who understood that when a defendant admits the collision in deposition, acknowledges the duty to yield, and confesses on a 911 recording, the question of liability is no longer a question at all.

And he filed a Notice of Motion for Disqualification of Judge Garrett L. Wong, premised on bias and conduct Rosario had observed in the court's handling of the pre-trial proceedings. The motion was a formal invocation of the judicial disqualification procedure, a step that most represented plaintiffs never take and that few pro per litigants even know exists. It was not granted. Judge Wong proceeded to preside over the trial. But the motion was on the record. It documented Rosario's concerns about judicial impartiality before the first witness took the stand.

The continuance denial had compressed the available preparation time to a window too short for any lawyer, let alone one managing a TBI. The depositions that would have authenticated the body-worn camera footage could not be scheduled. The 911 recording could not be prepared for organized presentation.

III.

He brought to the fight the tools of his profession.

Rosario was not a lawyer. He was a systems architect. And systems architecture is, at its core, the discipline of identifying structure in complexity. The legal record was a system. The transcripts, filings, exhibits, and deposition testimony were components. The false representations were failure points. The court's rulings were outputs generated by corrupted inputs.

He built databases. He created timelines. He mapped the evidentiary chain in structured formats. The Reliance Matrix; a seven-row table that would become the backbone of the fraud case; traced each false representation to its transcript citation, the court ruling it produced, and the specific harm that followed. Seven links. Each documented. Each traceable to the certified record.

He built the Fatal Proof document. The Narrative Effect of Misrepresentations. The analytical framework that would support three independent proceedings, each with its own theory, each with its own decision-maker.

The work was not the fumbling of a disorganized pro per litigant. It was the output of an engineer who had encountered a corrupted system and was methodically documenting every point of failure.

IV.

He went to trial alone.

One man against a multi-billion-dollar insurer, two law firms, and a system that had already been corrupted against him. He went because the alternative was to let the lies stand.

The alternative was to let CSAA's twenty-one-day denial go unchallenged. To let the "news to me" representation stand as truth. To let the nine-to-three verdict; a verdict rendered by a jury that never heard the 911 confession in context, never saw the body-worn camera footage presented alongside it, and was expressly prohibited from considering the governing statutory duty of care; stand as justice.

He would not let the lies stand.

He entered the courtroom on the first day of trial carrying his own exhibits, his own witness binders, his own trial strategy. He had no paralegal setting up the counsel table. He had no associate tracking the court's rulings. He had no litigation support team monitoring the transcript in real time. He had himself, his laptop, and the record.

Victoria drove him to the courthouse that first morning. The drive was quiet. There was nothing left to say that had not been said in the four years since the crosswalk. She pulled up to the entrance and watched him get out of the car. Slowly, because the spinal damage made sudden movements painful; and gather the boxes of exhibits from the back seat. He stood on the sidewalk outside the Hall of Justice, a man in a suit carrying cardboard boxes, and she looked at him and saw two people simultaneously: the man he had been, commanding and brilliant and unbreakable, and the man he had become, diminished and alone and walking into a fight that the system had already rigged against him.

She drove to work. She went to her desk. She answered emails and took calls and attended meetings. And every fifteen minutes, her mind returned to that courtroom. To the image of Frank sitting alone at the plaintiff's table, managing his own case with a brain that a van had damaged four years ago, facing a defense team of professional lawyers funded by a corporation with unlimited resources. She could not be there with him. Someone had to earn the money that kept them housed and fed. Someone had to maintain the thread of financial stability that the collision and the litigation and the institutional stonewalling had stretched to its breaking point. That someone was Victoria. And so she sat at her desk and did her work and carried, in the quiet spaces between tasks, a weight that no job description included and no paycheck compensated.

The isolation of that courtroom was the culmination of four years of compounding abandonment. The driver had abandoned him on the pavement. The police had abandoned the investigation. The insurance company had abandoned its duty. The Dolan firm had abandoned the case. The court had abandoned its

obligation to provide the jury with the governing law. And now Frank Rosario sat alone at a table in a courtroom, and the only person who had never abandoned him. Victoria: was at her desk across the city, because the financial destruction wrought by this case demanded that she be there instead of where she needed to be.

Every morning of the eleven-day trial, this ritual repeated. The drive. The silence. The boxes. The sidewalk. The courthouse doors closing behind a man who had once commanded rooms full of engineers and executives and now stood alone before a jury, asking them to believe him over a multi-billion-dollar institution. Every evening, the ritual reversed. The drive home. The exhaustion: not just physical, but the deep, cellular exhaustion of a traumatic brain injury pushed beyond its capacity for hours on end. The notes to review. The exhibits to prepare for the next day. The pain medications. The fitful sleep. And the knowledge, carried like a stone in the chest, that tomorrow it would start again, and the day after that, and the day after that, for as long as the trial lasted.

The record was enough. Not enough to overcome the fraud in real time. The fraud had already done its work, the exclusionary framework was already in place, the preparation time had already been stolen. But enough to build, from the ashes of the trial, the architecture of three independent proceedings that would expose every lie the defense had told.

He would need every bit of the analytical rigor that had defined his career. And he brought every bit of it. The engineer went to war.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 13: Trial Day 7, Part One: The Supplemental Report

I.

Rosario Thread: Trial Day 7 raised its own questions. How does a self-represented plaintiff carry six days of trial into a seventh when every hour costs him more than it costs the defense? What happens when the evidence finally reaches the podium after the record has already been shaped against it? What cracks first: the lie or the person carrying the proof?

The engineer had gone to war. Six days of trial were behind him. And now, on the seventh day, the defense's carefully constructed architecture of suppression would begin to crack. Not because anyone planned it, but because the truth has a way of emerging through the gaps in any structure built on lies.

April 16, 2025. Trial Day 7.

Six days of trial were behind them. Rosario had navigated the openings, the directs, the crosses, the objections, the sidebars, the exhibit disputes. All with a traumatic brain injury, all without co-counsel, all under the constraints the fraud had imposed.

Now he was attempting to present the evidentiary case for liability. The collision. The crosswalk. The physics of impact. And embedded within that structure, the documents the Dolan firm had obtained from the SFPD: the 911 recording, the body-worn camera footage, the CAD logs, and a supplemental police report.

The supplemental report was a document generated by the SFPD after the initial incident report. It contained additional narrative about the collision that would have corroborated Rosario's account and challenged the defense's "no contact" theory.

Rosario marked it as an exhibit. He offered it to the court.

Navaratnasingham objected.

II.

Her words, preserved in the Trial Day 7 transcript at approximately line 2874:

"Your Honor, for the record, I do want to just state, as far as this document goes, this is not, we subpoenaed the police records for the incident and this is not anything that we received as part of the subpoena."

Read it again. She did not argue inadmissibility under the Evidence Code. She did not challenge foundation. She did not contend hearsay without exception. She said: we subpoenaed the police records, and this was not in what we received.

That was the subpoena shield. A technique of misdirection that operated by answering a question that was never asked. The question before the court was whether the supplemental report was admissible. The answer Navaratnasingham provided was about what the defense had received through its own subpoena. A document's admissibility did not depend on whether the opposing party received it through a particular discovery mechanism. A public record was admissible based on what it was, not on how the opposing party obtained its own copy.

But the shield worked because it operated within the ecosystem of false representations that had been building since January. The court had absorbed the defense's narrative: evidence of uncertain provenance, materials not received

through normal channels, plaintiff introducing items at the last minute. The subpoena shield added another data point to that pattern.

The court sustained the objection.

"It is not evidence. It is not in the report." Trial Day 7 transcript, lines 2888 through 2896. The supplemental report was excluded.

III.

The exclusion was Link 6 in the Reliance Matrix.

False representation: the subpoena shield, manufacturing the impression that the supplemental report's provenance was uncertain. Court ruling: exclusion. Harm: Rosario could not corroborate his account with the supplemental narrative.

Each link in the chain had the same structure. The defense made a false representation. The court relied on it. Rosario lost evidence. The pattern was systematic, not a single ruling, but a coordinated campaign that, ruling by ruling, stripped the plaintiff of the tools he needed.

IV.

And then, minutes later, the subpoena shield collapsed.

The court asked about the body-worn camera footage on the defense's own exhibit list. Navaratnasingham answered without hesitation: "Sure. They were provided by Dolan. He has had them for whatever, sure."

Provided by Dolan. Minutes earlier, she had created the impression that the defense's knowledge of the police records was limited to what their subpoena returned. Now she was casually acknowledging that the body-worn camera footage, part of the same Dolan production that included everything, had been provided by the Dolan Law Firm.

If the defense had received materials from Dolan outside the subpoena process, the subpoena shield was irrelevant. The question was never what the subpoena returned. The question was what the Dolan production contained.

The artifice confessed itself. But by then the supplemental report was already excluded. The damage was already done.

The transcript captures both moments in sequence. The shield and its collapse. The defense's right hand concealing what its left hand would reveal. The record preserves everything, and the record does not forget.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 14: "Sure. They Were Provided by Dolan."

I.

The question was simple.

Minutes after the supplemental report had been excluded, the court turned to a different matter. The defense had body-worn camera footage on its exhibit list. Five videos from the SFPD officers who responded to the scene. The defense had reviewed the footage, selected portions, and edited the five videos down to eight or nine minutes for the jury.

The court wanted to know the source.

Navaratnasingham answered.

II.

Reporter's Transcript, Trial Day 7, page 214, lines 13 through 15:

"Sure. They were provided by Dolan. He has had them for whatever, sure."

Eleven words. Spoken casually. Without hesitation. Without qualification. Without any of the careful hedging that had characterized every prior statement about the defense's possession of evidence.

"Sure." The word of someone confirming a known fact.

"They were provided by Dolan." Past tense. Established fact. The Dolan Law Firm had given the defense the footage.

"He has had them for whatever, sure." Dismissive. Uninterested in the specifics. The verbal shrug of settled knowledge.

It was not the language of someone learning new information. It was the language of someone describing furniture in a room she had walked through a thousand times.

III.

The admission detonated every representation the defense had made for three months.

January 17, MIL No. 17: materials "not produced during discovery." Defendant had "no idea where this 911 call log or audio recording came from."

February 18, pretrial hearing: "News to me." "Our office did not receive the 911 call until the day of the MSC."

April 16; Trial Day 7: "Sure. They were provided by Dolan."

Jessup had testified that the Dolan production was unified: "body cam footage, about five videos, as well as the 911 audio, as well as the CAD log." All three categories. Served together. In a single discovery response.

If the body-worn camera footage was "provided by Dolan," and the footage was part of a unified production that also included the 911 audio, then the 911 audio was also provided by Dolan. Receipt of one is receipt of all.

"News to me" was not news. It had never been news. The defense had the footage from Dolan. They had reviewed it. Curated it. Edited five videos down to eight or nine minutes. Placed it on their own exhibit list.

If they had the body-worn camera footage from Dolan, they had the 911 recording from the same production. "Not produced in discovery" was a lie. "No idea where it came from" was a lie. "Did not receive until the MSC" was a lie.

In eleven words, the entire pretrial narrative collapsed.

IV.

No one in the courtroom stopped.

That was how the truth emerged in the great fraud cases. Not with a drumroll. Not with a gasp from the gallery. Not with the dramatic courtroom confrontation that legal thrillers promise and reality almost never delivers. The truth emerged in the ordinary flow of business, in the bureaucratic hum of a trial proceeding, in an unguarded answer to a routine question. It emerged because maintaining a lie required constant vigilance, and human beings were not built for constant vigilance. Sooner or later, the truth slipped through.

In the tobacco litigation, the truth slipped through in an internal memo. "We are in the business of selling nicotine, an addictive drug." Seven words, written by a tobacco company executive in a moment of unguarded candor, that contradicted forty years of public denial. In the Enron scandal, the truth slipped through in

an email chain that revealed the architecture of the accounting fraud; casual, unremarkable, the digital equivalent of a conversation overheard in a hallway. In the Watergate investigation, the truth slipped through when a White House aide mentioned the existence of a taping system; a fact that no one had asked about, that no one expected to hear, that transformed the investigation overnight.

"Sure. They were provided by Dolan. He has had them for whatever, sure."

Eleven words, spoken casually, that contradicted three months of formal, deliberate, sworn representations to the court.

The trial continued. The judge moved to the next question. The jury was not present for the sidebar. The moment passed in the flow of proceedings.

Rosario Thread: Imagine hearing those eleven words. You were sitting alone at the plaintiff's table. You had been told for three months that the evidence was "unknown," that it was "news," that nobody knew where it came from. And now, in an unguarded moment, the opposing attorney had just admitted that the body-worn camera footage, from the same production that contained the 911 recording, was "provided by Dolan." She had just confessed, in open court, on the certified record, that everything she told the judge for three months was a lie. You heard it. You understood it. But you were one person with one damaged brain, managing witnesses and exhibits and objections simultaneously, and there was no second chair to leap up and say "Your Honor, counsel just contradicted every representation she has made." The moment passed. The truth slipped through, and no one stopped to hold it up to the light. That was what it meant to fight alone. Rosario heard the confession and filed it in the architecture of his mind, the architecture that would later produce the Fatal Proof, the Reliance Matrix, the three-front litigation design. He could not exploit it in real time. But he would not forget it. The engineer's mind captured the data point, and the data point would prove decisive.

Opposing Thread: On the other side, did Navaratnasingham realize what she had just conceded? Did she hear it as a slip, a harmless phrase, or not hear it at all? In a real courtroom, how many decisive facts pass by disguised as ordinary answers?

Rosario heard it. He recognized it. He understood what it meant. But he was alone at counsel table, managing his own case with a brain injury, tracking exhibits and witnesses and objections. He did not have a second attorney monitoring every statement, ready to leap up and say: "Your Honor, counsel just admitted the defense had these materials all along." He did not have the luxury that institutional litigants take for granted: the second pair of eyes, the associate tracking every word, the litigation support specialist flagging contradictions in real time.

He had himself. One man. One injured brain. And the knowledge that the truth had just been spoken; but that in the chaos of a real trial, truth and its recognition do not always coincide.

The fraud had already done its work. By the time Navaratnasingham said "provided by Dolan," every harm that flowed from the false representations had already been inflicted. The motions had been granted. The continuance denied. The supplemental report excluded. The 911 recording deferred. The truth, when it emerged in those eleven words, arrived too late to reshape the trial.

But it arrived on the record.

The certified transcript preserves the admission. It preserves the contradiction. It preserves, in the same document, the subpoena shield that excluded the supplemental report and the admission that proved the shield was an artifice.

"Sure. They were provided by Dolan. He has had them for whatever, sure."

Eleven words that undid everything the defense had built. The transcript speaks. The record remembers. The truth, spoken in an unguarded moment, has a permanence that outlasts every careful lie that preceded it.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 15: "I Am Not Sure What Recording He Is Referring To"

I.

Eleven words had just demolished three months of sworn representations. "Sure. They were provided by Dolan. He has had them for whatever, sure." The body-worn camera footage was from the Dolan production. The 911 recording was from the same production. The chain was forming. But the defense was not finished denying.

On the same day Navaratnasingham admitted the body-worn camera footage was "provided by Dolan," Rosario tried to play the 911 recording.

Opposing Thread: Now the questions narrowed. What does it mean when a lawyer denies knowledge of a recording his own subpoena sought by name? What does a judge hear in that moment: confusion, strategy, or theater? What does Rosario do with the lie when rage would only blur the record? He does the only thing available to him. He makes the record carry it.

He had been waiting for this moment. The recording: the defendant's own voice, captured by the SFPD dispatch system, containing the four words that anchored the entire case: was the evidentiary centerpiece of the liability presentation. Under Evidence Code section 1220, a party admission was not hearsay. It was admissible as of right. The defendant's own words, spoken at the scene, before lawyers, before strategy, before anyone had time to construct a narrative that contradicted reality. "I barely hit him." Four words that established contact. Four words that demolished the "no contact" defense.

Rosario stood at the podium with the recording ready. He offered it to the court.

Alberto Reyna rose and objected.

II.

His words are preserved at Reporter's Transcript, Trial Day 7, lines 2990 through 2994:

"I am not sure what recording he is referring to."

Not sure.

Alberto Reyna. The same Alberto Reyna who, on February 1, 2024, had issued a Compex deposition subpoena. Order No. CA1147102-021: to the San Francisco Police Department, specifically requesting the 911 call and body-worn camera footage by name. The same Alberto Reyna who had directed a professional process service company to subpoena that specific recording from the specific government agency that possessed it. The same Alberto Reyna who had known, fourteen months before this moment, exactly what 911 recording existed, exactly where it was housed, and exactly how to obtain it.

"I am not sure what recording he is referring to."

The subpoena was in the record. It bore Reyna's name. It bore the date of February 1, 2024. It identified the 911 call by description. It identified the SFPD as the custodial agency. It was a formal legal document issued by that attorney, in that case, requesting that recording.

Fourteen months later, the same attorney stood before the same court and claimed he did not know what recording the plaintiff was talking about.

That was not confusion. That was not a lapse of memory. A lawyer who issued a formal subpoena for a specific recording did not forget, fourteen months later, that the recording existed. The subpoena was not an informal phone call or a casual email. It was a formal legal instrument, processed through a professional service company, directed to a government agency, requiring compliance under penalty of contempt. The act of issuing such a subpoena required deliberate, specific knowledge of what was being requested.

The claim of uncertainty was an artifice. Business and Professions Code section 6068(d) prohibits an attorney from seeking "to mislead the judge or any judicial officer by an artifice or false statement of fact or law." The word "artifice" was chosen by the Legislature with precision. It means a device. A construction. A thing built for the purpose of deception. The claim that the attorney who had subpoenaed the 911 recording by name did not know what recording the plaintiff was referring to is an artifice in the precise statutory meaning: a device constructed to mislead the court about the identity and provenance of evidence.

The consequences for attorneys who violated section 6068(d) were severe. In Comden v. Superior Court (1978) 20 Cal.3d 906, the California Supreme Court held that an attorney's misrepresentations to the court are among the most serious forms of professional misconduct, because they strike at the foundation of the adversary system. The court's ability to rely on the candor of the officers who appear before it. In In re Ruffalo (1968) 390 U.S. 544, the United States Supreme Court held that attorneys have a unique obligation of truthfulness precisely because the judicial system depends on it: "The bar itself has a stake in protecting its own standards." California bar discipline cases confirm the principle with specific consequences. Attorneys who have made false statements to courts have been suspended, placed on probation, and disbarred. The State Bar of California's published disciplinary records contain dozens of cases in which attorneys were sanctioned for exactly the type of conduct documented in this certified record: making formal representations to the court about the state of evidence or discovery that the attorney knew, or should have known, were false. The conduct described in this chapter is not "aggressive advocacy." It is not "zealous representation." It is not a close call in the grey area between persuasion and deception. It is a documented, specific, provable violation of the statutory duty of candor that every California attorney swears to uphold.

III.

The court deferred admission of the 911 recording. Trial Day 7 transcript, lines 3024 through 3057. Rosario would have to testify first. The recording could be offered in connection with his testimony.

This sequence of rulings constitutes a profound evidentiary and due process error. The appellate issue is clear: Did the trial court abuse its discretion by excluding the supplemental police report and deferring the admission of the 911 recording based on the defense's factually false "subpoena shield" and representations of "unknown provenance"? The standard of review is Abuse of Discretion. Under Evidence Code section 1220, a party admission is explicitly admissible as of right. Admissibility is based on the nature of the evidence, not the mechanism by which the opposing party procured their own copy.

Yet, the court allowed the defense's extrinsic fraud to dictate the admissibility and sequence of the plaintiff's evidence. The defense deployed a "subpoena shield"

to exclude the supplemental report simply because it was not in the packet returned by their specific subpoena, an artifice the court accepted. Furthermore, the court deferred the 911 recording based on Alberto Reyna's feigned ignorance.

The ruling reorganized the evidentiary sequence, resulting in severe prejudice. Instead of hearing the defendant's own words first, the party admission that established contact, spoken at the scene, before any coaching or preparation, the jury would receive the recording after the defense had already spent days anchoring the jury with a "no contact" narrative. By the time the 911 recording was admitted and authenticated by the defendant, the evidentiary sequence was structurally corrupted. The most powerful single piece of liability evidence would arrive late, stripped of the corroborating body-worn camera footage and supplemental report, fragmented and decontextualized. The appropriate appellate heading is undeniable: The Trial Court Abused Its Discretion and Denied Plaintiff Due Process by Excluding and Deferring Corroborating Evidence Based on Defense Counsel's Extrinsic Fraud.

The deferral was Link 7 in the Reliance Matrix. False representation: Reyna's claim of uncertainty about the recording's identity. Court ruling: deferral of admission pending Rosario's testimony. Harm: disruption of the evidentiary sequence; the 911 recording arriving late, out of order, without the supporting structure that would have given it maximum impact.

The harm compounded every previous harm. The continuance denial had prevented Rosario from deposing officers and authenticating footage. The MIL rulings had imposed procedural constraints on his use of the evidence. The supplemental report had been excluded. Now the deferral of the 911 recording disrupted the evidentiary sequence he had planned.

Seven links in the chain. Seven false representations. Seven court rulings. Seven deprivations. Each individually documented in the trial transcript. Each flowing directly from a false statement by defense counsel. The cumulative effect: the systematic dismantling of the plaintiff's case, not by lawful adversarial contest, but by the corruption of the judicial process.

IV.

The defendant's own words would reach the jury. Eventually. But not in the form, at the time, or with the context that would have mattered.

The next day, Trial Day 8, the recording would finally play. The defendant would sit in the witness chair and hear his own voice. The question would be asked. The answer would come. But by then, eight days of defense narrative would have already settled into the jury's consciousness. The anchoring would be complete.

The recording would arrive as a coda, not an overture. A contradiction of a

story already told, not the foundation on which the truth was built.

Reyna knew the recording existed. His subpoena proved it. His objection denied it. Both documents are in the certified record. Both bear his name. Both cannot be true.

The transcript holds the contradiction, patient and immutable, waiting for the appellate court that will read it.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 16: "Yes. That Is My Voice."

I.

The recording had been deferred. The subpoena shield had worked. Reyna had professed not to know what recording the plaintiff was referring to. The defense had done everything in its power to keep the four words from the jury.

But the recording was in the courtroom. And the defendant was about to take the stand. The same defendant whose voice was on the recording. The same defendant whose attorneys had told the court the recording was "unknown." The same defendant who, when asked a simple question under oath, would seal the chain that his own lawyers had spent months trying to break.

On the morning of April 17, 2025, Subhi Abdelhalim walked to the witness stand in Department 504 of the San Francisco Superior Court, placed his hand on a Bible, and swore to tell the truth.

The fluorescent lights hummed. The courtroom held the quiet, mechanical stillness of a space designed for formality. Hard surfaces, neutral tones, the faint whir of ventilation moving air that smelled of paper and carpet adhesive. The jury sat in their box. The judge sat at the bench. And Rosario sat at the plaintiff's table, alone. No co-counsel to pass notes. No paralegal to cue exhibits. No second chair to catch contradictions in real time. A brain-injured man in a suit, with a laptop and a stack of transcript excerpts, about to cross-examine the man who had struck him in a crosswalk four years earlier and left him on cold pavement.

Abdelhalim had been prepared by his attorneys. They had reviewed the themes, rehearsed the framing, coached the language. He was insured by CSAA. The defense was funded by CSAA. The attorneys who had spent months telling the court that the 911 recording was "unknown" were CSAA's retained counsel. Abdelhalim was, in every functional sense, a mouthpiece for an institutional defense strategy designed to keep the jury from hearing his own words.

II.

The defense theory was simple. No meaningful contact. The pedestrian fell. The van may have been in the vicinity, but the forces were insufficient to produce the claimed injuries.

Abdelhalim testified consistently with this theory. His account minimized the event to the point of erasure. In the telling his lawyers had prepared, the collision was barely a collision at all.

The jury had been listening for eight days. They had heard the defense witnesses. They had heard the biomechanical expert. They had seen the body-worn camera footage, eight or nine minutes, curated by the defense from five full-length videos, presented on the defense's terms. The jury had not heard the 911 recording in context. They had not seen the supplemental report. They had not been given the Vehicle Code sections they would later ask about. They had received the defense's version of reality, carefully constructed over eight trial days, before they would hear the defendant's own words contradicting it.

That was how suppression worked. Not through the dramatic act of a document being destroyed. Through timing. Through sequence. Through the careful management of when evidence reached the jury's consciousness. A confession heard first, before the denial, framed the denial as a lie. A confession heard last, after eight days of denial, was filtered through the denial. The defense understood this. That was why they had fought to keep the recording out of the plaintiff's presentation sequence.

III.

The moment came in the afternoon.

The 911 recording, the same recording that had been the subject of nineteen motions in limine, the same recording that Navaratnasingham had called "news to me," the same recording that Reyna had professed not to recognize, was played in the courtroom.

The audio filled the room. The voice of a man on a phone. The dispatcher's questions. And then the words.

"I barely hit him."

The courtroom did not gasp. Real courtrooms do not gasp. The jurors sat. The judge sat. The defense attorneys sat. The words hung in the air of Department 504, reverberating not because anyone reacted but because the words themselves carried a weight that required no reaction. The defendant's own voice. The defendant's own admission. Made at the scene. Made before lawyers. Made before strategy. Made before the denial letter, the motions in limine, "news to me," all of it.

"Barely" was the confession's fingerprint. It acknowledged the act. It was the word of a man who knew what he had done and was already trying to make it smaller. I barely hit him. I did it, but not really. I confess, but please do not hold me to the full weight of the confession.

IV.

Rosario Thread: This is Rosario's moment. Four years. Five institutions. Every betrayal, every denial, every lie has led to this: a brain-injured man standing alone at a podium, holding a recording that the defense spent months trying to bury, about to ask the defendant the simplest question in the history of this litigation. No attorney coached him for this moment. No litigation team designed the cross-examination. No law firm mapped the strategy. One man, armed with the truth and the grit to deliver it, is about to force the defendant to authenticate the confession his own lawyers called "unknown." This is what rising to the occasion looks like. Not a Hollywood courtroom drama. Not a movie speech. A quiet, precise question, asked by a man who refused to let every institution in California gaslight him into silence.

Opposing Thread: And what about the witness in the chair? What passes through a defendant's mind when his own voice has just filled the courtroom? Denial? Calculation? Embarrassment? The last reflex to make a confession smaller before the answer leaves his mouth?

Rosario, standing at the podium with his transcript excerpts and his damaged brain, asked the question.

Is that your voice?

Abdelhalim sat in the witness chair. He was under oath. The recording had just played. The voice was his. He knew it. His attorneys knew it. The court knew it. Everyone in the room knew it.

He could have equivocated. He could have said the recording was unclear. He could have said he could not remember. His attorneys had spent months constructing a narrative in which this recording was of "unknown provenance." The entire pretrial strategy had been built to avoid this exact moment.

All of that effort. All of those false representations. All of those court rulings procured through fraud. And now the recording had played, and the question had been asked, and Subhi Abdelhalim was under oath, and there was nowhere left to hide.

Reporter's Transcript, Trial Day 8, line 1979:

"Yes. That is my voice."

Five words. The defendant authenticated his own party admission. The man whose attorneys had told the court the recording was "unknown" confirmed under oath that the voice was his. The voice that said "I barely hit him." His voice. His words. His confession.

Under California Evidence Code section 1220, a statement by a party to an action, offered against that party, is not hearsay. It is admissible as of right, no special foundation beyond authentication. The reason is simple and powerful: a party admission is the most reliable category of evidence in civil litigation because it comes from the person with the greatest incentive to shade the truth in his own favor. When that person, in his own words, at the moment closest to the event, says something that establishes liability, the statement carries a weight that no expert testimony, no documentary evidence, no reconstruction can match. "I barely hit him" was not an opinion. It was not hearsay. It was the defendant's own contemporaneous admission of the central fact in dispute, spoken before lawyers, before strategy, before the institutional machinery of denial had time to reshape reality.

The four words from the 911 call were now authenticated evidence. The foundational fact of the case, that the defendant had struck the plaintiff, was established through the defendant's own mouth, in two separate forms: the spontaneous utterance on the 911 call, and the under-oath authentication at trial. The Motions in Limine that had claimed this recording was "unknown" were now exposed not merely as false but as absurd; the defendant himself had confirmed every fact the motions had denied. His voice. His words. His recording. Authenticated by the very person the defense had spent months trying to disconnect from it.

V.

But the damage was already done.

The jury had heard the "no contact" testimony first. Eight days of defense narrative had been poured into the jury's consciousness before the four words arrived to contradict it. The anchoring effect; the cognitive phenomenon in which the first piece of information exerts disproportionate influence on subsequent judgments; had done its work. The defense understood this. That was why they fought to defer the recording. That was why they presented their evidence first.

The supplemental report was excluded. The body-worn camera footage was presented in the defense's curated edit. The governing Vehicle Code sections had not been given. The 911 recording arrived at the end, alone, without the supporting structure.

A capstone without a building beneath it. The most powerful piece of evidence in the case arrived in the jury's consciousness after the narrative framework had already been set by eight days of defense evidence.

The authentication proved more than the jury knew. The jury heard "Yes. That is my voice" as a factual confirmation. But it also proved that every pretrial representation about the recording's provenance had been false. The defense had told the court the recording was "unknown." The defendant confirmed it was his voice. The defense had told the court it had "no idea where it came from." The defendant confirmed it was a 911 call he made from the scene. Navaratnasingham had admitted the body cameras from the same production were "provided by Dolan."

In criminal law, the suppression of evidence favorable to the defendant by the prosecution is a constitutional violation under Brady v. Maryland (1963) 373 U.S. 83. The Brady doctrine exists because the Supreme Court recognized that the adversary system cannot produce just outcomes when one side hides evidence that the other side needs. A criminal defendant whose exculpatory evidence is suppressed has been denied due process; the fundamental right to a fair trial. Brady violations have led to the reversal of convictions, the release of wrongfully imprisoned individuals, and the disbarment of prosecutors.

What happened in this case is the civil equivalent. The defense suppressed evidence favorable to the plaintiff; not exculpatory evidence, but inculpatory evidence: the defendant's own confession on a 911 call that proved the plaintiff's case. The mechanism was different from a Brady violation: this was attorney misrepresentation rather than prosecutorial concealment: but the structural harm was identical. The party with institutional power hid evidence from the party without it. The fact-finder: the jury. Was denied access to material evidence in the form and at the time that would have allowed it to reach a just verdict. The resulting judgment was the product of an incomplete evidentiary record, shaped not by the merits but by the fraud.

The recording was not unknown. It was not unproduced. It was the defendant's own voice on a 911 call, captured by the SFPD, obtained by Dolan, produced in discovery, used in depositions, and sitting in the defense file for years while the defense told the court it did not exist.

Cognitive science describes what happens when evidence arrives in the wrong order. Psychologists call it the anchoring effect: the first piece of information a decision-maker receives about a disputed fact exerts disproportionate influence on subsequent judgments, even when later information contradicts it. The defense understood this intuitively. That is why they fought to present their "no contact" narrative first and to defer the 911 recording until the narrative had taken root.

By the time the jury heard "I barely hit him," they had already spent eight days absorbing testimony that no meaningful contact occurred. The confession did not arrive as the foundation of the plaintiff's case. It arrived as a late contradiction of a story the jury had already internalized. The anchoring was complete. And the anchoring was the direct product of the defense's suppression strategy.

"Yes. That is my voice." The four words and the five words. The confession and its confirmation. Separated by four years and a wall of institutional fraud. The transcript holds them both.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 17: The Jury's Question

I.

The defendant had authenticated the recording. "Yes. That is my voice." The four words and the five words were now both in the record. The truth had reached the jury. Late, fragmented, out of sequence, but it had reached them. And when the jury retired to deliberate, they did something that proved the suppression had not completely succeeded. They asked for the law.

During jury deliberations on April 23, 2025. Trial Day 11, the twelve jurors sent a written question to the court.

The question was direct. Preserved in the Reporter's Transcript at Trial Day 11, page 7, lines 23 through 27:

"In considering the question of whether the defendant was negligent, should we consider the provisions of Vehicle Code Sections 22107 and 21804(A)?"

Rosario Thread: The jury's note changed the question again. What does it mean when jurors go looking for the law on their own? What happens if they arrive at the right statutes before the court is willing to speak them aloud? How much hope can fit inside a single written question?

Opposing Thread: Now look to the bench and the defense table. When the jury asks for the law the plaintiff requested, what do the lawyers hear in that note: danger, annoyance, warning? And what does the court think it is preserving when it refuses to answer the question the jury has finally asked?

The jury was asking for the law.

Not for additional evidence. Not for a re-reading of testimony. Not for clarification of the facts. The jury had identified specific statutory provisions (the Vehicle Code sections governing turning movements and the duty to yield) and had formulated a precise legal question: were these provisions part of the framework they should apply in evaluating the defendant's negligence?

That was the question of a jury that was taking its deliberative responsibility seriously. They had sat through eleven days of trial. They had heard the evidence. They had heard the arguments. And when they retired to deliberate, they did what thoughtful jurors do: they asked whether there was a legal standard that governed the specific conduct at issue.

There was. Vehicle Code section 22107 provides that no person shall turn a vehicle from a direct course until such movement can be made with reasonable safety. Section 21804(a) requires a driver emerging from a private road or driveway to yield the right of way to approaching traffic that constitutes an immediate hazard. In a case where a driver turned through a crosswalk and struck a pedestrian, these statutes defined the duty. A violation would establish negligence per se, negligence as a matter of law.

The jury had found the law on its own. They had identified the governing provisions. They were asking the court to confirm that these provisions applied.

II.

The court refused.

"You may not consider Vehicle Code Sections 22107 and or 21804 subdivision A, nor will the Court instruct the Jury on those provisions."

The stated basis: the statutes were "not part of the evidence" and the jury was "not permitted to consider that as evidence in the case, period."

That was a legal category error of the most fundamental kind.

Statutes are not evidence. Statutes are law. Evidence is testimony, documents, physical exhibits, the material from which juries determine facts. Law is the set of rules that governs the legal significance of those facts. A jury does not "consider statutes as evidence." A jury applies law to facts. The court's instruction conflated two entirely different categories. It told the jury it could not consider the law because the law was not evidence. The statement is as logically coherent as telling the jury it cannot use the chairs because the chairs are not witnesses.

Evidence Code section 451(a) requires mandatory judicial notice of the provisions of every duly enacted California statute. The court is required to take notice of the Vehicle Code. It was not discretionary.

Code of Civil Procedure section 614 is equally unambiguous. When the jury "desires to be informed on any point of law," the information "required must be given." The statute is mandatory. "Must." Not "may." Not "should, in the court's discretion." Must.

The California Supreme Court has said this repeatedly, with increasing clarity, across decades of instructional error jurisprudence. In Soule v. General Motors Corp. (1994) 8 Cal.4th 548, the Court held that a trial court has a sua sponte duty, meaning a duty it must fulfill even without being asked, to instruct on any point of law relevant to the issues raised by the evidence. The failure to do so is reversible error when it is reasonably probable the error affected the outcome. The Court emphasized that jury instructions are the mechanism through which the legal system communicates the governing law to the people charged with applying it. When that mechanism fails, when the jury is denied the law it needs to decide the case; the verdict that follows is built on an incomplete foundation.

In Newing v. Cheatham (1975) 15 Cal.3d 351, the Court went further. Error in refusing to give a requested instruction on a material issue is prejudicial when the jury might have reached a different verdict. The Newing standard does not require certainty. It requires reasonable probability. And for a nine-to-three verdict, the minimum civil majority, one vote from a different outcome; the probability that a negligence per se instruction governing turning movements at intersections would have changed the result is not merely reasonable. It is overwhelming.

In Osborn v. Irwin Memorial Blood Bank (1992) 5 Cal.App.4th 234, the Court of Appeal addressed the specific question of when negligence per se instructions are required. The answer: when there is evidence that the defendant violated a statute designed to prevent the type of injury that occurred. Vehicle Code section 22107 governs turning movements. Section 21804(a) requires a driver emerging from a private road or driveway to yield the right of way. Both statutes were designed to prevent exactly what happened at Fifth and Tehama: a driver turning through a crosswalk and striking a pedestrian. The negligence per se instruction was not optional. It was mandatory under Osborn. The court's refusal to give it was not an exercise of discretion. It was error.

The jury asked for the law. The court refused to give it. The refusal violated Evidence Code section 451(a), CCP section 614, the Soule duty, the Newing prejudice standard, and the Osborn mandate for negligence per se instructions. It was the kind of error that appellate courts existed to correct.

III.

Rosario had requested the instruction.

He had submitted proposed jury instructions including CACI 700 (Vehicular Basic Standard of Care), CACI 707 (Driver's Duty to Pedestrians in Roadway),

and CACI 721 (Driver's Duty After Accident), all tied to Vehicle Code sections 22107 and 21804(a) governing turning movements and right-of-way duties. The court gave CACI 400 and 401; general negligence instructions: but refused to instruct the jury on CACI 707 and 721. The specific vehicular duties governing a driver's obligation to yield before turning, directly applicable to Abdelhalim's right turn onto Tehama, were withheld from the jury.

The jury's question during deliberations was a jury-generated confirmation that the instruction was necessary. The jury had independently identified the same statutory provisions that Rosario had asked the court to include.

The same day, the court had allowed into the jury room the plaintiff's original Complaint as a defense exhibit. That Complaint contained allegations expressly referencing Vehicle Code sections 22107 and 21804(a) as the statutory basis for defendant's negligence per se.

Stop and hold those two facts side by side. The court allowed a document into the jury room that cited Vehicle Code sections 22107 and 21804(a) as the legal basis for the plaintiff's claim. And the court simultaneously refused to instruct the jury on those same Vehicle Code sections.

The Complaint was in the jury room. The Vehicle Code citations were on the page. The jurors could read them. They could see the statutory section numbers. They could see the words "negligence per se." But they had not been told what those statutes meant. They had not been told that Vehicle Code section 21950(a) requires a driver to yield to a pedestrian in a crosswalk. They had not been told that a violation of the Vehicle Code constitutes negligence per se under CACI 418. They had not been told that the statutes the Complaint referenced were not just legal arguments but legal duties: mandatory obligations imposed by the California legislature on every driver who approaches a crosswalk. The document was in the room. The law it referenced was withheld.

The paradox is devastating for the defense. The Complaint's presence in the jury room means the jury was exposed to the concept that the Vehicle Code governed the defendant's conduct. The refusal to instruct means the jury was denied the tools to apply that concept. The jurors saw the destination but were given no map. They knew there was a legal framework: the Complaint told them so, in plain language, on a document the court had admitted as evidence. But the court refused to explain what that framework required.

That was not a harmless technical deficiency. That was the structural architecture of a mistrial. A jury that had been shown a legal standard but denied instruction on that standard was a jury that had been set up to fail. It would either ignore the Complaint's legal citations; in which case the document should never have been admitted. Or it would try to apply them without guidance, reaching conclusions that might or might not align with the actual law. Either outcome was prejudicial. Either outcome corrupted the deliberative process.

The resulting instructions: CACI 400 and 401 without CACI 707 or 721, left the

jury with a general negligence framework stripped of the specific vehicular duties that governed this exact type of collision. The jury had a "reasonable person" standard. It did not have the specific statutory duty that said: a driver turning through a crosswalk must yield to a pedestrian. Period. Not "should" yield. Not "ought to" yield. Must yield. The statute was mandatory. The instruction that would have told the jury that was denied. And the document that referenced the statute was sitting on the jury room table.

The court refused to give the jury the law it asked for. The jury was sent back to deliberate without the legal framework that governed the defendant's conduct at the intersection where the collision occurred.

Under de novo review. The standard of review for instructional error, a court of appeal examines whether the instruction given, or refused, was legally correct, and whether the error was prejudicial. The refusal here was not a close call. The court committed a categorical legal error by treating statutes as evidence and by refusing to inform the jury on the governing law it had specifically requested.

IV.

The instructional error became the primary ground for the appeal.

Case No. A173827, First Appellate District, Division Three. Rosario filed the appeal and presented the instructional error as an independent, self-contained ground for reversal. The appeal did not need to reach the fraud issues. The error stood alone.

The jury asked for the law. The court refused to give it. The refusal was erroneous as a matter of law. The error was prejudicial given the nine-to-three verdict.

Under the Watson standard of prejudice. Established in People v. Watson (1956) 46 Cal.2d 818 and applied in civil cases through the parallel standard of CCP section 475, an error is reversible when it is reasonably probable that a result more favorable to the appealing party would have been reached absent the error. The Watson standard did not require certainty. It did not require proof beyond a reasonable doubt. It required only reasonable probability, a standard that recognized the fundamental truth of appellate review: that perfect certainty about what a jury would have done under different circumstances was impossible, and that the law did not demand it. A nine-to-three verdict was the minimum civil majority. One juror changing sides produced a different outcome. The governing statutory duties, had the jury been permitted to apply them, would have provided a negligence per se framework; a framework that would have told the jury: a driver who turns through a crosswalk and strikes a pedestrian has violated the law, and that violation is negligence as a matter of law. For a verdict that close, the error could readily have altered the outcome.

The court that denied the continuance, excluded the supplemental report, deferred the 911 recording, and accepted the defense's false representations about the provenance of the evidence was the same court that now denied the jury the governing law it requested.

The jury would return its verdict without the statutory framework it had asked for.

The verdict would be nine to three.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 18: 9-3: The Minimum Majority

I.

On April 23, 2025, the jury returned its verdict.

Nine to three. Defense prevails.

The foreperson read the finding. The defendant was not negligent, or his negligence was not a substantial factor in causing harm to the plaintiff. Nine jurors had voted for that conclusion. Three had not.

Code of Civil Procedure section 618 requires a three-fourths majority for a civil verdict. In a twelve-person jury, three-fourths is nine. Nine to three was the minimum. It was the narrowest margin on which a civil verdict could stand. One fewer vote for the prevailing side, one juror persuaded differently on any single issue; and the outcome is different. Eight to four is a hung jury. A hung jury means a new trial. A new trial means the evidence gets presented again, possibly without the exclusions, the deferrals, the fragmentation, the fraud.

Nine to three. The defense won by exactly one vote.

II.

The number tells a story the verdict form does not.

A verdict of twelve to zero reflects a jury persuaded unanimously. A verdict of ten to two reflects strong consensus with limited dissent. A verdict of nine to three reflects a jury that was divided. Twenty-five percent of the panel, three human beings who sat through eleven days of trial, who heard the same evidence as the other nine, who deliberated in the same room; reached a different conclusion. The three dissenting jurors were not unreasonable. They had seen what the nine had seen. They had weighed it differently.

The question was whether the evidence they saw was the evidence that should have been before them.

It was not.

The 911 recording, the defendant's own admission of contact: had been deferred and presented out of sequence, arriving after eight days of defense narrative had anchored the "no contact" theory in the jury's minds. The supplemental police report; containing additional narrative corroboration from law enforcement. Had been excluded on the subpoena shield objection. The body-worn camera footage; five full-length videos from the SFPD officers who responded to the scene. Had been presented by the defense in an eight-or-nine-minute curated edit. The governing Vehicle Code provisions; the statutes that defined the defendant's duty of care at the intersection, had been withheld when the jury explicitly asked for them. And the forensic significance of the plaintiff's injury pattern, five posterior rib fractures, fractures to the back that could only be sustained by a blow delivered from behind, fractures that were biomechanically impossible under the defense's "scooter fall" or "no contact" theories, was never explained to the jury in terms that connected the medical evidence to the physics of the collision. The bones had told the truth. The jury was never told what the bones were saying.

Each of these evidentiary deprivations flowed from a specific false representation by defense counsel. Each produced a specific court ruling. Each removed a specific element from the evidentiary picture the jury was supposed to see. The cumulative effect was a trial in which the plaintiff's case was presented in fragments, out of order, stripped of context, while the defense's case was presented with institutional precision and unlimited resources.

Nine to three is the measure of how close the truth came to prevailing even in these conditions. Three jurors saw through the defense's narrative despite everything. Three jurors, denied the full evidentiary picture, denied the statutory framework, denied the corroborating documents, still voted for the plaintiff. The margin was one.

III.

The verdict was not the product of a fair trial.

It was the product of a proceeding in which the adversary system had been corrupted at its foundation. Not by witness perjury, the kind of fraud juries are equipped to evaluate through cross-examination and credibility assessment. By attorney fraud directed at the court. By false representations that manipulated the procedural and evidentiary framework within which the jury deliberated.

That was the distinction between intrinsic and extrinsic fraud that defined the equity action.

Intrinsic fraud was fraud within the proceeding. A witness lied on the stand. The adversary process had mechanisms for that: cross-examination, impeachment, contradicting evidence. The jury evaluated it.

Extrinsic fraud was fraud that operated on the structure of the proceeding itself. It manipulated the procedural framework so that the adversary process could not function correctly. The jury never saw it. The jury could not evaluate it. The jury deliberated within a system that had already been corrupted.

The false representations in this case were extrinsic fraud in the technical legal sense. They were not lies told to the jury for the jury to weigh. They were lies told to the judge, shaping the judge's rulings on continuances, evidentiary motions, and jury instructions. The jury never knew about them. The jury could not evaluate them. The jury deliberated within a framework that had been corrupted before the jury was ever empaneled.

IV.

Rosario Thread: Nine to three raised the hardest questions in the book. How do you measure loss by a single vote? What lingers longer: the defeat itself, or the knowledge that the evidence never reached the jury in full? When a verdict is this narrow, what exactly has been decided?

The verdict was read. The courtroom emptied. And Frank Rosario sat alone at the plaintiff's table in the silence that follows defeat.

Nine to three. Four years of suffering. Four years of fighting. Four years of watching his life disassemble itself piece by piece. Career, savings, health, independence, dignity; and the system had produced its answer: no. The man who struck him in a crosswalk owed him nothing. The insurance company that denied his claim without investigation owed him nothing. The attorneys who lied to the court owed him nothing. The court that refused to give the jury the law it requested owed him nothing. He was being told he owed $76,308.90 for the privilege of having been there.

He drove home. Victoria was waiting. She saw his face and knew. She did not need to ask. Four years of living inside this case had given her the ability to read every shade of his expression, every variation in the set of his shoulders,

every degree of exhaustion in his gait. She knew before he spoke. The system had failed them again.

That evening was the quietest evening of the entire five-year ordeal. They sat together in the living room, and neither of them spoke for a long time. There was nothing to say. The words had been used up; in briefs and motions and exhibits and oral arguments and depositions and hearings. Every argument had been made. Every piece of evidence had been presented. Every legal theory had been articulated. And the result was nine to three.

The compound effect of the verdict on a man who had already absorbed four years of institutional abuse is difficult to convey to someone who has not experienced it. Imagine a wound that has been healing; slowly, painfully, imperfectly, but healing. Imagine that the scar tissue is forming, the nerve endings are reconnecting, the body is beginning to believe that recovery is possible. Now imagine that someone takes a knife and opens the wound again. Not a new wound. The same wound. In the same place. With the same instrument. That is what the verdict felt like. Not a new injury. A reopening of every injury that had come before. The collision was in the verdict. The five-dollar bill was in the verdict. The police report was in the verdict. The denial letter was in the verdict. The Dolan firm's betrayal was in the verdict. Every moment of humiliation, every instance of institutional indifference, every lie told by every defendant in every proceeding; all of it was distilled into two numbers: nine and three.

Victoria went to bed that night carrying a thought she had never spoken aloud. The thought was this: how much longer can we survive this? Not the lawsuit. The lawsuit was a legal abstraction. The question was about them. Their marriage. Their health. Their finances. Their capacity to endure. She had watched the man she loved fight a battle that no person should have to fight alone, and the battle had consumed him; not all at once, but incrementally, the way a river consumes a bank: a little more each day, imperceptible in the moment, catastrophic over time. The Frank who had walked into this fight four years ago was not the Frank who sat in the living room tonight. The collision had taken his health. The litigation had taken his money. The institutional betrayals had taken his trust. And now the verdict had taken the one thing he had been holding onto: the belief that the truth would be enough.

Rosario Thread: Then came the final question of the chapter. What does a man do the night the system tells him no? Does he absorb the number and stop, or does he go back to the transcript and ask where the proceeding bent away from the truth? Rosario chose the second question.

Opposing Thread: And across the aisle, what does a 9-3 defense verdict mean to the corporation that paid for it? Relief? Vindication? Permission for the next act of aggression, the costs memo, the insistence that the proceeding was fair? What does a narrow win teach an institution that was never forced to confront the full record in front of the jury?

But the truth was still in the record. And Frank Rosario, even in the aftermath

of a verdict that would have broken most people, was not most people. He was the man who crawled across a crosswalk with shattered ribs to save his own life. He was the man who refused the five-dollar bill. He was the man who taught himself trial law while managing a traumatic brain injury. He was the man who went to war alone against a multi-billion-dollar institution because the alternative was to let the lies stand.

He would not let the lies stand.

The judgment could not stand. The certified record proved it.

The appeal, Case No. A173827, challenged the instructional error on independent grounds. If the appeal succeeded, the case would be reversed and remanded for a new trial.

The equity action, CGC-25-631801, challenged the verdict directly on grounds of extrinsic fraud. If the equity action succeeded, the judgment would be vacated and the case retried on a fair record.

The fraud action, CGC-25-631802, sought compensation for the harms caused by the first lie: the denial letter, the premature conclusion of the investigation, the years of bad faith that followed.

Three proceedings. Three legal theories. Three decision-makers. Each standing independently. Each drawing proof from the same immutable record. The full magnitude of the fraud had only become apparent after the defense's own MIL strategy backfired: having filed motions claiming the 911 recording was "unknown," the defense created a documented paper trail of false representations. When Navaratnasingham then admitted on Trial Day 7 that the body-worn camera footage was "provided by Dolan", from the same production that contained the 911 recording: the paper trail became a confession. And when Abdelhalim himself authenticated the recording under oath the next day, the chain was sealed. The Motions in Limine did not merely suppress evidence. They became the evidence of fraud.

The verdict was polled. Each juror was asked individually to confirm their vote. Nine for the defense. Three for the plaintiff. The poll formalized what the number had already revealed: this jury was divided. Three people, a quarter of the panel. Had sat through eleven days of trial, evaluated the evidence the court allowed them to see, and concluded that the defendant was liable. They had reached that conclusion despite every evidentiary deprivation the fraud had imposed. Despite the deferred 911 recording. Despite the excluded supplemental report. Despite the curated body-cam footage. Despite the withheld Vehicle Code instructions. Three jurors had seen through it all. The poll locked their dissent into the record. It would stand as evidence, in the appeal and the equity action, that the errors in this trial were not harmless. That reasonable jurors, presented with even the degraded evidentiary picture the fraud had left intact, could and did reach a different conclusion.

On April 25, 2025, judgment was entered for the defendant. On April 29, 2025, Notice of Entry of Judgment was filed.

And then, on April 30, 2025, the defense filed a Memorandum of Costs seeking $76,308.90, with a Declaration of Alberto Reyna in Support.

Seventy-six thousand, three hundred and eight dollars and ninety cents. That is what the institutional defense wanted the brain-injured, fee-waiver-qualifying pro per plaintiff to pay for the privilege of having tried to get his case heard. The same defense team that had suppressed the 911 recording for years. The same defense team that had told the court the evidence was "news to me." The same defense team whose false representations had corrupted the trial from which this verdict emerged. That team now wanted Frank Rosario; a man who could not afford filing fees, who had qualified for a fee waiver, whose career had been destroyed by the collision the defense denied, to write them a check for $76,308.90.

The Memorandum of Costs was not just a financial demand. It was a weapon. Under California law, a prevailing defendant in a personal injury action may recover certain litigation costs from the plaintiff. The mechanism exists for legitimate purposes, to prevent frivolous litigation, to compensate parties who successfully defend meritless claims. But in a case where the defendant prevailed only because the defense team had committed fraud on the court; where the verdict was the direct product of false representations that excluded the plaintiff's strongest evidence, denied him preparation time, and withheld the governing law from the jury, the costs motion was not a legitimate exercise of legal rights. It was the final turn of the screw. It was the insurance company, through its defense team, demanding that the victim pay for being victimized.

The institutional defense was not content with the verdict. It wanted Rosario to pay for the privilege of having been defrauded.

Rosario filed multiple post-trial motions on May 5, 2025: Motion for Judgment Notwithstanding the Verdict, Motion to Vacate, Motion for Second Motion to Vacate for Fraud on the Court, Motion for New Trial, Motion for Mistrial, Second Motion for Mistrial, Ex Parte Request for Stay, and Request for Statement of Decision. All were supported by declarations detailing the evidentiary suppression, the false representations, and the instructional error. The defense filed objections. The court took the matter under submission.

On May 28, 2025, the court held a hearing on the post-trial motions. The arguments were made. The briefs were submitted. The declarations were filed. The certified transcript citations were provided. The Reliance Matrix, the Fatal Proof, the Narrative Effect analysis, all of it was before the court. The proof that the defense had committed fraud on the tribunal was not a matter of inference or speculation. It was a matter of reading the court's own transcript.

On July 15, 2025, Judge Garrett L. Wong issued a single order.

JNOV: DENIED.

Vacate: DENIED.

Second Vacate for Fraud on the Court: DENIED.

New Trial: DENIED.

Mistrial: DENIED.

Second Mistrial: DENIED.

Stay: DENIED.

Statement of Decision: DENIED.

Eight motions. Eight denials. A single order. Every post-trial remedy the California legal system provides to a party who has been deprived of a fair trial: every mechanism the Code of Civil Procedure establishes for correcting error, vacating fraudulent judgments, granting new trials, declaring mistrials; every one of them, denied. Not some. Not most. All.

The July 15 order was the final act of the trial court. The court that had denied the continuance. The court that had accepted the defense's false representations about the provenance of the 911 recording. The court that had excluded the supplemental report on the subpoena shield objection. The court that had refused to instruct the jury on the Vehicle Code when the jury explicitly asked for it. The court that had presided over a trial in which the plaintiff's strongest evidence was deferred, fragmented, and stripped of context. That court now looked at the certified record of its own proceedings. The record that contained "news to me" and "provided by Dolan" in the same transcript, separated by weeks, spoken by the same attorney, about the same evidence; and denied every motion.

The denials were not reasoned opinions. They were categorical. They did not address the contradictions in the transcript. They did not explain how "news to me" could coexist with "provided by Dolan." They did not analyze the Reliance Matrix or respond to the causal chain connecting the false representations to the court's own rulings to the specific evidentiary deprivations the plaintiff suffered. They were denials. Period. Full stop. The trial court's last word.

For an ordinary litigant, the July 15 order would have been the end. Eight denials from the trial judge. No remedy at the trial level. The case is over. The system has spoken. Go home.

Rosario did not go home.

Rosario had already filed a Notice of Appeal on June 27, 2025; before the July 15 order, anticipating its outcome. The appeal was assigned Case No. A173827 in the First Appellate District, Division Three.

Nine to three. The minimum civil majority. A verdict that existed only because the defense had filed nineteen Motions in Limine built on false claims about evidence they had possessed for years; and because the court had trusted those

claims. But the same motions that had suppressed the evidence became the proof of the suppression. The same "news to me" that had deceived the court was contradicted by the same attorney's "provided by Dolan." And the same recording the defense had called "unknown" was authenticated by the defendant himself: "Yes. That is my voice."

Rosario did not accept the verdict. He filed the appeal. He filed the equity action. He filed the fraud action. He filed the bar complaints and the judicial complaint. He built, from the defense's own words in the certified transcript, the three-front architecture that would force every defendant to account for every lie.

The fight was far from over.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

PART FOUR: THE RECOGNITION

The trial was over. The verdict was rendered. Nine to three. The minimum civil majority. The institutional defense had won: or so it appeared.

But the trial had left something behind that no verdict could erase: a certified transcript. A document that contained, in the same pages, the lie and its confession. "News to me" and "provided by Dolan." The claim that the 911 recording was "unknown" and the defendant's authentication of the very same recording: "Yes. That is my voice." The defense had filed Motions in Limine claiming the evidence did not exist: and then the defendant himself had proved it did. The architecture of the fraud was embedded in the record, waiting for someone to see it.

CHAPTER 19: The Recognition

I.

Rosario ordered the certified transcript the day after the verdict.

Nine to three. Defense prevails. The foreperson had read the verdict, and the courtroom had emptied, and the institutional defense team had packed their litigation bags and walked out into the San Francisco afternoon, and Frank Rosario had sat alone at the plaintiff's table in Department 504, processing what had just happened with a brain that had been permanently altered four years earlier on a crosswalk twelve blocks from where he now sat.

He could have let it end there. The verdict was rendered. The case was over. The institutional defense had won. The system had produced its result, and the result was that CSAA Insurance Exchange and its insured owed Rosario nothing, and the four years of litigation and the traumatic brain injury and the lost career and the hundreds of thousands of dollars in medical expenses and the tens of thousands in litigation costs were his to absorb, alone, forever.

He ordered the transcript instead.

The certified Reporter's Transcript was the definitive record of what happened in a courtroom. Every word spoken on the record, every question, every answer, every objection, every ruling, every representation by counsel, was captured by the court reporter and preserved in a document that carried the force of official truth. It was the record that appellate courts reviewed. It was the record that bar investigators examined. It was the record on which fraud-on-the-court claims were built.

Rosario read it. Every page. Every line. With the analytical precision of a systems architect examining the logs of a failed system.

And he saw it.

II.

The contradiction was in the transcript. It had always been in the transcript. From the moment Navaratnasingham said "Sure. They were provided by Dolan" on Trial Day 7, the proof of the fraud was embedded in the official record of the proceeding. But during the trial, buried under the avalanche of testimony and objections and rulings and procedural demands, the contradiction had not been pressed. There was no co-counsel to catch it. There was no second chair to cross-reference it against the February 18 hearing transcript. There was only Rosario, alone, managing a complex trial with a brain injury, and the moment had passed.

Now, in the quiet of his home, with the certified transcript spread before him and no courtroom clock ticking, he could see the architecture of what had happened.

Set A: "News to me." "Did not receive until MSC." "No idea where it came from." "Not produced in discovery."

Set B: “Sure. They were provided by Dolan. He has had them for whatever, sure.”

Both sets of statements were in the same certified record. Made by the same attorney. About the same evidence. In the same case. They could not coexist. If Set B was true, if the body-worn camera footage had been “provided by Dolan”. Then Set A was false. The materials had not been “news.” The defense had not been ignorant. The evidence had not been unproduced. The entire pretrial narrative had been a lie.

The recognition hit with the force of a physical blow. Not the recognition that the defense had lied, he had suspected that throughout the trial. The recognition that the proof of the lie was already in the record. The defense had confessed its own fraud, in open court, on the certified transcript, and the proof would endure for as long as the record existed.

He sat with the transcript and, for the first time since February 4, 2021, allowed himself to see the full scope of what had been done to him.

Not just the collision. Not just the broken ribs and the damaged brain and the collapsed lung. Not just the physical injuries that had altered his body. He allowed himself to see the full architecture of the destruction, the way the collision had been the first blow in a sequence of blows that had not stopped for five years, each one delivered by a different institution, each one landing on a man who was already damaged by the blows that came before.

The collision took his health. On February 4, 2021, Frank Rosario was a fifty-three-year-old man in the physical and cognitive prime of his career. By February 5, he was a trauma patient with a brain injury, fractured ribs, a collapsed lung, and spinal damage. The health he had taken for granted, the ability to wake up and work a twelve-hour day without thinking about his body, the ability to exercise, to travel, to engage with the world without pain as a constant companion, was gone. Permanently. Irreversibly. The brain does not heal the way bones heal. The cognitive overhead he now carried was permanent. The fatigue was permanent. The sensory sensitivity was permanent. The man who had designed AI systems with a mind that moved like precision machinery now operated with a mind that moved through wet concrete.

The police report took his credibility. Before the Fernandez report existed, Frank Rosario was a victim. After the Fernandez report, he was a suspect. The official narrative of the San Francisco Police Department said he had caused his own injuries. Every institution that encountered the report; the insurance company, the defense attorneys, the court, encountered a version of events in which the victim was the wrongdoer. Rosario spent five years fighting to overcome an official government document that blamed him for being struck from behind in a crosswalk. The psychological weight of that fight; the constant need to prove that the thing that happened to you actually happened, against the authority of the state; is a form of torture that leaves no marks on the body.

The denial letter took his financial security. CSAA's twenty-one-day denial forced Rosario into litigation. Litigation required attorneys. Attorneys required retainers. Retainers required money. The medical bills were consuming his savings. The inability to work was eliminating his income. The institutional refusal to honor its obligation transferred the financial burden of a catastrophic injury from the corporation that was contractually obligated to bear it to the individual who was least equipped to absorb it. By the time the case reached trial, the man who had earned between $550,000 and $1,000,000 a year qualified for a fee waiver.

The Dolan firm took his trust in his own advocates. The people Rosario hired to fight for him had concealed from him the strongest weapon in his arsenal. They had pressured him to settle for half the policy limit while sitting on the evidence that would have supported a demand for the full amount. They had withdrawn when he refused to capitulate. The betrayal by one's own attorneys is a particular form of institutional violence, because it destroys the last refuge of the individual in the legal system: the belief that your lawyer is on your side.

The defense attorneys took his right to a fair trial. The false representations about the 911 recording, the exclusion of the supplemental report, the deferral of the party admission, the curated body-cam footage; each tactical maneuver was a theft. A theft of the right to present his case on its merits. A theft of the right to a jury that had seen all the evidence. A theft of the right to be heard.

The court took his faith in justice. When the jury asked for the law and the court refused to give it, the last institutional safeguard failed. The courts exist for moments like this; moments when an individual with the truth confronts an institution with the power. The courts are supposed to be the place where truth and power meet on equal terms. When the court denied the jury the governing law, it told Frank Rosario what every other institution had already told him: you do not matter.

Five years. Five institutions. Five layers of compound harm, each building on the last, each deepening the damage that the previous one had inflicted. The collision was the stone dropped into the water. The police report was the first ripple. The denial letter was the second. The Dolan betrayal was the third. The defense fraud was the fourth. The verdict was the fifth. And each ripple did not merely add to the ones before it. It amplified them. The financial ruin that followed the denial letter was worse because the police report had already undermined Rosario's credibility. The Dolan betrayal was worse because the denial letter had already depleted his resources. The defense fraud was worse because the Dolan withdrawal had left him without counsel. The verdict was worse because the defense fraud had stripped him of his evidence.

That was what compound institutional abuse did to a human being. It did not break you once. It broke you in layers. Each layer thinner than the last. Each fracture requiring less force than the one before, because the structural integrity that once absorbed the blow had been degraded by every previous blow. By the

time the verdict landed, Frank Rosario had been fractured so many times that the nine-to-three felt not like a legal ruling but like a final, definitive statement from the universe: you will not be made whole. You will not be compensated. You will not be acknowledged. You will carry this alone, and you will carry it forever.

And yet.

He sat at his kitchen table with the transcript. He read it. He saw the contradiction. He saw the proof. And he began to build.

III.

Rosario did what a systems architect does when he discovers a fundamental failure in a system. He mapped it.

He built a document he called the Fatal Proof. It was a systematic catalog of every contradicting statement by the defense, mapped against the evidence that proved each statement false. Each entry contained the false representation, the date it was made, the transcript citation, and the contradicting evidence. The document was not argumentative. It was documentary. It let the record speak.

He built the Reliance Matrix. Seven rows. Each row: a false representation, the date, the transcript citation, the court ruling it produced, and the specific harm that flowed from the ruling. Seven links in a chain that connected the fraud to the verdict. The chain was complete. Each link was documented. Each link was traceable to the certified record.

He built the Narrative Effect of Misrepresentations on Plaintiff; a causal analysis tracing each false representation through the court's reliance to the specific deprivation Rosario had suffered. The continuance denial. The evidentiary exclusions. The deferred 911 recording. The withheld jury instructions. Each harm was the downstream consequence of a specific lie.

And then he saw something larger. The architecture of the two lies created a vulnerability that no single legal proceeding could fully exploit. The first lie. The denial letter: was a fraud committed before litigation, outside the courtroom. The second lie (the false representations to the court) was a fraud committed during litigation, inside the courtroom. The instructional error (the court's refusal to inform the jury on the Vehicle Code) was a legal error independent of both lies.

Each of these failures required a different legal theory. A different decision-maker. A different standard of review. A different remedy.

One man, working alone, with a traumatic brain injury and the certified transcript of his own trial, designed a three-front litigation architecture that would force

the defense to defend on three fronts simultaneously, with no set of positions that could satisfy all three.

The engineer had found the flaw in the system. And he was going to exploit it.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 20: Three Fronts

I.

Three independent proceedings. Three legal theories. Three decision-makers. Three remedy lanes. Each standing independently. Each drawing proof from the same immutable record. Each designed to address a different dimension of the fraud that produced the nine-to-three verdict. And each born from the moment the defense's own strategy turned against itself. When the Motions in Limine that had suppressed the 911 recording became the documentary proof of fraud, when "news to me" was demolished by "provided by Dolan," and when the defendant's own authentication of his voice sealed the chain.

The appeal. Case No. A173827. First Appellate District, Division Three. Rosario isolated it on the instructional error. The jury had asked for the law. The court had refused. De novo review. The appeal did not mention fraud. It did not need to. It presented a single, clean legal question: did the trial court commit reversible error when it refused to inform the jury on Vehicle Code sections 22107 and 21804(a)? The prejudice standard asked whether a different result was reasonably probable absent the error. The verdict had been nine to three. The governing statutory duties, applied to a driver who turned through a crosswalk and struck a pedestrian, would have provided a negligence per se framework. For a verdict that close, the probability of a different result was substantial.

The equity action. CGC-25-631801. Seven defendants. Extrinsic fraud. The second lie. False representations to the judge that corrupted the procedural framework and prevented the plaintiff from having a fair adversary hearing on the merits. The proof was in the defense's own words: the MIL filings that claimed the 911 recording was "not produced in discovery," Navaratnasingham's "news to me" at the February 18 hearing, and then her admission on Trial Day 7 that the body-worn camera footage from the same production was "provided by Dolan." The causal chain ran from the false representations through the court's

reliance to the rulings that stripped Rosario of his strongest evidence. And then to the defendant's own authentication of the recording his lawyers had called "unknown."

The legal theory drew from Kulchar v. Kulchar (1969) 1 Cal.3d 467. In Kulchar, a husband concealed assets during a divorce proceeding, manipulating the legal framework so the court could not render a fair judgment. The California Supreme Court held that equity will vacate a judgment obtained through such "extrinsic fraud." This refers to lies that subvert the adversary process itself, deceiving the judge to strip a party of their right to a fair hearing, rather than "intrinsic fraud" like a witness lying on the stand. The Kulchar doctrine had deep roots. In Estate of Sanders (1985) 40 Cal.3d 607, where an executor concealed the true value of an estate from a beneficiary, the Court affirmed that equity will intervene to prevent fraud from destroying the judicial process, holding that the integrity of the judiciary itself requires that judgments procured through fraud be set aside. In Olivera v. Grace (1942) 19 Cal.2d 570, the Court dealt with a case where a plaintiff took a default judgment against a woman he knew was incompetent. The Court held that a judgment obtained by extrinsic fraud is void and may be attacked in equity at any time. There is no statute of limitations on judicial fraud. The equity action did not ask the court to exercise discretion. It asked the court to enforce its own integrity. The Kulchar doctrine required knowledge of falsity, false representations to the court, and court reliance producing deprivation. Every element was documented in the certified transcript. The defense knew. The defense lied. The court relied. The plaintiff was deprived.

The fraud action. CGC-25-631802. The first lie. CSAA's denial letter. The false representation that the investigation had been "concluded" twenty-one days after the collision, before the 911 recording, body-worn camera footage, or CAD logs had been obtained. The remedy for this is Prentice damages: the costs of the litigation that the false denial forced. Under Prentice v. North American Title Guar. Corp. (1963) 59 Cal.2d 618, the California Supreme Court established the "Tort of Another" doctrine. In the Prentice case, a title company's negligence forced sellers into a lawsuit to quiet title, and the Court ruled that the negligent party must pay the sellers' litigation costs. The Court held that when a defendant's tortious conduct forces the plaintiff into litigation with a third party, the costs of that forced litigation are recoverable as consequential damages. Because CSAA's bad-faith denial forced Rosario into five years of litigation against a third party, every penny of his litigation costs becomes recoverable. The Prentice doctrine was the legal mechanism that connected the denial letter to the five-year litigation: every deposition fee, every filing cost, every hour of trial preparation, every dollar spent proving what the driver had already confessed traced back to the February 25, 2021 letter. Under Sooy v. Peter (1990) 220 Cal.App.3d 1305, Prentice damages included all litigation costs proximately caused by the fraud, including attorney fees, expert fees, and the opportunity costs of the litigation itself. Punitive damages: the institutional bad faith of a multi-billion-dollar insurer that chose speed over substance and denial over investigation, actionable under Civil Code section 3294 through the

Neal v. Farmers standard of conscious disregard.

II.

Consider what you were witnessing. A man with a traumatic brain injury, representing himself, with no money and no institutional support, had designed a three-front litigation architecture that would do credit to a major plaintiff's firm. Three proceedings. Three legal theories. Three decision-makers. Each standing independently. Each creating contradictions the defense could not resolve. The appeal forced them to defend the evidentiary record. The equity action forced them to explain the lies. The fraud action forced them to justify the denial. And every position they took in one proceeding generated adverse implications in the others. The defense built the trap with their own lies. Rosario built the mechanism that held it closed. That was the work of a man who refused to let the system gaslight him into silence. That was what grit looked like when it was paired with intelligence and directed by an unbreakable commitment to the truth. The attorneys who denied the 911 recording's existence, the insurer that denied the claim in twenty-one days, the court that denied the jury the governing law; all of them were now inside a logical architecture from which there was no escape. And the man who built it was the same man they left bleeding internally on a crosswalk.

The design was not merely tactical. It was structural.

Each front addressed an element that no single proceeding could address. The appeal had jurisdiction over legal error but not fraud. The equity action had jurisdiction over fraud on the court but not pre-litigation bad faith. The fraud action had jurisdiction over the denial letter but not the appellate question. Each proceeding was the right vehicle for the theory it advanced. Together, they covered the full architecture of the harm.

The cross-front contradiction web was the feature that made the design a closed logical system. Consider the defense's available positions:

In the appeal, to defeat the prejudice argument, the defense had to argue that the evidentiary record was sufficient for a fair verdict even without the instructional error. That argument conceded the evidentiary record was meaningful. If the record was meaningful, the disruptions caused by the false representations were prejudicial. The defense could not simultaneously argue "the record was sufficient" in the appeal and "the disruptions caused no harm" in the equity action.

In the equity action, to defeat the fraud claim, the defense had to either deny the false representations or argue they were immaterial. If they denied the representations, the certified transcript contradicted them, "provided by Dolan" demolished "news to me" in the same document, and the defendant's own authentication of the recording demolished every claim of "unknown provenance."

If they argued immateriality, they had to explain why the court's rulings following each representation were unaffected, and the Reliance Matrix documented the causal chain from MIL filing to court reliance to evidentiary deprivation.

In the fraud action, to defeat the Prentice damages claim, CSAA had to argue the denial letter was not false. To make that argument, CSAA had to defend its twenty-one-day investigation of a catastrophic pedestrian injury. The record of the five-year litigation that followed made that argument difficult to sustain.

No single set of positions satisfied all three fronts. Every defense posture generated adverse implications in at least one other proceeding. The logical system was closed. The defense had built the trap with the two lies. The three-front architecture kept it closed.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 21: The Binary Trap

I.

Here is the genius of what Rosario built. Every defendant faces a binary question. And every answer (yes or no, admit or deny) leads to liability. There is no third option. There is no escape hatch. The defense's own lies created the trap, and Rosario's architecture sealed it shut. This is the response of a man who was told by every institution in his life that the truth did not matter, and who proved, through the force of his own analytical mind, that the truth was the only thing that mattered. The police said his injuries were his fault. The insurer said the investigation was "concluded." The defense said the evidence was "unknown." The court said "I see. Okay." And Rosario, working alone at his kitchen table with a damaged brain and the certified transcript, turned every one of those lies into a trap from which the liars cannot escape.

For each defendant, both possible answers to the core factual question lead to liability.

That was not rhetoric. It was mathematical structure. The binary trap was a feature of the evidentiary record that the defendants themselves created. Each false representation established a factual claim. Each claim required either

confirmation or denial. Each response generated a specific legal consequence. And the documentary record eliminated every path of escape.

For PSA and its attorneys, the question is simple: did you review the file when you took over the case in May 2023?

If yes: you possessed the Dolan production, the 911 recording, the body-worn camera footage, the CAD logs, for twenty months before telling the court "this is news to me." Twenty months of knowing possession followed by a sworn statement of ignorance is a knowing false statement to the court. Business and Professions Code section 6068(d). Rule 3.3(a)(1). The bar complaint follows. The equity action follows.

If no: you made formal legal representations about the discovery record; representations that controlled the court's rulings and shaped the trial; without performing the baseline professional obligation of reading your own file. A law firm that represents to the court that evidence was "not produced in discovery" without having reviewed the file that would tell them whether it was produced has acted with reckless disregard for the truth. Reckless disregard satisfies the scienter element of fraud.

Both answers destroy the "innocent non-recipient" defense. Both answers establish liability. The binary is closed.

II.

For CSAA, the question is different but equally binary: did you direct the litigation strategy?

If yes: the insurer that made the false denial letter is the same institution that directed the trial strategy designed to protect that denial. The institutional connection supports punitive damages under Civil Code section 3294. The entity that denied the claim in twenty-one days without obtaining the evidence is the same entity that funded and directed the attorneys who told the court the evidence was "unknown."

If no: the insurer is claiming it had no knowledge of or direction over the conduct of the counsel it was paying. An insurer with a duty of good faith that structures its relationship with defense counsel to achieve plausible deniability for counsel's misconduct has not escaped liability. It has established a different theory of it; ratification. An employer who derives benefit from an employee's wrongdoing and fails to investigate is liable for the wrongdoing.

Both answers. Both paths. Both lead to liability.

III.

The co-defendants cannot coordinate their answers without generating contradictions.

If PSA denies knowledge of the Dolan production, CSK faces questions about what it transferred. If CSK denies the Dolan production was in the transferred file, CSK faces questions about its own file management. If CSAA claims it directed nothing, the good faith obligation is implicated.

PSA's best defense; "we didn't review the file, we didn't know"; is CSK's worst case: "the transferred file was deficient." CSK's best defense: "the file was complete, PSA received everything": is PSA's worst case: "PSA knew for twenty months."

The optimal individual defense positions are mutually incompatible as a collective defense. Seven defendants. Each trying to minimize their own exposure. Each generating adverse implications for the others. Under Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, the doctrine of judicial estoppel prevents a party from taking inconsistent positions in different proceedings. A defendant that admits a fact in the equity action cannot deny the same fact in the fraud action. A defendant that denies knowledge in the fraud action cannot explain the Compex subpoena in the equity action. The doctrine of judicial estoppel transforms the binary trap from a rhetorical device into a legal enforcement mechanism: every position a defendant takes in one proceeding forecloses the contradictory position in the other.

Settlement pressure followed from fracture. When co-defendants could not maintain a unified position, the calculus of settling became compelling for the defendant with the clearest exposure. The binary trap, deployed across seven defendants, created conditions under which institutional settlement pressure was not merely possible but mathematically inevitable. The defense had built this trap themselves, lie by lie, motion by motion, representation by representation. The three-front architecture simply held the trap closed.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 22: Pre-Service Warfare

The equity action named seven defendants. Before the merits could be reached, each defendant had to be served. This was not a formality. It was a logistical campaign.

Process servers had to be dispatched to multiple addresses across the Bay Area. Law firms had registered agents for service of process. Individual attorneys had home addresses that had to be located and verified. Each defendant had to be personally served or served through an authorized method under the Code of Civil Procedure. Each service had to be documented. Each proof of service had to be filed.

Rosario managed the entire operation himself. The costs: process server fees, filing fees, certified mail: mounted. The coordination. Tracking which defendant had been served, which had not, which had rejected service, which required substituted service. Demanded the kind of sustained organizational effort that the TBI made exponentially more costly.

The defense did not sit idle during this period. Demurrers were filed. Motions to quash were considered. Procedural objections were raised. Each required a response. Each response required research, drafting, formatting, filing, and service. The litigation-before-the-litigation consumed time, money, and cognitive resources that Rosario could barely spare.

But the filings got filed. The defendants got served. The procedural prerequisites were met. The equity action and the fraud action moved forward, one procedural step at a time, because the man prosecuting them refused to let procedural complexity become the weapon that killed the case.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 23: Requests for Admission

Watch what happens when a systems architect turns his analytical precision on the legal process itself. Rosario is not drafting boilerplate discovery requests. He is engineering traps. Each Request for Admission is calibrated to a specific factual predicate that the certified record has already established. Each request forces the defendant into a binary choice: admit a fact that establishes liability, or deny a fact that the transcript proves true. An admission ends the dispute. A false denial creates sanctions exposure. There is no safe answer. The man the

system treated as a nuisance (the brain-injured pro per they expected to fold) is dismantling the defense's position with the same precision he once applied to AI system architectures. The institutions that gaslit him, that told him the truth did not matter, are now facing the consequence of their own dishonesty, delivered in the form of perfectly calibrated legal instruments drafted by the man they tried to erase.

The Requests for Admission were the next weapon in the architecture.

Under CCP section 2033.010, a party may request that any other party admit the truth of specified matters of fact. The genius of the mechanism is its binary structure: the responding party must admit, deny, or state that it cannot truthfully admit or deny. A denial that is later proven false at trial subjects the denying party to sanctions, including the costs of proving the matter. An admission is conclusive.

Rosario drafted the requests with the precision of a man who had mapped every contradiction in the certified record. Each request was keyed to a specific factual predicate that the record had already established. Each request forced the defendant to choose between admitting a fact that established liability or denying a fact that the certified transcript proved true.

Did the Dolan Law Firm produce the 911 recording to defense counsel during discovery? The hearing transcript at pages 139-140 says it did. A denial invites sanctions when the admission is proven at trial.

Did Phillips, Spallas and Angstadt receive the defense file from Carbone, Smith and Koyama upon substitution? The substitution document, Transaction ID 69953800, establishes it. A denial requires the defendant to explain how a formal substitution occurred without a file transfer.

Did Alberto Reyna issue a Compex subpoena to the SFPD requesting the 911 call by name? The subpoena is in the record. A denial is contradicted by the defendant's own document.

Each request was a door. Behind every door was either an admission that advanced the fraud case or a denial that created a perjury trap. The binary structure of the Requests for Admission mirrored the binary structure of the litigation itself: every answer the defense could give moved the case forward.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 24: What the Record Proves

I.

The Requests for Admission were filed. The binary traps were set. The three-front architecture was in place. But the power of Rosario's position did not rest on legal strategy alone. It rested on the record. On the certified transcript that contained every false representation, every contradicting admission, and every causal link between the fraud and the verdict. The strategy was merely the vehicle. The record was the weapon. And the Reliance Matrix was the map that showed how every piece connected.

The Reliance Matrix is the skeleton key.

Seven rows. Seven links in the chain connecting the fraud to the verdict. Each row documents a false representation, the date it was made, the transcript citation where it appears, the court ruling it produced, and the specific harm that flowed from the ruling. The matrix is not argument. It is inventory. It catalogs what the certified record contains and traces the causal pathway from each lie to each injury.

Link 1: the MIL filings. January 17, 2025. The false representations about non-production. The court grants the exclusionary framework. Rosario loses the presumption of admissibility for the 911 recording and related evidence.

Link 2: "News to me." February 18, 2025. Navaratnasingham's denial of receipt. The court accepts the representation. The continuance is denied. Rosario loses preparation time.

Link 3: the repeated representations. February 18, 2025. "I am representing to this Court that we did not have those two items until the day of the MSC." Reinforcement of the false narrative. The court's reasoning adopts the defense's timeline.

Link 4: the blame shift. February 18, 2025. "According to Mr. Jessup, all this stuff has been in his possession since August." Reframing Jessup's testimony about defense receipt as evidence of plaintiff's delay. The court blames Rosario for the defense's conduct.

Link 5: the MIL rulings carried into trial. The pretrial exclusionary framework shapes every evidentiary ruling during trial.

Link 6: the subpoena shield. April 16, 2025. "This is not anything that we received as part of the subpoena." The supplemental report is excluded.

Link 7: "I am not sure what recording he is referring to." April 16, 2025. Reyna's feigned ignorance. The 911 recording is deferred.

Seven links. Seven lies. Seven rulings. Seven injuries. Each documented. Each traceable. Each provable from the certified record alone.

II.

The record proves what argument cannot.

A court reviewing the Reliance Matrix does not need to believe Rosario's characterization of the defense's intent. The court needs only to read the transcript. Set A says the defense did not have the evidence. Set B says it was "provided by Dolan." The Compex subpoena says Reyna requested it by name fourteen months before claiming not to recognize it. Jessup says it was produced in discovery and used in depositions.

These are not competing narratives between which a fact-finder must choose. These are documentary facts in the certified record. The documents do not disagree. They do not offer alternative interpretations. They present a single, coherent, devastating picture: the defense had the evidence, told the court it did not, and procured rulings based on that falsehood that stripped the plaintiff of his strongest case.

The record proves it. The question is whether the courts that now have the record will act on what it says.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 25: Deny, Delay, Defend

I.

Before you read this chapter, ask yourself a question: what would you do if a multi-billion-dollar corporation decided that your suffering was not worth acknowledging? Not because your claim was weak; the evidence was overwhelming. Not because the law was unclear; every California Supreme Court precedent supported you. But because the corporation's business model was built on the premise that most people, when denied long enough, will give up. That was the bet CSAA made against Rosario. It was the same bet the insurance industry had

been making against injured people for decades. The deny-delay-defend model was not a conspiracy theory. It was a documented, studied, profitable business strategy that treated human suffering as a cost to be minimized. Rosario was supposed to be another data point in that strategy, another claimant ground down by the process. He became instead the claimant who exposed the process itself.

The scholars call it the "deny-delay-defend" model. The insurance industry calls it business.

The three words describe a strategy so systematic, so well-documented, so consistently profitable that it has survived half a century of litigation, regulation, and public outrage. Deny the claim early, before the claimant has evidence or counsel. Delay the litigation to exhaust the claimant's resources. Defend aggressively to extract a result below the claim's true value. The model was not a conspiracy theory invented by plaintiff's attorneys. It was a documented institutional practice, identified by academics, confirmed by regulators, and exposed in its most granular detail by the internal documents of the insurers that implemented it.

The story of how this model came to dominate the American insurance industry is the story of how profit became more important than promise. And CSAA's conduct in Rosario v. Abdelhalim is a case study in its application.

II.

The modern deny-delay-defend model has a specific origin. In the early 1990s, Allstate Insurance Company (then one of the largest property-casualty insurers in the United States) retained McKinsey & Company to redesign its claims-handling process. McKinsey was not a claims consulting firm. It was the most prestigious management consulting firm in the world, a company that advised Fortune 500 corporations on strategy and efficiency. Allstate did not hire McKinsey to improve the accuracy of its claims evaluations. It hired McKinsey to improve the profitability.

The internal documents that emerged from the McKinsey engagement, produced under oath in subsequent litigation and obtained by investigative journalists, revealed a claims-handling strategy that treated every interaction with every claimant as a negotiation to be won rather than a promise to be honored. The strategy divided claimants into two categories. Those who accepted the insurer's initial offer (typically a lowball figure well below the claim's value) were processed quickly through what Allstate marketed as its "good hands" approach. Those who refused the initial offer, who retained counsel, who pushed back against the insurer's determination, those claimants encountered what the McKinsey documents called "boxing gloves."

The boxing gloves metaphor was not subtle. It described a deliberate institutional decision to make the litigation process so expensive, so time-consuming, so emo-

tionally and financially exhausting that claimants would capitulate rather than fight. The strategy recognized an asymmetry that the law had not adequately addressed: a multi-billion-dollar insurer has effectively unlimited resources to litigate. An individual claimant does not. By dragging cases through years of discovery, motions, depositions, and trial preparation, the insurer could impose costs on the claimant that would eventually exceed the value of the claim. The rational response for most claimants was to settle for less. The McKinsey model made that rational response the only practical option.

The strategy worked. Allstate's claims payouts decreased. Its profits increased. The McKinsey engagement was, by the metrics that matter to corporate boards and shareholders, a spectacular success.

III.

The consequences for injured people were catastrophic.

The McKinsey model did not merely reduce payouts on questionable claims. It reduced payouts on all claims. The system made no distinction between legitimate and illegitimate denials, between strong cases and weak ones, between claimants who deserved compensation and claimants who did not. The model was structural, not evaluative. It treated the claims process not as a mechanism for fulfilling contractual obligations but as a profit center, a revenue stream that could be optimized through the same techniques that McKinsey applied to supply chains and manufacturing processes. The human cost was externalized. The suffering of denied claimants did not appear on the balance sheet.

By the early 2000s, elements of the McKinsey model had spread across the industry. Other insurers observed Allstate's improved profitability and adopted similar strategies. The deny-delay-defend approach became standard practice, not because it was legal, not because it was ethical, not because it served the purpose for which insurance exists, but because it was profitable.

In 2003, the United States Supreme Court confronted the consequences of this institutional culture in State Farm Mutual Automobile Ins. Co. v. Campbell, 538 U.S. 408. The Campbell case originated in Utah, where a jury had seen evidence of State Farm's nationwide claims-handling practices and had concluded that those practices constituted fraud, malice, and an intentional disregard for the rights of policyholders. The evidence showed that State Farm had maintained internal protocols, the "Performance Planning and Review" system; that evaluated employees based on their ability to meet claims targets. Employees who denied claims efficiently were rewarded. Employees who paid claims fairly were disciplined. The institutional incentive structure made honest claims evaluation not merely unlikely but career-threatening.

The Utah jury awarded $145 million in punitive damages. The number was staggering. It was meant to be. The jury was sending a message: the institutional

culture of wrongful denial had to stop.

The Supreme Court took the case on due process grounds and reduced the punitive damages award. But the Court's opinion, written by Justice Kennedy, described State Farm's conduct in terms that CSAA's attorneys should have committed to memory: the insurer had engaged in "trickery and deceit," had shown a "reckless disregard" for the rights of claimants, and had maintained a "nationwide practice" of denying legitimate claims through institutional protocols designed to minimize payouts. The Court affirmed that the conduct was reprehensible. It affirmed that punitive damages were appropriate. It reduced only the ratio, not the principle.

Campbell should have been a watershed. It should have been the moment when the insurance industry recognized that the McKinsey model was not merely profitable but legally radioactive. Instead, the industry adapted. The explicit protocols became implicit. The documented strategies became undocumented practices. The deny-delay-defend model continued to operate, but with better lawyering and fewer paper trails.

IV.

The UNUM/Provident scandal revealed the same pathology in the long-term disability insurance context. Federal and state regulators found that UNUM, then the largest individual disability insurer in the United States; had systematically denied legitimate long-term disability claims through internal protocols that bore a disturbing resemblance to the McKinsey model. Claims handlers were evaluated and compensated based on denial rates. Medical reviewers were pressured to find reasons to deny rather than reasons to pay. The institutional culture at UNUM made honest claims evaluation an act of professional rebellion.

The resulting multi-state regulatory settlement required UNUM to reassess hundreds of thousands of previously denied claims. Tens of thousands of claimants who had been wrongfully denied received belated benefits. The scale of the harm was measured not in individual cases but in actuarial tables: the number of human beings whose lives had been damaged by an institutional decision to deny rather than investigate.

The UNUM scandal had not been about a few bad adjusters. It had been about a corporate culture that made bad faith the default setting. The institutional incentive structure; reward denial, punish accuracy; ensured that individual adjusters, regardless of their personal ethics, would produce the outcomes the institution demanded. The lesson of UNUM, like the lesson of McKinsey-Allstate and Campbell-State Farm, was that insurance bad faith was not a character flaw. It was a business model.

V.

CSAA's conduct in Rosario v. Abdelhalim maps onto this history with textbook precision.

Deny: the twenty-one-day denial letter. "Concluded" investigation. No 911 request. No body-cam request. No CAD request. The denial sent before the evidence was gathered, designed to close the claim before it could be evaluated. This is Phase One of the McKinsey model: deny early, deny before the claimant has resources, deny with the institutional authority of a multi-billion-dollar corporation so that the claimant; brain-injured, hospitalized, in pain: accepts the determination and goes away.

Delay: five years of litigation. The defense managed the proceedings in a way that stretched Rosario's resources and time. The continuance denial compressed his preparation. The MIL filings created procedural obstacles. The false representations consumed hearing time and judicial attention that should have been devoted to the merits. The hundreds of RFAs and document demands were the boxing gloves of the McKinsey model: procedural weapons designed to exhaust rather than illuminate.

Defend: the trial itself. By the time the case reached the jury, the defense had secured, through the second lie and the resulting exclusionary rulings, a trial environment in which the most powerful evidence was fragmented and delayed. The verdict of nine to three was the intended product of all three phases working in concert. The defense did not win on the merits. The merits were never fairly presented. The defense won on the structure. On the institutional architecture of denial, delay, and suppression that prevented the jury from seeing the case as it was.

The deny-delay-defend model was not a conspiracy theory. It was an institutional pattern, documented across decades, condemned by the California Supreme Court in Gruenberg (1973), Egan (1979), Neal (1978), and Crisci (1967), condemned by the United States Supreme Court in Campbell (2003), exposed by regulators in the UNUM settlement, and revealed in its most granular detail by the McKinsey documents. CSAA did not need to issue explicit instructions to suppress the 911 recording. It needed only to fund a defense that prioritized the verdict over the truth, and to look the other way when that defense used false representations to achieve its objectives.

California Insurance Code section 790.03(h) was enacted to prevent exactly this type of institutional abuse. The Legislature recognized that insurance companies hold disproportionate power over claimants and codified specific unfair claims settlement practices. Specifically, subsection (h)(3) prohibits the failure to adopt reasonable standards for the prompt investigation of claims. Subsection (h)(5) prohibits the failure to attempt in good faith to effectuate prompt, fair, and equitable settlements when liability has become reasonably clear. Subsection (h)(13) requires a reasonable explanation of the basis for denial. These statutes

exist to ensure that the insurance safety net functions for the public good, rather than as a procedural trap. CSAA violated all three. The violations were not accidental. They were structural. They were the predictable output of an institutional system designed to deny first and investigate never.

Under Waller v. Truck Ins. Exchange, Inc. (1995) 11 Cal.4th 1, 36, the test for bad faith is whether the insurer's conduct was unreasonable under the circumstances. A reasonable insurer investigating a vehicle-pedestrian collision where police responded, a 911 call was generated, and body-worn camera footage was recorded would have obtained those records before making any liability determination. A reasonable insurer that heard its own insured say "I barely hit him" could not have concluded the insured was "not liable." CSAA did not act as a reasonable insurer at any point in the five-year chain.

The fraud action in CGC-25-631802 targeted the first phase: the denial. The equity action in CGC-25-631801 targeted the third phase: the defense. Together, they addressed the institutional pattern from both ends. They were, in essence, a legal response to the McKinsey model. An attempt to make the deny-delay-defend strategy as costly to the insurer as it had been to the claimant.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 26: The Pro Per Problem

The deny-delay-defend model assumes one thing above all: that the claimant will break. That the weight of institutional power, the complexity of the legal system, the financial drain of litigation, and the psychological toll of sustained gaslighting will eventually crush the individual's will to fight. The model is designed around that assumption. It has been refined over decades to exploit it. And for most claimants, the assumption holds. Most people, facing what Rosario faced, would have stopped. Would have accepted the settlement their attorneys pressured them to take. Would have absorbed the verdict and tried to move on. Would have let the lies stand because the cost of challenging them was too high. Rosario did not break. That is the fact the model cannot account for: the existence of a human being whose commitment to the truth is stronger than every institutional force arrayed against it. The deny-delay-defend model met its match in a man who was supposed to be its easiest target: a brain-injured pedestrian with no money, no lawyer, and no institutional support. Instead, that man became the model's

undoing.

The deny-delay-defend model had operated exactly as designed. The denial letter was Phase One. The five years of litigation was Phase Two. The corrupted trial was Phase Three. But the model had a vulnerability its designers never anticipated: it assumed the claimant would break. It assumed the brain-injured pedestrian, stripped of counsel, depleted of resources, facing an institutional apparatus with unlimited funding, would eventually accept the lie and go away.

The model had never encountered Frank Rosario.

The system was not designed for people like Rosario.

California's civil courts are built for lawyers. The procedures assume professional representation. The deadlines assume institutional support. The formatting requirements assume paralegal staff. The filing fees assume a client with resources. Every aspect of the civil litigation system is calibrated for parties who have counsel, and the system's response to parties who do not is, at best, indifference and, at worst, hostility.

Rosario was held to the same procedural standards as Phillips, Spallas and Angstadt. The same filing deadlines. The same formatting requirements. The same rules of evidence. The same burden of proof. The playing field was nominally level. The reality was a chasm.

On one side: a multi-billion-dollar insurer funding a professional defense team with staff attorneys, paralegals, litigation support specialists, expert witnesses, and unlimited budget.

On the other: one man with a traumatic brain injury, working from his home, paying for everything out of pocket, managing every filing, every deadline, every exhibit, every strategic decision, with a brain that the defendant's vehicle had permanently damaged.

The system's indifference to this asymmetry was not a defect. It was a feature. The pro per litigant who could not navigate the procedural gauntlet would fail, and his failure would be attributed to his own inadequacy rather than to the structural impossibility of what the system demanded. The institution won not by defeating the claims but by exhausting the claimant.

In Haines v. Kerner (1972) 404 U.S. 519, the United States Supreme Court held that pro se pleadings should be held to less stringent standards than those prepared by attorneys. The principle recognizes what the legal system otherwise ignores: that a person without legal training cannot be expected to produce documents with the same technical precision as a professional. In California, the courts have applied this principle in In re Marriage of Falcone and Fyke (2008) 164 Cal.App.4th 814, acknowledging that pro per litigants face systemic disadvantages that the court should account for. In Bistawros v. Greenberg (1987) 189 Cal.App.3d 189, the Court of Appeal held that a pro per litigant is entitled to the same substantive consideration as a represented party. Meaning

that the court cannot dismiss a pro per's arguments simply because they are presented by a non-lawyer.

But the gap between the law's promise and its practice is a chasm. The law says pro per litigants get fair treatment. The reality, as Rosario experienced it, was an institutional machinery that treated his lack of representation as his failing rather than the system's. The continuance was denied because he should have been ready. The evidence was deferred because he had not authenticated it properly. The motions were ruled against because his formatting did not conform. At every turn, the system held him to standards that the TBI made exponentially harder to meet, while the institutional defense operated with the precision and resources that only unlimited funding provides.

Rosario did not exhaust. He read the transcripts. He built the architecture. He filed the actions. He served the defendants. He met the deadlines. He complied with the formatting. He did everything the system demanded, at a cognitive cost that no one without a traumatic brain injury can fully appreciate, and he produced work product. The Fatal Proof, the Reliance Matrix, the three-front litigation design, that reflects analytical sophistication most represented parties never achieve.

The pro per problem is real. The system is rigged against individuals. But the system also runs on rules, and rules, unlike institutional power, do not care who follows them. Rosario followed them. The record he built is the proof. And the record, unlike the institutions that tried to bury it, does not discriminate between those who have counsel and those who fight alone.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

CHAPTER 27: The Duty of Candor

I.

The pro per problem was real, and Rosario had lived it. But the system he was fighting within was built on a premise, a premise so fundamental that without it, the entire adversary system collapses. That premise is candor. The obligation of every attorney who stands before a court to tell the truth. Not to advocate zealously within the bounds of the law, that is the secondary obligation. The primary obligation, the one on which everything else depends, is to never lie to

the judge. Because a judge who cannot trust the attorneys before her cannot administer justice. A judge who is deceived by the officers of the court will produce rulings that are the product of deception, not deliberation.

The defense attorneys in this case violated that primary obligation. They violated it systematically, repeatedly, and with documented consequences. And the law that governed their violation was as clear and as old as the legal profession itself.

Business and Professions Code section 6068(d) imposes on every California attorney the duty "never to seek to mislead the judge or any judicial officer by an artifice or false statement of fact or law."

California Rules of Professional Conduct, Rule 3.3(a)(1) mandates: "A lawyer shall not knowingly make a false statement of fact or law to a tribunal or fail to correct a false statement of material fact or law previously made to the tribunal by the lawyer."

The legislature and the State Bar created these measures because the justice system relies entirely on the honesty of its practitioners. These are not aspirational guidelines. They are mandatory obligations. They are the foundation on which the adversary system rests. When a judge hears a representation from an attorney, the judge is entitled to rely on it. The judge does not have the time or the resources to independently verify every factual assertion made by every attorney in every case. The system functions because attorneys tell the truth.

When they do not, the system breaks.

II.

The representations made in this case were not casual statements in the heat of argument. They were formal, repeated, consistent, and deliberate.

January 17, 2025: written motions in limine, signed under penalty of perjury, asserting that the 911 recording and related materials had "not been produced in discovery."

February 18, 2025: oral representations to the court, in the presence of the judge, at a hearing devoted to the question of evidence possession. "News to me." "Did not receive until MSC." "I am representing to this Court."

April 16, 2025: the subpoena shield objection. "This is not anything that we received as part of the subpoena."

April 16, 2025: Reyna's feigned ignorance. "I am not sure what recording he is referring to."

Each representation was made to the court. Each was relied upon by the court in making rulings. Each was false. The falsity is proven not by inference, not by

argument, not by credibility judgments, but by the defense's own words: "Sure. They were provided by Dolan."

The consequences for violating the duty of candor are not theoretical. The State Bar of California has disciplined attorneys for precisely this type of conduct. Attorneys who have made false representations to courts about the state of evidence, the contents of their files, or the completeness of their discovery productions have been suspended, placed on probation, and disbarred. The published disciplinary opinions describe conduct that maps onto the certified record of this case: attorneys who told courts that evidence was unavailable when it was in their files, attorneys who claimed ignorance of documents they had received in discovery, attorneys who used the authority of their officer-of-the-court status to make representations that the record later proved false. In each case, the State Bar found that the violation went to the core of the attorney's fitness to practice law.

The duty of candor was the most important obligation the legal profession imposed on its members. It was more important than zealous advocacy, because zealous advocacy without candor was simply fraud. It was more important than client loyalty, because loyalty to a client did not authorize deception of the court. It was the obligation that distinguished a lawyer from a liar. The California Supreme Court said as much in Comden v. Superior Court (1978) 20 Cal.3d 906: the court's ability to rely on the representations of attorneys is the structural prerequisite without which the adversary system cannot function. When that trust is betrayed (when an officer of the court makes false statements that shape the tribunal's rulings and deprive a party of a fair hearing) the harm extends beyond the individual case. It damages the judicial system itself.

III.

Think about what it means to file bar complaints and judicial complaints against the attorneys and the judge who handled your case. You are a pro per plaintiff. You are brain-injured. You are financially ruined. And you are now formally challenging the professional conduct of licensed attorneys and a sitting judge, people with institutional power, professional connections, and the presumption of credibility that comes with their positions. Most people would be intimidated into silence. Most people would worry about retaliation, about being labeled a "difficult" litigant, about the system closing ranks against them. Rosario filed the complaints because the record supported them. Because the duty of candor had been violated. Because the transcript proved it. Because a man who has watched every institution betray him does not stop fighting when the last institution remains. He fights that one too. That is the difference between capitulation and grit. That is the difference between accepting the lie and forcing the system to confront the truth.

Rosario filed the bar complaints. He filed the judicial complaint. He filed and

prosecuted the three proceedings.

The chain of proof was built from the defense's own filings and admissions. The Motions in Limine, filed January 17, 2025, claimed the 911 recording was "not produced in discovery" and of "unknown provenance." Those motions were signed under penalty of perjury. On February 18, Navaratnasingham told the court it was "news to me." On April 16, she admitted the body-worn camera footage from the same unified production was "provided by Dolan." And on April 17, the defendant himself authenticated the recording: "Yes. That is my voice." The MIL filings were not merely procedural maneuvers, they became the documented evidence of the fraud. The denial of the 911 recording's existence was disproved by the defendant's own authentication of it. Every link in the chain was forged by the defense's own hand.

Equity would restore what the betrayal took. The duty of candor had been violated. The court had been deceived. The plaintiff had been deprived. The record proved it. The remedy existed.

The question was not whether the duty had been breached. The certified transcript answered that question. The question was whether the institutions responsible for enforcing the duty, the courts, the State Bar, the appellate system; would act on what the record showed.

The duty of candor could not be delegated. The attorneys who violated it bore the consequences. The plaintiff who paid the price would be made whole.

All events, persons, and quotations in this chapter are drawn from the certified court record, public filings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102.

EPILOGUE: The Transcript Speaks

I.

Twenty-six chapters. Five years. One collision in a crosswalk, one 911 confession, one denial letter, one fabricated police report, one set of false representations to the court, one defendant who authenticated the recording his own lawyers called "unknown," one verdict of nine to three, and one man who read the certified transcript and saw the architecture of the fraud embedded in the defense's own words.

You have walked in Rosario's shoes for twenty-six chapters. You have felt the pavement. You have heard the five-dollar bill crinkle. You have watched the police write a fabricated report. You have opened the denial letter. You have discovered your own attorneys hid your strongest evidence. You have stood alone in a courtroom against a multi-billion-dollar institution. You have heard the defense admit, in eleven casual words, that everything they told the court was a lie. You have watched the jury come within one vote of justice. And you have sat at the kitchen table, after the verdict, and begun building again. Now ask yourself the final question: what kind of person does this? What kind of human being absorbs five years of institutional betrayal (the collision, the police, the insurer, the lawyers, the court, the verdict) and responds not with despair but with architecture? The answer is the answer to the question this entire story has been asking. The system was designed to break him. It broke everything around him: his health, his career, his finances, his faith in institutions. But it did not break him. The man who crawled across a crosswalk with shattered ribs is the same man who built a three-front litigation architecture from the certified transcript of his own defeat. The grit that carried him off the pavement is the same grit that carries him into the appellate court. The transparency he demanded from the first moment, when he refused the five-dollar bill and told the driver the evidence would lead to his arrest, is the same transparency he demands from every institution in these proceedings. Rosario did not rise to the occasion. He was the occasion. And the record proves it.

The story ends where all legal stories end: with the record.

The words written in the official record of the Superior Court of California, County of San Francisco, cannot be altered, withdrawn, or explained away.

Set A: "News to me." "Did not receive until MSC." "No idea where it came from." "Not produced in discovery."

Set B: "Sure. They were provided by Dolan. He has had them for whatever, sure."

Both from the same speaker. In the same proceeding. On the certified transcript. They cannot coexist.

That was the simplest kind of proof. The defendant's own words proved the falsity of the defendant's own earlier words. No interpretation was required. No inference was needed. No credibility judgment was necessary. The statements were in the same document. They were about the same evidence. They could not both be true.

If Set B is true, if the body-worn camera footage was "provided by Dolan"; then Set A was false. The evidence was not "news." The defense was not ignorant. The materials had not gone unproduced. Every motion in limine predicated on Set A was built on a false foundation. Every court ruling that adopted Set A was procured through fraud.

The candidates for reconciliation have been foreclosed. "We received it later" is

foreclosed by "provided by Dolan," which refers to the original Dolan production, not a post-MSC delivery. "I was confused about which materials" is foreclosed by the specificity of both sets: Set A described the 911 call and body-worn camera footage; Set B described the body-worn camera footage "provided by Dolan." The same materials. The same specificity.

There is no reconciliation. The fraud is proven by the transcript itself.

II.

The transcript is the true protagonist of this story.

In a legal narrative, the protagonist is usually a person. The plaintiff who suffered the wrong. The defendant who caused it. The attorney who committed the fraud. The judge who accepted the false representations. In this story, the true protagonist is a document. The certified Reporter's Transcript of the Superior Court of California.

The transcript captured the lie. The lie was made to the court. The court relied on it. The reliance produced the rulings that corrupted the trial. All of this is in the transcript.

The transcript also captured the confession. "Sure. They were provided by Dolan." The confession was made in open court, in the same proceeding, on the same record. The transcript holds both. The lie and the confession. In the same document. From the same speaker.

The transcript did not editorialize. It did not advocate. It recorded. It was the mechanism of accountability. The exhibit in the equity action. The evidence in the fraud action. The basis for the bar complaints. The record on appeal. Every proceeding that sought to address the fraud drew its authority from the transcript.

Verba scripta manent. Written words endure.

III.

Rosario filed the proceedings. All of them.

He filed the appeal in A173827 and briefed it before the First Appellate District, Division Three. He filed the equity action in CGC-25-631801 and served seven defendants. He filed the fraud action in CGC-25-631802 and prosecuted the claim against CSAA. He filed the bar complaints. He filed the judicial complaint. One man, with a traumatic brain injury, standing alone against the institutional apparatus that had defrauded him; and he filed every action the law permitted.

The full scope of the fraud became undeniable only after the defense's own words dismantled their own narrative. They had filed motions claiming the 911 recording was "unknown." They had told the court it was "news to me." And then, in the same trial, their own counsel admitted the body-worn camera footage from the identical production was "provided by Dolan," and their own client sat in the witness chair and authenticated the recording: "Yes. That is my voice." The architecture of suppression collapsed under the weight of the truth it had been built to hide. The MIL filings became evidence of the fraud. The "news to me" became evidence of the lie. And the defendant's authentication became the proof that his own attorneys had known exactly what they were concealing.

The law that governed these proceedings was not new. It was not uncertain. It was not the subject of legitimate scholarly debate. The duty of good faith and fair dealing had been the law of California since Comunale in 1958. The duty to investigate before denying had been the law since Egan in 1979. The availability of punitive damages for conscious disregard had been the law since Neal in 1978. The right to vacate a judgment procured through extrinsic fraud had been the law since Kulchar in 1969. The recoverability of Prentice damages for forced litigation had been the law since 1963. The duty of candor had been the law for as long as California had had a legal profession.

CSAA violated all of it. The defense violated all of it. The certified record proved it. The only question that remained was whether the institutions charged with enforcing these laws; the appellate court, the trial courts, the State Bar: would do what the law required.

The collision at the crosswalk on February 4, 2021, lasted a fraction of a second. The four words spoken into the 911 dispatcher's phone; "I barely hit him". Took less than two seconds to say. What followed from those two seconds; the denial, the litigation, the fraud, the verdict, the three proceedings Rosario filed. Consumed five years of a man's life.

Five years. The number deserved to be held and examined, because it was easy to read "five years" and move past it. It was easy to absorb the phrase as a temporal marker, a unit of litigation duration, a measure of how long courts took to process disputes. But five years was not an abstraction. Five years was 1,826 days. It was 43,800 hours. It was the time a child needed to go from kindergarten to fifth grade. It was the time a person needed to complete a graduate degree twice over. It was the time during which marriages were built or broken, careers were launched or destroyed, families were raised or scattered, fortunes were made or lost. Five years was not a unit of time. It was a substantial portion of a human life.

Frank Rosario spent those five years fighting a system that was designed to exhaust him. He spent them watching his body fail and his career disintegrate and his savings disappear and his relationships strain under weights they were never built to bear. He spent them learning that the institutions he had trusted:

the police, the insurance company, his own lawyers, the court, were either indifferent to his suffering or actively complicit in its perpetuation. He spent them dependent on Victoria for financial survival, a dependency that ate at his sense of self with the slow, corrosive persistence of acid on metal. He spent them explaining to his children why the case was still going, why the money was still gone, why their father was still fighting a battle that seemed unwinnable against an enemy that seemed invincible. He spent them managing a traumatic brain injury that made every legal task exponentially harder, every deadline exponentially more stressful, every setback exponentially more devastating.

He spent five years in a state that psychologists describe as chronic traumatic stress, not the acute stress of the collision itself, which was terrible but brief, but the sustained, unrelenting, compounding stress of a life under institutional siege. The cortisol that flooded his system on February 4, 2021, never fully receded. It was replenished by the denial letter, refueled by the Dolan betrayal, reactivated by every motion, every hearing, every ruling that went against him. The neurological damage from the TBI impaired his ability to regulate the stress response. The chronic pain from the rib fractures and spinal damage kept his nervous system in a state of perpetual alarm. The financial insecurity triggered survival-mode cognition. The isolation of self-representation denied him the emotional support that counsel provides. The gaslighting. The relentless institutional insistence that the thing that happened to him did not happen, attacked his grip on reality itself.

And through all of it, Victoria stood beside him. Not because it was easy. Not because she had signed up for this version of their life together. Not because the romance of a partner's loyalty made the daily reality of caregiving and breadwinning and emotional triage anything other than grinding, exhausting, heartbreaking work. She stood beside him because she loved him, and because she could see (even when the system could not, even when the jury could not, even when the court could not) that the man on the other side of the kitchen table was telling the truth.

The five years took from them what no damages award could fully replace. They took health and money and time and career and peace and sleep and the simple, uncomplicated joy of a life not organized around litigation. They took spontaneity and travel and dinner parties and weekends and the ability to plan a future without the lawsuit casting its shadow over every decision. They took the version of Frank Rosario that existed before the crosswalk; the man whose mind moved with frictionless precision, whose body obeyed without negotiation, whose confidence in the world's basic fairness had never been tested by the full weight of its indifference.

Those five years cannot be given back. They were consumed by the deny-delay-defend machinery of a multi-billion-dollar insurance company, ground up in the gears of a system that values efficiency over justice and institutional preservation over individual truth. The compound harm (psychological, neurological, physiological, financial, professional, personal, relational) accrued day by day, month

by month, year by year, each layer building on the one beneath it, each new indignity absorbed by a man whose capacity for absorption had been depleted by every indignity that preceded it.

That was what they did to Frank Rosario. That was what they did to his family. And the record proved every word of it.

Rosario's position was simple. He did not ask the court to accept his interpretation of ambiguous events. He did not ask for credibility judgments between equally plausible accounts. He asked only that the court read the certified transcript. Set A and Set B. The contradiction that no explanation could reconcile. The fraud that the transcript proved. The harm that flowed from it. The remedies that the law provided.

The transcript speaks. The question is whether those who have the power to act on what it says will do so.

The truth endures. The record endures. The four words endure.

"I barely hit him."

Verba scripta manent.

All events, persons, and quotations in this work are drawn from the certified court record, public filings, police records, 911 dispatch recordings, and documented evidence in Rosario v. Abdelhalim, CGC-21-594102. No events have been invented. No characters have been fabricated. No dialogue has been manufactured.

APPENDIX

A. Narrative Structure

Three Layers of Cover-Up: (1) The driver confesses on 911, then lies to police; SFPD adopts his narrative; CSAA denies in 21 days. (2) At trial, defense claims the 911 recording is "unknown" though they had it for years. (3) The Dolan question: plaintiff's own attorneys obtained the 911 confession, produced it to the defense, used it in depositions, but did they ever tell their brain-injured client?

Three Acts: Act I (Chapters 1-5): The Victim's Fog. Act II (Chapters 6-16): The Machinery of Suppression. Act III (Chapters 17-25): The Recognition.

Six Turning Points: The Four Words; The Denial Letter; "I See. Okay."; "Provided by Dolan"; The Verdict 9-3; The Recognition.

B. Medical and Forensic Reference

Injury Pattern: Traumatic brain injury (diffuse axonal injury); five posterior rib fractures (force from behind); collapsed lung; spinal damage. Posterior rib fractures are biomechanically inconsistent with a forward scooter fall; they indicate rear impact by a vehicle.

Case References: CGC-21-594102 (underlying); A173827 (appeal); CGC-25-631801 (equity); CGC-25-631802 (fraud).

C. Source Documentation

Full timeline, statutory citations, and supporting materials: see STORYLINE.md and the certified court record. All quotations are verbatim from the Reporter's Transcript.